

RECORDS
OF THE
SPANISH INQUISITION,

TRANSLATED FROM THE
ORIGINAL MANUSCRIPTS.

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RECORDS
OF THE
SPANISH INQUISITION,

TRANSLATED FROM THE
ORIGINAL MANUSCRIPTS.

BOSTON:
SAMUEL G. GOODRICH, 141 WASHINGTON STREET.

MDCCCXXVIII.

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DISTRICT OF MASSACHUSETTS, *to wit:*
District Clerk's Office.

BE IT REMEMBERED, That on the twentysixth day of May, A. D. 1828, in the fiftysecond year of the Independence of the UNITED STATES OF AMERICA, *Samuel G. Goodrich*, of the said district, has deposited in this office, the title of a book, the right whereof he claims as proprietor, in the words following, *to wit;*

‘Records of the Spanish Inquisition, translated from the Original Manuscripts.’

In conformity to the act of the Congress of the United States, entitled ‘An act for the encouragement of learning, by securing the copies of maps, charts, and books, to the authors and proprietors of such copies, during the time therein mentioned;’ and also to an act entitled ‘An act supplementary to an act, entitled, an act for the encouragement of learning, by securing the copies of maps, charts, and books to the authors and

proprietors of such copies during the times therein mentioned; and extending the benefits thereof to the arts of designing, engraving and etching historical and other prints.'

JNO. W. DAVIS,
Clerk of the District of Massachusetts.

EXAMINER PRESS.

Hiram Tupper, Printer—Bromfield Lane.

PREFACE.

THE manner in which the originals of the following work came into the hands of the translator may be described in a few words. These papers are a part of the Records of the Inquisition of Barcelona, and were obtained during the revolution which broke out at Cadiz in 1819.

The province of Catalonia, of which Barcelona is the capital, was one of the most forward and zealous to embrace the cause of freedom. Its inhabitants have, in all times, been distinguished for their daring and determined spirit, and their ardent love of liberty. The revolution moved with rapid strides from the Isle of Leon to the Ebro. On the twentyeighth of February, 1820, the governor of Tarragona received a summons to repair immediately to Madrid, and in a few days the insurrection burst out in the former place. On the fourteenth of March, two days after this, it exploded at Barcelona.

The first movement of the revolutionary party was to depose the Captain General of the province. This office was then held by Castañas, a royalist. His predecessor was General Villacampa, an officer of some distinction, who had been deprived of the captain-generalship, and banished to Mataró, a small town on the coast, for his attachment to liberal principles. Castañas was forced to resign, and Villacampa was conducted in triumph from his place of banishment to Barcelona, and reinstated in his dignity by the populace.

The government of the city being revolutionized, their next thoughts were directed to the Inquisition, the great engine of priestly oppression, and the object of dread and detestation to the friends of liberty, both political and religious. The vast and gloomy piles of this tribunal, which covered a spot of more than ten times the extent of the Massachusetts State Prison, had been too long the terror of the oppressed and restless Catalonians to escape distinguished notice on this occasion. The populace demanded, with loud cries, of the Captain General, that the Inquisitorial Palace should be thrown open. What answer was given by Villacampa to this demand, does not appear. A body of twenty thousand persons rushed to the Inquisition, stormed at the gates, and demanded admittance. Those within told them to wait a few minutes and the gates should be opened. This interval they

improved to make their escape, and in a short time the populace, growing impatient, burst the gates and rushed in.

Every part of the premises was immediately filled. The dungeons were broken open; the prisoners released, and the papers cast out at the windows. For several days these were thrown in great numbers about the streets of the city, and a small portion of them, after passing through various hands, came into the possession of a gentleman of this city, who at that period was travelling in Spain. These papers were forwarded to Boston in 1820.

It was thought that a publication of these documents would be received with much interest and satisfaction by the community, as nothing of the kind has ever before seen the light. There are indeed some authentic and well written compilations relating to this subject, as well as a few narratives given by persons who have been imprisoned in the dungeons of the Holy Office; but a copious and minute detail of the forms and proceedings observed in the trials and investigations of the Inquisitorial Tribunal, such as is afforded in the following pages, has never, till this moment, existed in print. Should the Holy Office again rear its head in Spain, perhaps the Fiscal and Calificadores might do the publisher and Translator of this work the honor to take some notice of their labors. It is to be hoped, however, that these most illustrious and apostolical Señores may not very soon have occasion to obtain for either of us any such notoriety.

Boston, June, 1828.

HISTORICAL SKETCH OF THE INQUISITION.

THIS establishment had its origin in the endeavours of the Roman pontiffs for the suppression of heresy. In the year 1184, Pope Lucius II., alarmed at the appearance of the new religious sects in Dauphiny and Provence, called a great council at Verona, where a severe decree was issued against them, and the power of the secular princes called to aid in their discovery and punishment. In this decree we perceive the embryo of the Inquisition, although its proper foundation is commonly fixed some years later.^[1]

It was in France, in the year 1208, that it was first established, and took a distinct character under the direction of Pope Innocent III., who despatched legates into that country, with a power independent of the bishops, to persecute the heretics with the assistance of the secular arm. The unfortunate Albigenses, the objects of this persecution, were extirpated with fire and sword, and the death of thousands by massacres, tortures, and the funeral pile, signalized the commencement of the Inquisition.^[2]

This was in the reign of Philip Augustus, during which the Inquisition appears not to have been in exercise beyond the limits of Provence and Languedoc; but in 1255, at the request of Louis IX., it was established by the papal authority throughout the whole kingdom, with the exception of the territories of the Count of Poitiers and Toulouse.^[3] It did not however, obtain any permanent footing here, although the exact period of its discontinuance is not easy to ascertain. In 1560, the Cardinal of Lorraine made an effectual attempt to introduce it into France against the Protestants, which is the last time we find it mentioned in connexion with the history of that country.^[4]

In 1224, it was established by Pope Honorius II. in all the States of Italy, except Venice and Naples. In 1289, it was established at Venice.^[5] It appears to have been in existence in the kingdom of Naples as early as 1269.^[6] There is no very frequent mention of it in the histories of that period, and we may conclude that it did not assume that sanguinary character in these countries, which marked its first existence on the other side of the Alps. It disappeared from all these parts, except the Papal States, before completing a long career.

It was in Spain that this terrible tribunal was destined to obtain the firmest footing, and exercise the bloodiest sway. Its establishment in this country may be dated at the year 1232, and it gradually made its way into all the principalities of which this kingdom is composed, though not without a bloody resistance on the part of the inhabitants, who entertained the utmost horror of the Inquisition, and killed many of the Dominican Friars, who were its chief ministers, and the instruments of its establishment.^[7] In 1481, upon the union, under Ferdinand and Isabella, of the Kingdom of Castile and Arragon, the inquisitorial constitution was reformed and modified, with respect to its various limits of territorial jurisdiction, and also by the introduction of new and severe statutes and rules. This was called the *modern* Inquisition,^[8] and the pretext for its establishment was the persecution of the converted Jews, who were suspected of relapsing to their former faith. It afterwards took under its cognizance other heresies, and some civil offences. It is very clear that the people felt a decided aversion to it, which they manifested in violent tumults. Nevertheless force and terror overcame their resistance, and the domineering spirit of the Pope, the avarice of Ferdinand, and the fanaticism of the monks, succeeded in fastening the iron yoke of the Inquisition upon the necks of the Spaniards. It ran an uninterrupted career until abolished by Napoleon on the fourth of December, 1808.

The circumstances of its introduction into Portugal are too curious to be omitted. About the year 1540, there was in Spain, a monk of the name of Saavedra, who forged apostolic bulls, royal decrees, and bills of exchange, with so much accuracy, that they passed with every one for genuine. He succeeded so well as to pass himself off for a knight and commander of the military order of St Jago, the income of which, amounting to three thousand ducats, he received for the space of a year and a half. In a short time he acquired, by means of the royal deeds which he counterfeited, three hundred and sixty thousand ducats.

With a little prudence he might have remained undetected through life, but his successes tempted him to undertakings which led to his discovery. He fell in company with a Jesuit travelling to Portugal, with an apostolic brief for the foundation there of a college of that order. These two concerted measures for introducing the Inquisition as well as the Jesuits into Portugal. Saavedra forged letters from Charles V. to the King of Portugal, and a papal

bull establishing the Inquisition in that country. This bull appointed Saavedra legate *a latere* for the purpose.

This daring and brazenfaced impostor then took upon him the character and costume of a Roman cardinal. He travelled with litters, silver dishes, and a train of attendants, levying money on his course by forging bonds. He sent his secretary to Lisbon with his bull and papers to prepare for his reception. The king despatched to the frontiers a distinguished nobleman to receive him, and he made his entry into Lisbon, where he spent three months, and was treated with the highest respect. He afterwards travelled through the kingdom, and completed the business for which he had made his visit. He was at last detected by the Inquisitor General of Spain and arrested. After a trial by the Inquisition, he was sentenced to the galleys for ten years. The king added nine years more to the period. Almost all the establishments made by him in Portugal, were retained under the pretence that the Holy Office was necessary to persecute the Jews.

It has been the endeavour of the Spanish monarchs to extend it to every country under their dominion. The Emperor Charles V., whose zeal for the Inquisition has procured him the title of the Don Quixote of the Faith, established it in the Netherlands in 1522, and vast multitudes, who had embraced the Reformed religion, perished on its funeral piles. This bloody persecution was one of the means of exciting the revolt by which Holland was freed from the Spanish yoke.^[9] An attempt was also made by him to introduce it into Naples, but it encountered the most determined opposition. The Neapolitans rose in insurrection, massacred the Spaniards, and obliged the emperor to give over the project. About the time of its appearance in the Netherlands it was also established in the Spanish dominions in America. The first *autos de fe* were celebrated at Lima in 1639.^[10] The Portuguese carried it into their East Indian Colonies, fixing it at Goa in 1559.^[11] In Brazil, however, it has never existed.

The modern history of the Inquisition must be familiar to every reader. Its abolition by Napoleon in 1808, its reestablishment under Ferdinand VII. and its second overthrow by the Spanish people in 1820, are events too well known to need a recapitulation here.

RECORDS OF THE SPANISH INQUISITION.

TRIAL OF PEDRO GINESTA, NATIVE OF THE VILLAGE OF ST QUINTI, IN THE DIOCESE OF ST FLOR, FOR EATING BACON ON A PROHIBITED DAY

IN the Royal Palace of the Inquisition of Barcelona, on the fourth day of September, one thousand six hundred and thirtyfive, present, the Inquisitor Dr Domingo Abbad y Huerta, officiating alone in his morning audience; having examined the information received against Pedro Ginesta, native of the village of St Quinti, diocese of St Flor, and Joan Mella, of the village of St Maurion, parish of Xauvinar, diocese of Clermont, in the kingdom of France, by occupation both braziers, the same being in custody of the Commissioner of Salas in the prison of Agna Villa,—ordered, that the abovementioned persons be transferred to the secret prison of this palace of the Inquisition,^[12] and that their trial be instituted in form; also ordered, that the Commissioner aforesaid be instructed to attest *ad perpetuam* the evidence of the witnesses, ascertain the identity of the persons whom they depose against, and whether the said prisoners be the persons whom they charge with having eaten bacon on St Bartholomew's eve, notwithstanding the prohibition; also that the said prisoners, after the business of the deposition is despatched, be conveyed with care by the hands of the several Familiars, to the prison of this Inquisition.

For which purpose let the necessary measures be taken.

Before me—

MATTHEO MAGRE, *Sec'y*.

IN the town of Tremp, bishopric of Urgel, on the twentyfifth day of August, one thousand six hundred and thirtyfive, in the morning, before the Licenciado Joan Torroella, Presbyter Commissary of the Holy Office of the Inquisition in the town of Salas,—appeared according to summons and swore formally to declare the truth, a man who asserted his name to be Joan Compte, a native and resident of the town of Talarn, in the abovementioned bishopric, of age as he stated, fiftyfive years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he neither knew nor conjectured.

Questioned, if he knew or had heard that any person had spoken or done anything which was, or appeared to be, contrary to our holy Catholic Faith, and evangelical doctrine preached and taught by the holy Catholic Roman Church, or against the just and free exercise of the Holy Office.

Answered, that he knew nothing of the matters respecting which he was questioned, except that on the eve of St Bartholomew last, being in the town of Timian in the abovementioned bishopric of Urgel, he went to the tavern of Pitieu, and saw there a man, by occupation a brazier, with a grey beard, which person was well known to the deponent, he having seen and entertained him in the town of Calan, where he exercised his trade and had labored for the deponent. The name of this person deponent did not know, never having heard it mentioned. At the same place was a young man whom the said brazier stated to be his journeyman. These two were sitting at table and eating soup, which, being despatched, deponent saw the said person empty an earthen dish of bacon and onions into a frying-pan, and the said brazier asked deponent if he would eat with him, to which he replied that it was the eve and fast of St Bartholomew, at which time it was forbidden by the church to eat such food. Notwithstanding this, the said brazier and his servant did, in the presence of the deponent, eat the said bacon and onions, a small portion of which was observed to remain in the dish. This remnant the said persons placed on a piece of bread and presented it in a plate to the hostess. This done, the brazier and his servant went away to the *plaza* of the town, and deponent remained in the tavern with the hostess abovementioned. This is the truth according to the oath of the witness, and being read in his presence, is declared by him to be correctly written. Witness declares that he does not make this statement out of malice to any one. Secrecy being enjoined upon him, he promised to observe it; and he being unable to write, I, the said Commissary, sign in his name.

JOAN TORROELLA, *Commissary*.

In the town of Semiana, bishopric of Urgel, on the twentyeighth day of August, one thousand six hundred and thirtyfive, in the morning, before the Rev. Sr. Licentiate Joan Torroella, Presbyter Commissary of the Holy Office in the town of Salas, appeared according to summons and swore formally to declare the truth, a woman calling herself Geronima Aymara, wife of Pedro Aymar y Piteu, husbandman, native and resident of the town of Semiana, of age, as she stated, forty years or thereabout.

Questioned, if she knew or conjectured the cause of her being summoned to appear.

Answered, that she supposed it to be in order to learn whether some persons had eaten flesh in her house on the eve of St Bartholomew the Apostle, respecting which she could state, that on the time specified, two persons had been at her house, of whose names she was ignorant, but remembered that one was an old man and the other a youth, both by occupation braziers; the said youth asked witness to cook for them a dish of salted bacon which sat upon a table. Witness demanded in reply why they wanted to eat bacon on that day. The young man repeated his demand to have the bacon cooked for they meant to eat it. Witness answered that she was unwilling, as it was at such a time. The young man again demanded to have the bacon cooked, and told her to put onions along with it in the pot. Whereupon witness proceeded to cook the bacon, adding one *dinero*'s worth of onions, which she bought for that purpose. Having done this, she placed the victuals on the table before the said persons, and at this moment entered Juan Compte of the town of Talam; as witness was baking on that day and was obliged to attend to her oven, she did no more than set the victuals on the table before the said persons, and being asked by Juan Compte for something to eat, answered that he must wait till she returned from the oven, which he did, and upon her return she found the above two persons at table, one of whom ordered her to take away what remained of the meat, and witness saw that there was left a bit of the bacon and a few mouthfuls of the onions she had cooked, the bacon being thrust into a piece of bread. After this the two persons aforesaid left the house, having been seen to eat their meal by the abovementioned Joan Compte, who was present all the time. Furthermore witness stated, that she believes she heard her husband say, on the evening of the Wednesday before, that he heard the above persons declare they meant to eat that piece of bacon, which they had procured, the next day, which was St Bartholomew's, as aforesaid, and that

her husband replied, they could not, as it was a fast. This is the truth according to the oath of the witness, and being read in her presence is declared by her to be correctly written. Witness further states that she does not make this declaration out of malice to any one. Secrecy being enjoined upon her, she promised to observe it; and she, not being able to write, I, the said Commissary, sign in her name.

The Licentiate
JOAN TORROELLA, *Commissary*.

In the village of Sanserin, parish of Semiana, in the morning, before the abovementioned Licentiate Commissary Joan Torroella, appeared according to summons and swore formally to declare the truth, a woman calling herself Isabel Ramoneda, wife of Pedro Ramoneda, husbandman, a resident of the said village of Sanserin, of age, as she stated, thirty years or thereabout.

Questioned, if she knew or conjectured the cause of her being summoned to appear.

Answered, that she supposed it to be for the purpose of ascertaining whether certain Gascons had eaten flesh in Semiana, on last St Bartholomew's eve, concerning which, she could state, that on Thursday last, which was St Bartholomew's day, there came to her house in the evening a Gascon, whom she believes to be named Pedro, an old man, and by trade a brazier. He had come, as he stated, from the town of Semiana; and standing at the door of the house of this witness, there passed by the servants of Francisco Rocabruna, apothecary of Semiana, when the said Gascon demanded of the lads whether they knew if the young man who had been apprehended at Semiana, was released, to which they replied, 'No,' and cried out 'Ha! Lutheran, eat meat on a fast day!' The lads having passed, he said to witness that he had been eating, and that he was sorry or not sorry, witness does not remember which of the two. No other person was present. This is the truth according to the oath of the witness, and being read in her presence is declared by her to be correctly recorded. Witness declares that she does not make this statement out of malice towards any

one. Secrecy being enjoined upon her, she promised to observe it. She being unable to write, I, the said Commissary, sign in her name.

The Licentiate
JOAN TORROELLA, *Commissary*.

In the village of Sanserin, on the same morning, appeared according to summons and swore formally to declare the truth, a man calling himself Juan Monco, husbandman, native and resident of the village abovementioned, of age, as he stated, twenty years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it to be for the purpose of learning whether certain Gascons had eaten flesh in the town of Semiana on the eve of St Bartholomew last, concerning which he could state, that on the evening of the said day of St Bartholomew, being near the house of Pedro Ramonera, where there was a Gascon, whose name was unknown to the witness, which Gascon was an old man, corpulent, and by trade a brazier, there passed by the servant of the apothecary Rocabruna, of Tremp, whose name is unknown to witness. This servant of Rocabruna was heard by the deponent to say to the said Gascon, 'Ha, Lutheran! eat flesh on a fast day!' And deponent heard the said Gascon reply, 'Yes, I have eaten,'—but does not know whether this was heard by the said servant of Rocabruna. This is the truth according to the oath of the deponent; and, being read in his presence, is declared by him to be correctly recorded. Deponent further states that he does not make this declaration out of malice to any one. Secrecy being enjoined upon him, he promised to observe it; and being unable to write, I, the said Commissary, sign in his name.

The Licentiate,
JOAN TORROELLA, *Commissary*.

In the town of Semiana, at the same time, before me the said Licentiate and Commissary, Joan Torroella, appeared according to summons and swore formally to declare the truth, a man calling himself Pedro Aymar y Piteu, native and resident of the above town of Semiana, of age, as he stated, fiftysix years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it to be for the purpose of learning whether certain Gascons had eaten flesh in his house on the day of St Bartholomew last, concerning which he had been informed by his wife that the two Gascons referred to, had stopped at his house, and eaten meat on that day. He furthermore stated that the said Gascons, whose names he knew not, as he had never seen them before, being at supper at his house the evening previous, which was Wednesday, one of the said Gascons being an old, and the other a young man, both braziers,—the old man said to the wife of the deponent that he meant to have some meat the next day, which was St Bartholomew's, and wished her to cook some salted bacon. Whereupon deponent replied, they could not, as it was a fast. The old man answered that they meant to eat notwithstanding, which induced the deponent to believe that he had a license to eat meat, or had some infirmity; on which account he made no more remonstrances, and on the evening of the same day, returning home from his work, his wife informed him that the Gascons had eaten meat, and that the old man had gone away, and the young man was taken and carried to prison. This is the truth according to the oath of the witness, and being read in his presence is declared by him to be correctly recorded. Witness further states, that he does not make this declaration out of malice to any one; and secrecy being enjoined upon him, he promised to observe it. From his inability to write, I, the said Commissary, sign in his name.

The Licentiate,
JOAN TORROELLA, *Commissary*.

On the seventeenth day of September, one thousand six hundred and thirtyfive, at three o'clock in the afternoon, Pedro Ginesta, of Auvergne,

bishopric of St Flor, was by order of the Inquisitors put in the secret prison of the Inquisition and intrusted to the care of P. Fontanella, Alcayde of the said prison, who examined the prisoner and allowed him nothing prohibited by his instructions. The articles found upon him, were, two shirts, a pair of breeches, a purse, one *dinero* and three *sueldos*, which have been given in charge to the Camara de Pablo.

PEDRO FONTANELLA.

FIRST AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the eighteenth day of September, one thousand six hundred and thirtyfive, the Inquisitor, Doctor Domingo Abbad y Huerta being at his morning audience, ordered the prisoner to be brought from his cell; who, being produced, was sworn to declare the truth on the present as well as on all other occasions till the decision of his trial. He was also sworn to observe secrecy with respect to everything which he might see, hear, or learn, and everything which should befall him.

Questioned, what was his name, age, occupation, birthplace, residence, and the period of his arrestation by this Holy Office.

Answered, that his name was Pedro Ginesta, by occupation a brazier, native of the village of Orliach, bishopric of St Flor, in the kingdom of France, residing at Orcan, in Catalonia, having exercised the trade of a brazier in that country more than fourteen years, of age eighty years or thereabout, and that he was arrested by a Commissary of the Holy Office, yesterday, in the town of Salas.

Questioned, who was his father, grandfather, paternal and maternal, and wife; who were his uncles, brothers, and children; what were their occupations, birthplaces, and residences. [*Here follows a long account of the prisoner's relatives, in answer to the particulars specified.*]

Questioned, what was the origin and descent of his ancestors and collateral relatives, and whether any one of them had been punished or put under penance by the Holy Office of the Inquisition.

Answered, that all his relatives were old Roman Catholic Christians,^[13] and that no one of them had ever been punished or sentenced by the Holy Office up to the present day.

Questioned, if he was a baptized and confirmed Catholic, and made it a practice to attend mass, go to confession, and receive the sacrament at such times as are prescribed by the Holy Catholic Mother Church; at what time he last attended mass, and from whom he received the holy sacrament.

Answered, that he was a baptized and confirmed Christian, having by the grace of God been baptized in the church of Santanti, metropolitan of the suffragans of Caberna and other places, and that he knew himself to have been confirmed by a bishop named Panlaza in the city of Huerca in Arragon, or Poroteo, bishop of that kingdom, more than forty years since, in the cathedral; that he remembered the fact of the confirmation very well, being then of full age; that he hears mass every Sunday and holiday, except when he is travelling; that he confesses and communicates at every time fixed by the Holy Mother Church; that he has certificates to this effect; that he believes the last time he confessed was on Passion Week last, in the town of La Puente de Montania, to a priest of that church; that he does not remember the name of the person from whose hands he received the sacrament. The prisoner then made the sign of the cross, invoking the Father, Son, and Holy Ghost, and repeated the four prayers and general confession correctly in Latin, and stated that he knew nothing more of the christian doctrine.

Questioned, if he could write, or read, or had studied any science or faculty.

Answered, that he could neither write, nor read, nor had he studied any science or art.

Questioned, if he had ever left the kingdoms of Spain since his first arrival, or had any dealings with people of equivocal faith.

Answered, that he had exercised his trade of a brazier for more than sixty years, in the kingdoms of Catalonia and Arragon, visiting at times his home in France, where there are no Lutherans, nor any persons of equivocal faith.

Questioned, what were the events of his life.

Answered, that he was born, as above stated, in the village of Orliach, and remained with his father till twenty years of age assisting him in his

profession of a brazier; that he had passed his life in France, Arragon, and Catalonia, his father having brought him while a boy into this country, where he died, and left him, sixty years since, in the town of Erla, near Gea, in Arragon, working all this time in various places, where he became well known; that his wife had never been in Spain at any time.

Questioned, if he knew or conjectured the cause of his imprisonment.

Answered, falling on his knees, weeping, and beating his breast, that he had committed an offence against our Lord by eating bacon on the eve of St Bartholomew in the village of Semiana, and that it was true he had been told on the day previous, by the hostess of the house where it was done, that the next day was a fast, but not remembering this intimation, he had, while the hostess was gone out of the house to her oven, eaten of the same in company with a certain youth of fourteen or fifteen years of age, a native of the bishopric of Clermont in France, who had come to work with him two days before; and that while they were eating, the hostess returned and again reminded him that it was the fast of St Bartholomew, and they ought not to eat it, upon which they immediately abstained from eating; that they were both arrested and brought on the road to Barcelona under guard of one man, the youth with his hands tied; that on arriving near a wood he escaped notwithstanding the exertions made by the guard, who raised the neighbourhood to search for him; and if in this he had offended our Lord, he begged for pardon and mercy.

The prisoner was then informed, that, in this Holy Office, it was not customary to apprehend any person without sufficient information that he had said, done, or witnessed the commission of something really or apparently offensive against God our Lord, or against his Holy Catholic faith and evangelical law, taught and preached by the Holy Mother Roman Church, or against the just and free exercise of the Holy Office; consequently he was to understand that he was imprisoned on account of some such information, and he was admonished on the part of God our Lord, and the glorious and blessed Virgin Mary, to recollect himself and confess his offences without concealing anything relating either to himself or any other person, and without uttering false testimony against any one; by doing all which, his trial should be dispatched with all brevity, and decided with that mercy which is shown by the Holy Office to all those who confess freely; otherwise, justice should be executed.

Answered, that he had nothing more to say, and the above being read to him, he declared it to be the truth according to the oath which he had sworn, and that he had nothing to alter or diminish from what is therein contained, and with this admonition, to bethink himself well, and declare the truth, he was remanded to prison.

DR DOMINGO ABBAD Y HUERTA.

SECOND AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the nineteenth day of September, one thousand six hundred and thirtyfive, the Inquisitor, Doctor Domingo Abbad y Huerta being at his morning audience, presiding upon affairs of justice, ordered the above Pedro Ginesta to be brought out of prison, which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair which he was bound to divulge, with all truth, to discharge his conscience.

Answered, that he had nothing more to say.

The prisoner was then admonished on the part of God our Lord, &c. [*The whole repeated as above.*]

Answered, that he had nothing more to say; and being admonished to bethink himself well, and declare the truth, he was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

THIRD AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentieth day of September, one thousand six hundred and thirtyfive, the Inquisitor, Dr Domingo Abbad y Huerta being at his morning audience, ordered the above Pedro Ginesta to be brought from his prison, which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair which he was bound to divulge, in all truth, and to discharge his conscience.

Answered, that he had nothing more to say.

The prisoner was then informed that in the audiences which had already been given, he had been admonished on the part of God our Lord, &c. [*The whole repeated as before.*]

Answered that he had nothing more to say.

The prisoner was then notified that the Promotor Fiscal^[14] of this Holy Office had an accusation to bring against him, before which he would do well to declare the whole truth, as he had already been admonished, in which case, he would experience more fully the mercy which the Holy Office ever extends to those who confess freely; otherwise the Fiscal would attend and proceed to the accusation.

Straightway appeared Doctor Francisco Gregorio, Promoter Fiscal of this Holy Office, and presented the accusation, signed by himself, against the said Pedro Ginesta, making oath that it was not done out of malice; which accusation was as follows:—

ACCUSATION.

I, Doctor Francisco Gregorio, Fiscal of this Holy Office, appear before your Excellency, and accuse criminally, Pedro Ginesta, brazier, a native of the village of Orliach, bishopric of St Flor, in Ubernica, in the kingdom of France, resident in this principality, attached to the secret prison of the Inquisition, and now present,—stating that the said person, being a baptized and confirmed Christian, and enjoying the graces and benefits which such persons do and ought to enjoy, not having the fear of God before his eyes, but regardless of his own conscience and the justice administered by your Excellency, has committed offences against our Holy Faith, by saying and performing things which savour of the heretic Luther, in the manner following.

The said prisoner being in a certain part of the village of Semiana in the bishopric of Urgel on the fast of St Bartholomew last, in company with another certain person, did cause to be cooked a dish of bacon and onions; and, being reminded to take heed, for it was a fast, and such food was forbidden, replied by ordering the meat to be cooked, and in fact when the said meat was cooked, did proceed to eat the same, in company with the other person mentioned, and notwithstanding he was informed by another person while eating, that it was St Bartholomew's day, and a fast, at which time it was not allowed to eat such food, the said prisoner continued to eat the remainder of the said bacon.

Furthermore, the said prisoner being of a nation infected with heresy, it is presumed that he has on many other occasions eaten flesh on forbidden days, after the manner of the sect of Luther, and committed many other offences against our Holy Faith, besides knowing that others have committed the same offences, and the said prisoner having been admonished by your Excellency to declare the truth, has not done it, but has perjured himself.

For which reasons I entreat your Excellency that full evidence being given to my accusation, or to such a part of the same as shall suffice for the ends of justice in the decision of the present case, your Excellency will declare my accusation proved, and the said Pedro Ginesta guilty of the above

offences, imposing upon him the heaviest punishments fixed by statute upon the said offences, and ordering them to be executed upon his person and goods, as a penalty to himself and an example to others; and that the prisoner, if it be found necessary, be put to the torture, and that the same be repeated till he confess the whole truth both of himself and others.

And I formally swear that I do not bring this accusation out of malice, but solely to accomplish the ends of justice, which I now request at your hands.

DR FRANCISCO GREGORIO.

This accusation having been presented and read, the said Pedro Ginesta was formally sworn to declare the truth in answer to every interrogatory relating thereto. The accusation being read over, article by article, he answered as follows:—

To the head of the accusation, he answered that he was the same Pedro Ginesta whom the Fiscal accuses, but had never committed any offence against our Holy Catholic Faith, nor done, nor said anything which pertained to the sect of Luther or any other heresy.

To the first article he answered, confessing that he had eaten bacon and onions on the said eve of St Bartholomew, and that although it was true he had been reminded that it was a fast, he had forgotten it, and on being again told of it while at his meal he immediately left off eating; that the person who ate with him was a young man, son to Borbon Merchante; that he did not do the above act out of disrespect to the Church or its precepts, well knowing that it was forbidden to eat flesh on such days, which regulation he had observed throughout his life, and remained in the determination to observe, believing in all the doctrines taught by the holy Catholic Roman Church. Here the prisoner fell upon his knees and declared that he had offended through forgetfulness.

To the second article he answered, that he had never at any other time committed the same offence, nor had he concealed the truth as to this point, either respecting himself or his companion, being an obedient son of the Church.

To the conclusion of the accusation, he answered that even if he were put to the torture, he could not declare anything further, and that he had offended, not from any bad intention, but through forgetfulness, occasioned by his great age.

The above is the truth according to the oath of the prisoner, and being read in his presence, is declared by him to be correctly recorded.

The Inquisitor,
DR DOMINGO ABBAD Y HUERTA.

Before me—

MIGUEL RODRIGUEZ.

The Inquisitor then ordered him a copy of the accusation that he might, within three days, make arrangements for his trial and defence by conferring and agreeing with one of the lawyers who are counsel for those persons tried by the Holy Office, namely, Doctor Magrina, priest, and Micar Morato, giving the prisoner liberty to make choice of either. The prisoner made choice of Dr Magrina, on which the Inquisitor ordered him to be summoned. The audience then closed, and the prisoner being admonished was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE FOR COMMUNICATION OF THE ACCUSATION AND EVIDENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentieth day of September, one thousand six hundred and thirtyfive, the Inquisitor, Dr Domingo Abbad y Huerta being at his morning audience, ordered the above Pedro Ginesta to be brought from prison, which being done, and the prisoner present, he was

Questioned, if he remembered anything which he was bound to declare, according to the oath he had sworn.

Answered, that he had nothing more to say.

The prisoner was then informed that Dr Francisco Magrina, whom he had selected for his counsel, was present, with whom he might confer, and make arrangements for his defence.

Dr Francisco Magrina was then sworn *in verbo sacerdotis*, to defend well and faithfully the said Pedro Ginesta, to inform him if his case was not on the side of justice, to do everything which a good advocate is bound to do, and to preserve secrecy throughout.

Then were produced and read, the several confessions of the said Pedro Ginesta, made from the eighteenth of this month to the present time, with the accusation, and the answers of the prisoner. These he examined, and conferred with the prisoner respecting his case, counselling him, as the best

defence which could be made, to confess the whole truth, and if he had been guilty of any offence, to beg for pardon; by which means, he might obtain mercy.

The said Pedro Ginesta replied that he had declared the whole truth as appeared by his confessions, that beyond this he denied everything contained in the accusation, and in consequence begged to be acquitted and set at liberty.

The Inquisitor then ordered a copy of the above to be given to the Promoter Fiscal of the Holy Office, who declared, that, confining himself to what he had stated in his accusation and to the matter contained in the confession of the prisoner, he requested that they might proceed to the proofs. The Inquisitor replied that the cause should be judged definitively, and the proofs on both sides received *salvo jure impertinentium et non admittendorum*, according to the style of the Holy Office, and the same was notified to both parties.

The Promotor Fiscal then declared that he reproduced the testimony which had been received and registered against the said Pedro Ginesta in this Holy Office, which testimony he desired might be examined and ratified in form; and also that all other necessary investigations might be made and the testimony published; whereupon the audience closed, and the prisoner being admonished to bethink himself well, and declare the truth, was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE FOR THE PUBLICATION OF THE TESTIMONY.

In the Royal Palace of the Inquisition of Barcelona, on the sixth day of October, one thousand six hundred and thirtyfive, the Inquisitor, Dr Domingo Abbad y Huerta, being at his morning audience, ordered the above Pedro Ginesta to be brought from the secret prison, which being done, and the prisoner present, he was

Questioned, if he remembered anything which he was bound to declare according to the oath he had sworn.

Answered, that he had nothing more to say.

The prisoner was then informed that the Promotor Fiscal of the Holy Office had requested a publication of the testimony against him, before

which it would be well for him to declare the whole truth, as this would cause him to experience more benignity and mercy.

Answered, that he had nothing to add to his former confessions; that it was true that he had eaten bacon on St Bartholomew's eve, but had done it through ignorance, not knowing it to be a fast; that he begged pardon for his offence, having all the rest of his life conducted in a different manner.

Straightway appeared the Promoter Fiscal and requested publication of the testimony against the said Pedro Ginesta according to the style of the Holy Office. The Inquisitor ordered the publication to be made, concealing the names of the witnesses and other circumstances which might cause their persons to be known, according to the orders and style of the Holy Office, which was done in the manner following.

Publication of the testimony against Pedro Ginesta, native of the village of St Quinti, diocese of St Flor, in the kingdom of France.

A certain witness, sworn and qualified in the proper time and manner in the town of Tremp, bishopric of Urgel, on a certain day of the month of August, in the present year sixteen hundred and thirtyfive—declares, &c. [*Here follows the testimony of Joan Compte as given before.*]

Another witness sworn and qualified in the proper time and manner in the town of Semiana, &c. [*Here follows the testimony of Geronima Aymar.*]

Another witness &c. [*All the other testimony repeated.*]

The above testimony having been published, an oath was exacted from the prisoner to declare the truth in answer to the testimony aforesaid, article by article, and the same having been read to him *de verbo ad verbum*, he answered as follows;—

To the first article he replied that it was true he had eaten the bacon, but had done it through ignorance, having forgotten that it was St Bartholomew's eve, as he had already confessed, and that on being apprised of the same, he had left off eating.

To the second article he answered that the hostess might possibly have said what she states, but that he had no recollection of it.

To the third article he answered that he repeated his former declaration that he was a Catholic Christian, and had he known it to be the fast of St Bartholomew, should not have eaten upon any account.

To the fourth article he answered by referring to the confession which he had already made, and declared that he did not remember having been warned by any one.

To the fifth article he answered by referring to his confession, and declared that beyond this he denied everything sworn to by the witness.

The above is the truth according to the oath of the prisoner, and the same having been read in his hearing is declared by him to be faithfully recorded,

DR DOMINGO ABBAD Y HUERTA.

Before me—

DAMIAN FONOLLEDA, *Sec'y*.

The Inquisitor then ordered the prisoner to be furnished with a copy of the above publication, that he might, with the assistance of his counsel, make arrangements for his defence, whereupon the prisoner was admonished, and remanded to prison.

AUDIENCE TO COMMUNICATE THE PUBLICATION.

In the Royal Palace of the Inquisition of Barcelona, on the ninth day of October, one thousand six hundred and thirtyfive, the Inquisitor, Dr Domingo Abbad y Huerta being at his morning audience, ordered the above Pedro Ginesta to be brought from prison, which being done, and the prisoner present, he was

Questioned, if he remembered anything which he was bound to declare in discharge of his conscience, according to the oath he had sworn.

Answered, that he had nothing more to say.

The prisoner was then informed that Doctor Francisco Magrina, his counsel, was present, with whom he might communicate and take measures for his defence. The publication of the testimony against the prisoner, with his answers to the same, were then read to the said Dr Francisco Magrina, who proceeded to confer with the prisoner about his defence. Having done this he received from the hands of the prisoner a sheet of paper, upon which he drew up articles of defence which were then read to the prisoner and he declared that he made a formal presentation of the same. Here follows the defence.

DEFENCE.

‘Although Pedro Ginesta, a native of France, and by trade a brazier, has no necessity for any defence against the charges brought against him by the Promotor Fiscal of this Holy Office, as may be clearly seen from the testimony; nevertheless, for greater security, and with an express declaration that his impeachment of the testimony of the witnesses against him, is not occasioned by a desire to injure them, but solely to defend himself, he states the following.

‘1st. He confesses that he has committed an offence, but denies that he ought to receive any ordinary or extraordinary punishment for the same, which is the truth, because,

‘2d. Although it be the fact that he ate meat on St Bartholomew’s eve last, yet it is not the fact that he did it through malice, or from the intention to transgress the ordinances of the Church; which declaration is the truth.

‘3d. The said Pedro Ginesta has, in consequence of his occupation, spent his life in travelling from one place to another, attending mass where he happened to be on Sundays and holidays, not being able to give more attention to the duties of religion; and in consequence has been ignorant of the fast days, by not hearing them announced; which is the truth.

‘4th. For this reason, and being ignorant that a fast was prescribed on St Bartholomew’s day, he declares he should not have eaten, had he known the same; which is the truth.

‘5th. Although it be true he was informed that he ought not to eat flesh at that time, as it was St Bartholomew’s eve, yet those present suffered him to eat, notwithstanding, and made no remonstrances; which is the truth.

‘6th. The said Pedro Ginesta, besides being a person of simple understanding, is very aged, being more than eighty years old, at which time the memory is apt to fail, as old age is a *species infirmitatis*; which is the truth.

‘7th. The said Pedro Ginesta did not offend through malice, but solely from ignorance, *quod de jure excusari solet, et verum*.

‘8th. The said Pedro Ginesta, although a Frenchman by birth, is a good Christian, and, as such, has always punctually adhered to every obligation by which a good Christian is bound; which is the truth.

‘9th. On the above accounts, the said Pedro Ginesta ought to be acquitted by your Excellency, and released from the prison in which he is at present confined, experiencing mercy at your hands; *vel alias*,

‘10th. Ponit quod omnia et singulos jure vero, super quibus jus diei et justitiam ministrari postulat, et verum.

F. MAGRINYA.

‘11th. The said Pedro Ginesta offers the above in his defence, and concludes by asking for mercy.

F. MAGRINYA.’

This being presented to the Inquisitor, was by him ordered to be put on file. It was likewise ordered that the same be notified to the Promoter Fiscal of this Holy Office; whereupon the audience closed, and the prisoner was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

SENTENCE.

In the Royal Palace of the Inquisition of Barcelona, on the sixteenth day of October, one thousand six hundred and thirtyfive, at the morning audience, present, the Inquisitor, Dr Domingo Abbad y Huerta presiding on his own part, and on the part of the Ordinary of the bishopric of Urgel, and Dr Augustin Fernandez Lopez, Vicar General of the bishopric of Barcelona. Having examined a trial carried on in this Holy Office, against Pedro Ginesta, a Frenchman by birth, native of St Quinti or Orliach, bishopric of St Flor, in Ubernica, a resident in Catalonia, in the district of Pallas, arrested in the town of Tremp, and now in the secret prison of this Holy Office, ordered, that in virtue of this act, the said prisoner be reprehended, and admonished, and forthwith released from prison.

Before me—

MIGUEL RODRIGUEZ, Sec’y.

In the same audience, the said Pedro Ginesta was ordered to be brought from prison, which being done, and he present, the Inquisitor, Abbad y Huerta reprehended and admonished him, in conformity to the above sentence. The prisoner received the correction with humility, and promised amendment; which I, the Secretary, hereby certify.

MIGUEL RODRIGUEZ.

Straightway, in the same audience, the prisoner was sworn to declare the truth; and he was

Questioned, &c.

Answered, that he had nothing more to say, either with respect to himself or others, in discharge of his conscience, nor anything relating to what had been said or done in the prison of this Holy Office against the honor, dignity, or secrets of the same or its ministers, or with respect to the custody of the prisoners therein contained; that he had not witnessed any communication carried on among them, or knew that any one had spoken to another; that he has no communication from them to carry to any one, and that the Alcayde and Steward have faithfully discharged their duties.

He was then commanded, by virtue of the oath he had sworn, and under penalty of complete excommunication, to observe perfect secrecy with respect to everything which had befallen him relating to his trial, and with respect to all which he had seen, heard, or learned in any manner while in prison, and not to reveal the same to any person, under any shape whatever; all which he promised to observe, and being unable to write, I, the Inquisitor, Abbad y Huerta, sign in his name; whereupon he was dismissed.

DR DOMINGO ABBAD Y HUERTA.

Before me—

MIGUEL RODRIGUEZ.

On the 19th day of the same month, the Secretary Rodriguez dispatched a letter to the Commissary of Salas in the name of the Tribunal, ordering

him to restore to the prisoner, on account of his poverty, the instruments of his trade and his other property. The letter was sent by the prisoner.

RODRIGUEZ.

TRIAL OF JUAN DURAN,

FOR BLASPHEMY AND WITCHCRAFT.

I, the Fiscal of this Holy Office, state that from information received, it is made manifest that Juan Duran, blacksmith, a native of Manresa, and a resident of Villaredonda, in the bishopric of Barcelona, has committed offences against our holy faith; on which account, I purpose to bring a formal accusation against him. For which reasons I request your Excellency to order the said person to be arrested and confined in the secret prison of this Inquisition, for the purpose of accomplishing fully the ends of justice.

DR FRANCISCO GREGORIO.

In the Royal Palace of the Inquisition of Barcelona, on the tenth day of December, one thousand, six hundred and thirtytwo, the Inquisitors, Dr Bernardo Luis Cotoner and Dr Domingo Abbad y Huerta, being at their evening audience,—having examined the testification against Juan Duran, blacksmith, a resident of Villaredonda in the bishopric of Barcelona; ordered that the above person be arrested and confined in the secret prison of this Inquisition, and that his trial be instituted in form.

Before me—

MIGUEL RODRIGUEZ.

TO FRANCISCO COLL, COMMISSARY.

On the receipt of this, you will proceed to take prisoner, on the part of this Holy Office, Juan Duran, blacksmith, a resident of this town, for some days past, and formerly of Villaredonda. He is a tall, thin faced, person; pale, with a chestnut beard, and meanly dressed; having secured him, you will dispatch him, under good attendance, to this Holy Office, by the hands

of the Familiars, in such a manner that he cannot escape, taking measures in all the places through which he may pass, to let it be known he is apprehended by this Inquisition.

Also, if occasion should offer, you will sieze so much of the prisoner's property, if it be found in that town, as shall amount to eight ducats, for the expense of his maintenance, which you will transmit by those who have him in custody.

This letter is to be returned, with a statement of all that may be done agreeably to the above orders, with respect to which we trust in the guidance of our Lord.

Barcelona, December 14th. 1632.

The prisoner being taken, you will inspect his person and his lodgings, in order to secure a book, about the size of the hand, in which, it is confidently believed, there are certain prayers and superstitious matters. This book you will despatch to us.

DR BERNARDO LUIS COTONER,
DR DOMINGO ABBAD Y HUERTA.

By order of this Holy Office—

MIGUEL RODRIGUEZ, *Sec'y*.

TO THE MOST ILLUSTRIOUS INQUISITORS OF THE PRINCIPALITY OF CATALONIA.

I received the orders of your Excellencies and put them in execution. I learned that Juan Duran had left this town of Villaredonda a month since, and that he labored at times in repairing the bridge of Armentera, in the archbishopric of Tarragona, whither I sent after him and had him siezed by a Familiar of that place. I have examined him, and found his book and papers which, you will receive along with this. No more cash was found upon him than three *reales*, which I also transmit by the Familiar who has him in custody. This is all which could be obtained of his property. The prisoner I despatch to your Excellencies according to order, and remain at the service of your Excellencies, to whom may our Lord grant many happy years.

Villaredonda, Dec. 24th, 1632.

FRANCISCO COLL, *Rector of Villaredonda,
and Commissary of the Holy Office.*

In the town of Valles Campo, in the archbishopric of Tarragona, on Saturday, the twentyseventh day of November, one thousand six hundred and thirty two, at evening, appeared, without summons, before Dr Pablo Pasqual Marquez, Presbyter Commissary of the Holy Office, and swore to declare the truth, a person calling himself Pedro Oriola, apothecary, resident of the town of Valles, of age, as he stated, fortyfour years, or thereabout; which person, in discharge of his conscience, declared and denounced the following.

That about fifteen days since, there visited at his house, Juan Bafforell, and one Marcal, a gardener, inhabitants of the said town; and that among other things they told him they had heard a certain person (whose name and birth place the deponent is ignorant of, but knows him by sight, and that he is a blacksmith, working with Pablo Llaurador of this town, and came hither in company with a Frenchman, who officiated as a physician, and a short time since had been imprisoned by the Holy Office), say, that he possessed a book, which, if it were thrown into a fire, along with a crucifix, would remain unhurt, while the crucifix would be consumed.

The above is the truth, according to the oath of the deponent, and being read in his hearing, is declared by him to be correctly recorded. Deponent further states that he does not make this declaration out of malice to any one, but solely to discharge his conscience, and declares that he will keep the whole secret.

Signed,

PERO ORROLA.

Before me—

GERONYMO JOAN ROSSELLON,
Presbyter Notary of the Holy Office.

In the town of Valles, on Sunday, the twentyeighth day of the said month and year, in the evening, before the said Commissary, appeared, according to summons, and made oath to declare the truth, Juan Bafforell, a native and inhabitant of the town of Valles, of age, as he stated, fortyeight years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he neither knew nor conjectured.

Questioned, if he knew, or had heard that any person had said or done anything, which was, or appeared to be contrary to the Holy Catholic Faith and Evangelical Law preached and taught by the Holy Mother Catholic Roman Church, or against the proper and free jurisdiction of the Holy Office.

Answered, that he knew nothing of the matter, but the following. About fifteen days since, he was at the house of Mosen Pedro Oriola, apothecary, in company with the said Oriola, Bernardo Serda, innkeeper, and Salvador Marcal, gardener, and in the course of the conversation the said Marcal observed that a certain man, whom the deponent knew by sight, but not his name, or where he belongs, a blacksmith, working with Pablo Llaurador, of this town, had said, in his presence, in the tavern of the abovementioned Bernardo Serda, that he possessed a book or books of such quality and power, that if the said book or books were thrown into a fire along with an image of Christ crucified, the Christ would be burnt, and not the book. Further the deponent knoweth not.

The above is the truth according to the oath of the deponent; and being read in his presence, is declared by him to be correctly recorded. Deponent further states that he has not made this declaration out of malice, but solely to unburthen his conscience; and, moreover, promises secrecy; being unable to write, I, the said Commissary sign in his name.

DR PABLO PASQUAL MARQUEZ, *Commissary*.

Before me—

GERONYMO JOAN ROSSELLON,
Presbyter Notary of the Holy Office.

In the town of Valles, on Tuesday the thirtieth of the same month and year, before the said Commissary, appeared according to summons, and swore formally to declare the truth, a person calling himself Bernardo Serda, innkeeper, a native and inhabitant of the said town of Valles, of age, as he stated, twentyfour years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it to be for the purpose of ascertaining the substance of what he had stated on several occasions; in relation to which, the facts were, that about fifteen or thirty days since on returning to his house, he was informed by his wife and another woman belonging to Vique, who lodged at his house, and who went about the country curing diseases, that they had heard a certain stranger, (a blacksmith, working with Pablo Llaurador, but whose name or birthplace they did not know although they knew him by sight), declare, that he was a doctor who cured all disorders, that he was the God of the land, and that he had a book, which, being put into the fire along with a crucifix, would remain unhurt, while the crucifix would be consumed. The above was heard by the women, but not by the deponent. The said person also stated that he was circumcised as Jesus Christ was, which being heard of by the deponent he was greatly shocked, and declared that had it been uttered in his hearing, he would have cudgelled him out of doors.

The above is the truth according to the oath of the deponent, and being read to him he declares it to be correctly recorded. He further states that he does not make this declaration out of malice, and promises to observe secrecy. Not being able to write, I, the said Commissary, sign in his name.

DR PABLO PASQUAL MARQUEZ, *Commissary*.

Before me—

GERONYMO JOAN ROSSELLON, *Presbyter Not'y*.

In the town of Valles, on Thursday, the second day of December, one thousand six hundred and thirtytwo, in the afternoon, before the said Commissary, appeared according to summons, and swore formally to

declare the truth, a person calling himself Pablo Llaurador, blacksmith, an inhabitant of the town of Valles, of age, as he stated, fiftyfive years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it to be for the purpose of investigating the following matter. There was a person living with him who assisted him in his trade. This person called himself Juan Duran, and said he was a native of Manresa. The said person declared a few days before the feast of All Saints, in the presence of the deponent, Pablo Vicens, and others whose names were forgotten, that he had a book containing a prayer of such efficacy, that, if it were put into a fire along with a crucifix, this last would be consumed before the book, which words being uttered with much earnestness by him, deponent and the others reprehended him, and advised him to abstain from such speeches, as they were scandalous, and should they come to the knowledge of the Inquisition, would bring some punishment upon him. The above person repeated his assertions several times, but at length desisted and appeared somewhat alarmed at the rebukes they gave him, turning pale. At other times this person had declared to the deponent that he was very skilful in curing disorders, and that the Holy Virgin del Rosario, had twice appeared to him, giving him power to cure all diseases, and bestowed upon him her benediction, all which deponent laughed at, and ascribed to the speaker's want of understanding; but on hearing the assertion respecting the book, he became offended, and dismissed him from his house. Whither he went on his departure deponent did not know, only that he stated his intention soon to return. The book abovementioned he had shown to the deponent many times. It was a small thing, about the size of the hand, but thick, and was read by the possessor in great secrecy, as if he were at prayer. These, and other things, it was said, were known to Jayme Carbonell, a young man, son to the widow Carbonell, who keeps an inn. The person in question was a tall, thin, pale faced man, with a chestnut beard, and meanly dressed.

The above is the truth according to the oath of the deponent; and being read in his presence, is declared by him to be correctly recorded. He further states that he does not make this declaration out of malice, and promises to observe secrecy. Not being able to write, I, the said Commissary, sign in his name.

DR PABLO PASQUAL MARQUEZ, *Commissary*.

Before me—

GERONYMO JUAN ROSSELLON, *Presbyter Not'y*.

In the town of Valles, on the same day, month, and year, before the said commissary, appeared according to summons, and swore formally to declare the truth, a person calling herself Esperanza Serdana, wife of Bernardo Serdana, innkeeper, an inhabitant of the town of Valles, of age, as she stated, thirty years or thereabout.

Questioned, if she knew or conjectured the cause of her being summoned to appear.

Answered, that she neither knew or conjectured.

Questioned, if she knew or had heard that any person had said or done any thing which was, or appeared to be, contrary to the Holy Catholic Faith and Evangelical Doctrine taught and preached by the Holy Mother Roman Catholic Church, or against the proper and free jurisdiction of the Holy Office.

Answered, that all she knew relating to such matter was the following. About six weeks since, while she was waiting upon the guests in her tavern, and had just gone out of the kitchen into the room where the guests were, she observed them crossing themselves and expressing great wonder, crying 'Jesu!' 'Jesu!' Upon which she demanded what was the matter, and they told her, (she could not tell which of them, as there were so many present) that a man, then in the room, whose name she did not know, but only that he was a blacksmith and one she had never seen before, had said he had a book, which, thrown into a flaming fire along with a crucifix, would be preserved rather than this last, which expressions being heard by the deponent, she did not fail to express her astonishment, by crying 'Jesu!' and then went out of the room. The persons present also told her that the above person had said he was circumcised and had shed his blood as well as Jesus Christ our Lord.

The above is the truth, according to the oath of the deponent, and being read in her presence, is declared by her to be correctly recorded. She further

states that she does not make this declaration out of malice, and promises secrecy. Being unable to write, I, the said Commissary, sign in her name.

DR PABLO PASQUAL MARQUEZ, *Commissary*.

Before me—

GERONYMO JUAN ROSSELLON, *Presbyter Not'y*.

In the town of Valles, on Saturday, the fourth day of December, one thousand six hundred and thirtytwo, in the afternoon, before the said Commissary, appeared according to summons, and swore to declare the truth, a person calling himself Pablo Vicens, peasant, a native and inhabitant of the said town, of age, as he stated, thirty years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it to be for the purpose of making inquiry about the following matter. About fifteen days before the feast of All Saints, he was informed by Bernardo Serda, innkeeper, an inhabitant of this town, that a man working with Pablo Llaurador, blacksmith of this town, had said before his wife and the guests in the inn, that he had in a certain book, a prayer of such efficacy that, were the book thrown into a blazing fire, along with a crucifix, the book would be preserved and the crucifix burnt; at which the deponent was much shocked, and went home. About six or eight days after this, the deponent went to the house of Pablo Llaurador, and found there the man abovementioned, whom he believes they called Juan Duran. Deponent spoke to this person, asking him what he meant by making such a speech as the above, and advised him to take care what he said, lest he got punished for it. The said Juan Duran answered, that he had made the above assertion, and would repeat it, which he did. The deponent told him he had been informed by Bernardo Serda of his speech about the book, and other assertions of his; namely, that the Holy Virgin del Rosario had appeared twice to him, and declared that he possessed the power to cure all diseases, giving him her benediction; for all which the deponent reprehended him in such a manner, that they had nearly come to blows, he having seized a blacksmith's sledge for the purpose of throwing at the deponent, but desisted, as every one present exclaimed against him.

Deponent was presently called away, and left the house, and a day or two after, on inquiring for the said person, of Pablo Llaurador, was informed that he had left him the same day. Deponent thinks he has since seen him at Villaredonda, where he believes he may be found at present.

The above is the truth, according to the oath of the deponent; and being read in his presence, is declared by him to be correctly recorded. He further states that he has not made this declaration out of malice, and promises secrecy. Not being able to write, I, the said Commissary sign in his name.

DR PABLO PASQUAL MARQUEZ, *Commissary*.

Before me—

GERONYMO ROSSELLON, *Presbyter Not'y*.

In the town of Valles, on Sunday, the fifth of December, one thousand six hundred and thirtytwo, before the said Commissary appeared and swore to declare the truth, a person calling himself Jayme Carbonell, native and inhabitant of the town of Valles, of age, as he stated, sixteen years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he neither knew nor conjectured.

Questioned, if he knew or had heard that any person had said or done anything which was, or appeared to be contrary to the Holy Catholic Faith and Evangelical Doctrine taught and professed by our Holy Mother Roman church, or against the proper and free jurisdiction of the Holy Office.

Answered, that all he knew respecting this matter, was the following. About six weeks since, he met at his home, a man whom they called Juan, (his other name he did not know) and being in conversation with him, alone, by the fireside, the said person told him he had a book worth fifty ducats; that he knew how to cure all diseases simply by looking at the book, and that by the help of it he could even restore a dead person to life; that if people knew his great powers he should get to be very rich, and that he had been circumcised with wounds and blood like Jesus Christ; at all which the deponent laughed, and said to himself, 'No doubt this man is crazy.' The person referred to, worked at a blacksmith's trade with Pablo Llaurador, and slept at the tavern of the deponent's mother, while he was in town.

The deponent was then informed that besides what had already been related, this tribunal had received intimation that the said Juan had stated he had a book, which, being cast into a fire along with a crucifix, would remain unhurt, while the crucifix would be consumed; and that the Holy Virgin del Rosario had twice appeared to him, giving him her benediction and granting him the power to cure all diseases. He was admonished to bethink himself, and declare the whole truth.

Answered, that he never heard him utter such a thing, and knew of nothing more which the above person had said.

This is the truth according to the oath of the deponent, and being read in his presence, is declared by him to be correctly recorded. He further states that he does not make this declaration out of malice, and promises secrecy.

Signed— JAUME CARBONELL FADRI.

Before me—

GERONYMO JUAN ROSSELLON, *Presbyter Not'y.*

RATIFICATION OF THE PRECEDING TESTIMONY.

In the town of Valles Campo, archbishopric of Tarragona, on Friday, the twentyfirst day of January, one thousand six hundred and thirtythree, in the afternoon, before Dr Pablo Pasqual Marquez, Presbyter Commissary of the Holy Office, in the said town of Valles, appeared Pedro Oriola, apothecary, an inhabitant of the said town, of age, as he stated, forty years or thereabout, and swore to declare the truth, in presence of the honest and religious persons, the Reverend Jaume Busquers and Pablo Fonolleda, Presbyter Beneficiaries in the parochial church of the said town; which persons swore to observe secrecy.

Questioned, if he remembered having gone before any justice, and given his deposition against any person concerning religious matters.

Answered, that he remembered having deposed before the said Dr Pablo Pasqual Marquez, Commissary of the Holy Office, against a certain stranger, accompanied by a French doctor who had been imprisoned by the Holy Office. The substance of this deposition he repeated, and requested it to be read.

He was then informed that the Promotor Fiscal of the Holy Office presented him as a witness in an action which he had commenced against the above person, whose name it was ascertained was Juan Duran. He was ordered to give attention while his deposition was read, and if he found anything to alter or add, to do it in such a manner as to declare the whole truth, for his present declaration might be of service to the said Juan Duran. The deposition was then read *de verbo ad verbum*, which the said Pedro Oriola having heard and understood, he declared it to be his testimony, and that it was correctly recorded; that he had nothing to add or amend, but was willing to repeat the whole anew. He was again, under oath, enjoined secrecy, which he promised. The whole I sign for him.

PEDRO ORIOLA, *Apothecary*.

Before me—

GERONYMO JUAN ROSSELLON, *Presbyter Notary
of the Holy Office*.

[*Here follows, in the original, the ratification in the same manner of all the other testimony.*]

In the town of Valles, on the day, month, and year above specified, before the said Commissary, appeared, according to summons, and swore formally to declare the truth, a person calling himself Juan Llaurador, blacksmith, an inhabitant of the said town, of age, as he stated, twentyone years, or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he neither knew nor conjectured.

Questioned, if he knew or had heard that any person had said aught which was, or appeared to be contrary to our holy Catholic Faith, and Evangelical Doctrine professed and taught by the holy Mother Roman Catholic Church, or against the proper and free jurisdiction of the Holy Office.

Answered, that on a certain day, shortly before the feast of All Saints, Pablo Vicens came to his house, where his father, Pablo Llaurador, himself,

and an apprentice were at work, with another person, whose name deponent did not know, but noticed that he spoke hardly a word. These persons being together, the said Pablo Vicens observed that he was astonished and grieved that there existed a man who could say he had a book, which, being thrown into a fire with an image of Christ, the book would be saved, and the Christ burnt. Upon which he was answered by the person abovementioned, who called himself Juan Duran, and was a native of the city of Manresa, that he was the man whom he meant, but that his assertion was only that the Christ would be consumed before the prayer contained in the book, if the Christ were not consecrated. At this they all reprimanded him, and declared that a simple representation of Christ crucified was more powerful than his book or prayer. The said Juan Duran, being thus contradicted and reproved by every one, was silent, and left the place. The deponent also heard the said Juan Duran say, in conversation, that he knew more than the doctors; that the Virgin, Our Lady del Rosario had appeared to him and given him her benediction, and that by her assistance he could cure better than the doctors, and do anything better than other persons. The deponent also heard Jayme Carbonell say, that Juan Duran had declared, in his presence, that he was next to God. He has also heard Juan Duran read or recite out of a little book, as large as the hand, at which all the family laughed. The said book the deponent has seen.

The above is the truth, according to the oath of the deponent, and being read in his presence, is declared by him to be faithfully recorded. He further states that he does not make this declaration out of malice, and promises secrecy. Being unable to write, I, the said Commissary, sign in his name.

DR PABLO PASQUAL MARQUEZ, *Commissary*.

Before me—

GERONYMO JUAN ROSSELLON, *Presbyter Not'y
of the Holy Office*.

CALIFICACION. [\[15\]](#)

A certain person, native of this principality, has stated, in conversation, two or three times, that he possessed a book containing a prayer of such

efficacy, that if the book were thrown into a fire along with a crucifix, this last would be consumed before the book; which assertion being repeated by him with great earnestness, he was reprov'd for it, and told among other things, that if the Inquisition knew it, he would be punished, which silenced him after some time. The abovementioned book he exhibited several times.

2d. The same person declared on another occasion, that he was very skilful in curing disorders; that the Holy Virgin del Rosario had appeared to him and empowered him to heal diseases, and given him her benediction.

3d. The same person on another occasion declared that he had a book which he would not sell for fifty ducats, as by merely looking at it he could cure any disease, and even restore a dead person to life; that if people knew his great powers, he should grow very rich; and that he was circumcised with wounds and blood like Jesus Christ.

In the Royal Palace of the Inquisition of Barcelona, on the tenth day of December, one thousand six hundred and thirtytwo, being present at the afternoon audience, the Inquisitors, Dr Bernardo Luis Cotoner, Dr Domingo Abbad y Huerta, Father Vincente Navarro, Father Martin Perez and Geronymo Vidal, Jesuits and Calificadores of this Holy Office,—and having examined the above propositions, declared, unanimously, that the

1st, is a superstitious compact with the devil, and the comparison of the book to the figure of Christ a blasphemy; the

2d, vain and superstitious; and the

3d, is a superstitious imposture; and the assertion of being circumcised, one which creates suspicions of enmity to our Holy Faith.

VICENTE NAVARRO, *Jesuit*.

MARTIN PEREZ, *Jesuit and Lecturer
in Theology*.

GERONYMO VIDAL, *Jesuit*.

Before me—

MIGUEL RODRIGUEZ.

FIRST AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the tenth day of January, one thousand six hundred and thirtythree, the Inquisitor, Dr Bernardo Luis Cotoner, being at his morning audience, ordered to be brought from the secret prison, a certain person, who, on his appearance, was formally sworn to declare the truth in this audience and all others, till the conclusion of his trial, and to keep secret whatever he might see or hear, and everything which should befall him, concerning his trial.

Questioned, what was his name, birthplace, age, occupation, and the date of his imprisonment.

Answered, that his name was Juan Duran, a native of the city of Manresa, in the bishopric of Vique, of age, thirtyone years, or thereabout, by trade a blacksmith and farrier, and that on the day of the Innocents, he was arrested, and put in the prison of the Holy Office.

Questioned, who was his father, and wife; who were his grandfathers and uncles, paternal and maternal; his brothers and children; what were their birthplaces, residences, occupations, &c.

Answered, [*Here follows a long account, in reply to the above queries.*]

Questioned, of what lineage and stock were his ancestors, and collateral relatives; and if they, or any one of them, or himself, had ever been imprisoned, put under penance, absolved, or condemned by the Holy Office of the Inquisition.

Answered, that they were all old Christians of pure blood, and that he had never heard or understood that any one of them had been imprisoned, put under penance, absolved, or condemned by the Holy Office of the Inquisition; that he had never been imprisoned by the Holy Office till the present occasion.

Questioned, if he was a baptized and confirmed Christian, and made it a practice to attend mass, go to confession, and communicate, at the times fixed by the Holy Mother Church.

Answered, that he was a Christian, and was baptized, according as he had heard from his parents, in the cathedral church of Manresa, but did not know the name of the bishop who confirmed him; that he made it a practice to hear mass, confess, and commune, at the times prescribed by the holy Mother Church, and that his last confession was in the town of Valles

Campo de Tarragona, in the month of October last, on the day of Our Lady del Rosario of the fleet of Don John of Austria, which confession was made to a Carmelite friar, of the convent of that city, whose name he did not know; that he received the holy sacrament from the hands of the same Friar; that he had also confessed and received the sacrament during the Lent of the last year, in the church of Igualada, before a priest belonging there, whose name he did not know; and that he had a certificate to this effect in his possession, when he was taken to prison.

Here he crossed himself, repeated the Paternoster, Ave Maria, and Credo in Latin, the Salve Regina, the ten commandments, the seven deadly sins, and the general confession in Catalan, all correctly, and declared he knew nothing more of the christian doctrine.

Questioned, if he could write or read, or had ever studied any science or faculty.

Answered, that he could read, but badly, having taught himself. That he had never studied any art, and could not write.

Questioned, if he had ever been out of the kingdom of Arragon, and with what persons.

Answered, that he had once visited the kingdom of Granada, but not in company with any person; and that he had never had communication with people of suspicious faith.

Questioned, what were the events of his life.

Answered, that he was born in the city of Manresa, as aforesaid, and brought up in the house of his father, till the age of sixteen years, when he was sent to the town of Igualada, to Maestre Ando, a blacksmith and farrier, with whom he staid four months, learning his trade; that he afterwards resided in several places in Catalonia, and then visited Arragon and Granada, as above stated, made no long stay, but returned hither about two years ago; that lately he had been dwelling in the village of Pont de Armenteria, Campo de Tarragona, where he was seized by the Holy Office and brought to prison.

Questioned, if he knew or conjectured the cause of his being arrested and confined in the prison of the Holy Office.

Answered, that he knew not, nor could conjecture, unless it was for this; he had often cured persons of fevers and other disorders, with rosemary water, flor vitæ, rue, &c., which art he had learned from God and the holy

Mary our Lady, from whom he had received a particular gift for this purpose.

Questioned, in what manner, and at what time he had received this gift.

Answered, that he had received it at two years of age, having been born with a mole on his neck and two others on the left hip; that he had been sick in his youth for ten years or more with great lameness, and had entreated God and the Virgin to restore him to health, and grant him the power to cure others, that he might in this way earn his living.

Questioned, what reason he had for believing that God and our Lady had given him the above power.

Answered, that he was led to believe it from the good success which had accompanied his attempts to perform the abovementioned cures, which had been effected in the case of many persons whose names he did not remember, and from whom he had never received any pay but what they gave him out of charity; that if on the above account any testimony had been given against him, he supposed this to be the cause of his imprisonment by the Holy Office, although he was not conscious of ever having committed any offence against our Lord, nor knew any other reason for his being imprisoned.

The prisoner was then informed that in this Holy Office it was not customary to imprison any person without sufficient information that he had committed, or seen committed, some act which was, or appeared to be contrary to our holy Catholic Faith and Evangelical doctrine, which is taught and professed by the Holy Mother Roman Catholic Church, or against the proper and free jurisdiction of the Holy Office; for which reason he was to understand that it was in consequence of some such information that he had been apprehended, and on this account he was exhorted on the part of God our Lord and his glorious and blessed mother, the Virgin Mary, to bethink himself well, and confess the whole truth. Whereupon he was remanded to prison.

SECOND AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the eleventh day of January, one thousand six hundred and thirtythree, the Inquisitor, Dr Bernardo Luis Cotoner being at his morning audience, ordered the above Juan Duran to be brought out of prison; which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair, which he was bound to state according to his conscience.

Answered, that he had nothing more to say.

The prisoner was then informed, that he had been already in a former audience exhorted in the name of our Lord, and his glorious and blessed mother, the Virgin Mary, to bethink himself well, and unburthen his conscience by declaring the whole truth respecting all which he had done, said, seen, or heard, offensive against God, or contrary in reality or appearance to his Holy Catholic Faith and Evangelical Doctrine, taught and professed by the Holy Mother Roman Catholic Church, or against the proper and free jurisdiction of the Holy Office, without testifying anything false. By following this direction, he would demean himself like a true Catholic Christian, and would have his trial despatched with all possible brevity and mercy; but if not, justice should be executed upon him.

Answered, that he had nothing more to say. He was then admonished and remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

THIRD AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twelfth day of January, one thousand six hundred and thirtythree, the Inquisitors, Dr Bernardo Luis Cotoner, and Dr Domingo Abbad y Huerta, being at their morning audience, ordered the aforesaid Juan Duran, to be brought out of prison; which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair, which he was bound by his conscience to declare.

Answered, that he had nothing more to say.

The prisoner was then informed, &c. [*The whole repeated as above.*]

Answered, that he had nothing more to say.

He was then informed that the Promoter Fiscal of this Holy Office had an accusation to bring against him, before which he would do well to declare the whole truth, and unburthen his conscience, otherwise the Promoter Fiscal would appear and proceed to his trial.

Answered, that he had nothing more to say.

Straightway appeared Dr Francisco Gregorio, Promotor Fiscal of this Holy Office, and declared that he presented an accusation, signed with his name, against the said Juan Duran, taking an oath that he did not present the same through malice. The accusation was as follows:—

ACCUSATION.

I, Dr Francisco Gregorio, Fiscal of this Holy Office, appear before your Excellencies, and accuse criminally, Juan Duran, blacksmith, a native of the city of Manresa, attached to the secret prison of this Inquisition, and now present; inasmuch as the said person, being a baptized and confirmed Christian, and in the enjoyment of all the rights and immunities which such persons do and ought to enjoy, not having the fear of God before his eyes, but disregarding his own conscience and the justice administered by your Excellencies, has committed offences against our Holy Catholic Faith, by uttering superstitious and blasphemous speeches, and compacting with the devil, in the manner following.

1. A few days before the feast of All Saints last, in a certain part of the town of Valles, in presence of certain persons, the said Duran declared, two or three times, that he possessed a book containing a prayer, of such efficacy, that if it were thrown into a fire along with a crucifix, the book would be preserved, and the crucifix consumed.

2d. In the same place and on the same occasion, the persons abovementioned hearing the said Duran repeat with much earnestness the above assertion, reproved him, and advised him to give over saying such things, as they were scandalous, and, if known to the Inquisition, would bring some punishment upon him; whereupon he again repeated it, and declared that he had said it and would say it again, thus remaining in his obstinacy and error.

3d. About three months since, in the town of Valles, the said prisoner being in conversation with a certain person, told him that he knew how to cure all disorders; that he had a book worth fifty ducats, as by merely looking at it he could cure any disease, and even restore the dead to life; and, moreover, that if people knew his great gifts he should become very rich.

4th. The said Duran declared, in the same place, at the same time, and to the same person, that he, the said Duran, had been circumcised with blood and wounds, like Jesus Christ, from which it is presumed that he has turned Jew.

5th. In consequence of the abovementioned cures, he has been in the habit of uttering forbidden and diabolical invocations, especially that of St Cyprian, which he has had in a small book, about his person; and it is believed that the cures he has performed have been executed by his diabolical arts and the league he has made with the devil.

6th. He has boasted, on many occasions, before certain persons, that God and the Holy Virgin had given him his power of curing; that the Virgin del Rosario had twice appeared to him, granted him the faculty of healing, and given him her benediction; all which assertions he has made to cover his villanies.

7th. From the above it is to be presumed that the said prisoner has uttered many other superstitious and blasphemous speeches, and done many other things by the help of the devil, with whom he holds a particular intimacy; also that he is knowing to the commission by others of many such crimes, the whole of which he has maliciously concealed, and though advised by your Excellencies to declare the truth, has not done it, but has committed perjury.

For which reasons, I entreat that your Excellencies will receive my relation for true, or such part thereof as shall suffice for the ends of justice in a definitive sentence, and declare the accusation fully proved, and the said Juan Duran guilty of the commission of the said crimes, imposing upon him the heaviest punishments denounced against such offences, and executing them upon his person and goods for a penalty to himself, and an example to others; and also that he be put to the torture if this be found necessary, and that the torture be repeated till he confess the whole truth

both of himself and others. And I formally swear that I do not bring this accusation out of malice, but solely to accomplish the ends of justice.

DR FRANCISCO GREGORIO.

The above accusation having been presented and read, the said Juan Duran was formally sworn to declare the truth, and answer to the same, article by article, which he did in the manner following.

To the head of the accusation, he answered that he was the same Juan Duran whom the Fiscal accused, but that he had committed no offence against the Holy Catholic Faith, nor been guilty of any blasphemies or superstitions beyond what he had confessed.

To the first article he answered, that he confessed what was contained therein; that he uttered the words specified, in the town of Valles at the inn of La Cerdaña, and that the book referred to was the one found upon him, with the invocation of St Cyprian and which was now exhibited; but that he had made the assertion abovementioned from mere ignorance and simplicity, not believing it himself; which confession he made with tears and begging for pardon.

To the second article, he answered, that it was true, but that he did not remember repeating the assertion after he had been reproved for it.

To the third article, he answered that it was true, and that the book alluded to was the one now exhibited; but that he never believed that he could raise the dead to life by the help of it.

To the fourth article, he answered that it was true, but that he was not circumcised, nor was he a Jew.

To the fifth article, he answered that he had used the invocation of St Cyprian on several occasions in cures, without knowing that it was forbidden, but did it from pure ignorance. He denied that he had any league with the devil.

To the sixth article, he answered that it was true, and that he had made some such boasts, on the following account; about fifteen years since, he was sick of lethargy, when our Lady del Rosario appeared to him, clothed in white, at the sight of which he was cured. The Virgin, however, did not tell him that he should possess the power to cure all diseases, and whether she gave him her benediction or not, he could not tell.

To the seventh article, he answered that he had never said or done any of the things charged upon him, save those confessed above, nor knew of any such which had been done by others.

To the conclusion of the accusation he answered that he had stated the whole truth; and even if he were put to the torture, could say nothing more. He ended by begging to have mercy shown him. The above being read in his presence is declared by him to be correctly recorded, and as he cannot write, I, the Inquisitor sign this.

DR BERNARDO LUIS COTONER.

Before me—

MIGUEL RODRIGUEZ.

The above Inquisitors then ordered the said Juan Duran to be furnished with a copy of the accusation, that he might within three days make arrangements for his defence, with the help of one of the advocates for the prisoners of the Holy Office. The prisoner made choice of Father Geronymo Vidal, Jesuit, for this purpose, who was forthwith ordered to be summoned; whereupon the audience closed, and the prisoner, having been admonished, was remanded to prison.

MIGUEL RODRIGUEZ.

AUDIENCE TO COMMUNICATE THE ACCUSATION AND EVIDENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twelfth day of January, one thousand six hundred and thirtythree, the Inquisitor, Dr Domingo Abbad y Huerta being at his morning audience, ordered the aforesaid Juan Duran to be brought out of prison, which being done, and the prisoner present, he was

Questioned, if he recollected anything relating to his affair which he was bound to divulge, agreeably to his conscience.

Answered, that he had nothing more to say.

He was then informed that Father Geronymo Vidal, whom he had chosen for his advocate, was present, that he might communicate with him and prepare for his defence. The said Father Vidal then swore *in verbo sacerdotis* to defend faithfully and diligently the said Juan Duran, in the present trial, so far as justice would permit, to inform him if his cause was

not defensible, to do everything which a good advocate is bound to do, and to keep the whole matter secret.

The confessions of the said Juan Duran were then read, with the accusation against him, and his answers thereto, and the advocate conferred with the prisoner respecting his case, advised him to confess the whole truth, without uttering false testimony either against himself or others, and, if he were guilty, to beg pardon, by doing which, he would experience mercy. The prisoner stated that he had declared the truth as appeared by his confessions, and beyond what was therein contained denied the accusation, on which account he begged to be set at liberty.

The Inquisitor then declared that definite trial should be now had, and both parties bring their proofs *salvo jure impertinentium et non admittendorum*, according to the style of the Holy Office, and the Promotor Fiscal gave notice that he reproduced the testimony of the witnesses which had been already recorded. This testimony he requested might be examined, and also that all other necessary investigations might be made, and the testimony afterwards published; whereupon the prisoner was admonished, and remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE FOR PUBLICATION.

In the Royal Palace of the Inquisition of Barcelona, on the twentieth day of January one thousand six hundred and thirtythree, the Inquisitors, Dr Bernardo Luis Cotoner and Dr Domingo Abbad y Huerta, being at their morning audience, ordered the aforesaid Juan Duran to be brought from prison, which being done, and the prisoner present, he was

Questioned, if he recollected anything relating to his affair which he was bound in conscience to divulge.

Answered, that he had nothing more to say.

He was then informed that the Fiscal of this Holy Office had demanded publication of the testimony against him, before which it would be well for him to bethink himself and declare the entire truth; by doing which, his trial would be despatched with all brevity and mercy.

Answered, that he had nothing more to say.

Straightway appeared the said Francisco Gregorio, Promoter Fiscal of this Holy Office, and requested publication of the testimony against the said Juan Duran, according to the style of the Holy Office. The said Inquisitors then ordered the publication to be made, concealing the names of the witnesses, and other circumstances which might tend to discover their persons, according to the orders and style of the Holy Office.

PUBLICATION OF THE TESTIMONY.

A certain witness sworn and qualified in the proper time and manner, declares, &c. [*Here follows the substance of the deposition of Pedro Oriola, as already given:*]

Another witness, &c. [*In this manner, a summary of all the testimony is given.*] * * *

The publication being accomplished, the said Juan Duran was sworn to declare the truth in answer to the above testimony, article by article. [*Here follow the answers of the prisoner to the several specifications, which do not differ materially from the answers to the accusation already given.*]

A copy of the above publication was ordered to be given the prisoner, that he might, with the assistance of his counsel, prepare for his defence. Father Vidal, the prisoner's advocate, was then summoned, and conferred with the prisoner respecting his trial, when the audience closed, and the prisoner, being admonished, was remanded to prison.

MIGUEL RODRIGUEZ.

AUDIENCE FOR THE PRISONER'S DEFENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentieth day of January, one thousand six hundred and thirtythree, the Inquisitor, Dr Domingo Abbad y Huerta being at his afternoon audience, ordered the said Juan Duran to be brought from prison, which being done, and the prisoner present, he was

Questioned, if he recollected anything relative to his affair, which he was bound in conscience to divulge.

Answered, that he had nothing more to say.

He was then informed that Father Geronymo Vidal was present, who had drawn up his defence, and that he might confer with him; the above advocate then read to the prisoner a writing which the prisoner accepted,

and declared that he made a formal presentation of the same. The defence was as follows:—

Although Juan Duran, inhabitant of Manresa, in the archbishopric of Vique, has no necessity for a defence, on account of his full confession and declaration of the truth respecting the matter of the Fiscal's accusation, yet for greater security in his defence, he offers the following.

1st. That he is ignorant, and uttered the assertions of which he is accused, without knowing that they were heavy offences against our Lord, for which he is extremely grieved, and begs pardon with tears, both of God and this Holy Tribunal, having spoken out of mere vanity, things which were not true.

2d. That he has fully confessed; and as to what is stated by one witness against him, that he declared himself to be the God of the country, and by another, that he affirmed he was next to God, that these testimonies are so extravagant that they ought not to be regarded; that he is very penitent for his offences against our Lord, and begs correction and instruction, with all humility.

3d. That he is descended from old Christians, and is a good Christian himself, having set a good example wherever he has resided, living by his labor, hearing mass and sermons; that he knows the prayers, and in whatever he has failed, he has not offended wilfully; on all which accounts he concludes by supplicating the favor of your Excellency's usual mercy.

GERONYMO VIDAL.

The Inquisitors then ordered the above to be notified to the Fiscal of this Holy Office; whereupon the audience closed, and the prisoner was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

SENTENCE.

In the Royal Palace of the Inquisition of Barcelona, on the tenth day of February, one thousand six hundred and thirtythree, at the afternoon audience for the determination of causes, present, the Inquisitors, Dr Bernardo Luis Cotoner and Dr Domingo Abbad y Huerta, and, on the part of the archbishopric of Tarragona and bishopric of Urgel, Don Ramon de Queralt. Having examined the proceedings of the cause against Juan Duran,

blacksmith, native of Manresa, and now in the secret prison of this Holy Office; ordered, unanimously, that the said person attend at an *Auto de Fe*, if any one should shortly happen, and if not, that he proceed to some church designated by this Tribunal, in the manner of a penitent, and with the insignia of a necromancer, that his sentence be there read to him, and a mass be said; that he make an abjuration *de levi*,^[16] and be banished from the city of Manresa, and town of Valles, the places where he transgressed, for four leagues roundabout, during the space of four years; and that if he infringe this order, he suffer double the above penalty.

Before me—

MIGUEL RODRIGUEZ..

In the Royal Palace of the Inquisition of Barcelona, on the fifth day of March, one thousand six hundred and thirtythree, the Inquisitors, Dr Bernardo Luis Cotoner, and Dr Domingo Abbad y Huerta being at their morning audience, ordered the said Juan Duran to be brought from prison, which being done, and the prisoner present, he was

Questioned, &c.

Answered, that he had nothing to declare in discharge of his conscience, either respecting his own affair, or with respect to aught that had been done or said in the prisons of this Holy Office, or against the dignity, authority, or secrets of its ministers, or respecting the custody of the prisoners therein; that he had not witnessed any communication carried on among them, or knew that any one had spoken to another, or to any one without; that he carried no communication from them to any one, and that the Alcayde and Steward have faithfully discharged their duties.

He was then commanded by virtue of the oath which he had taken, and under penalty of complete excommunication, to observe perfect secrecy in relation to all which had befallen him, and all which he had seen, heard, learned, or understood while in prison, and not to divulge the same, in any shape; all which he promised.

DR BERNARDO LUIS COTONER.

Before me—

MIGUEL RODRIGUEZ.

TRIAL OF LEONARDO PHELIPE,

FOR LUTHERANISM.

MOST ILLUSTRIOUS SIR,

I, the undersigned Secretary, who, in the absence of the Fiscal of this Holy Office, exercise his duties, appear before your Excellency, and declare, that, from the information which I now present, it appears, and is manifest that Phelippe Leonart, a needlemaker, and a Frenchman by birth, now resident in the city of Tarragona, is a Lutheran heretic, commonly swearing, and denying God and the Saints, ridiculing the Holy Sacraments of the Church, never confessing himself, for which he has been declared excommunicated, and committing other crimes.

On which account, I request that your Excellency will order him to be arrested and confined in the secret prison, in order that the ends of justice may be accomplished.

MATTHEO MAGRE, *Sec'y.*

In the city of Tarragona, on the fifteenth day of April, in the year of our Lord one thousand six hundred and thirtyseven, appeared voluntarily Tecla Leonarda, wife of Felipe Leonart, needlemaker, a Frenchman by birth, and inhabitant of this city of Tarragona, of age, as she stated, fifty years, or thereabout. She made the following declaration.

‘Señor Commissary, I am the wife of Felipe Leonart, needlemaker, a Frenchman, and have been married to him about twenty years. I cannot learn that during all this time he has confessed himself once, unless compelled to do it during Lent. He has many times been declared excommunicated for not confessing, and for neglecting to comply with the precepts of the church. He formerly lived in Valencia, in the Calle de la Mar, Parish of St Tomas. He never confessed himself here, and was reminded of his neglect by the Rector. Upon being rebuked by me and his son, and advised to confess, he broke out into blasphemies against God and the Saints, with such violence that he appeared more like a demoniac than anything else. It being suggested to him that God did not prosper him because he did not attend mass, nor wear a rosary, nor hear sermons, nor

confess, but swore, and blasphemed, and that if the Holy Inquisition knew of this he would be apprehended, he replied that the devil must help him; that he did not care for me nor the Inquisition, that he would not confess, and that God gave him nothing which the devil would give. In particular, last Passion Week his son carried him to the Jesuits to confess; but, on finding to what place he was conducting him, the said Felipe abandoned him and refused to confess, greatly offending his son and the confessor. He has given so many proofs of not being a Christian, that many of his apprentices have left him, declaring that they would not live in a house where God was not venerated and worshipped.'

The deponent further declared that on making a full confession last Lent, of all the sins of her husband and her own negligence in denouncing him, she was directed to give information of the whole to this Holy Office, and was refused absolution unless she complied, and that there were many more things to be told which she could not recollect, as they happened so long since.

The above is the truth according to the oath of the deponent, and is stated by her not out of malice, but solely to discharge her conscience. It was read to her, and declared to be faithfully recorded. She promised secrecy, and I, the Commissary, sign for her.

The Canon,
JUAN FERRER, *Commissary*.

Before me—

MIGUEL GIBERT, *Not'y of Tarragona*.

In the city of Tarragona, on the day, month, and year above specified, before the abovementioned Commissary of this Holy Office, appeared, according to summons, and swore formally to declare the truth, a woman calling herself Maria Leonart, wife of Joseph Leonart, an inhabitant of this city of Tarragona, of age, as she stated, sixteen years, or thereabout.

Questioned, if she knew the cause of her being summoned to appear.

Answered, that she supposed it to be for the purpose of making inquiry respecting the life and conduct of Felipe Leonart, her father-in-law. She was

married about four months ago to Joseph Leonart, his son, and what she knew of the matter in question was this;—the said Felipe Leonart was accustomed to swear a thousand times a day, with and without cause. He would swear ‘by the head of God;’ and the deponent had heard him declare, many times, that all his good luck happened in the name of the devil, and not of God. The deponent had asked him why he did not confess, observing that to kneel at the foot of a confessor, and relate his sins, was to relate them to God; and the said Felipe Leonart replied that this was all babble; that he believed just as he pleased. As to hearing mass, he would take it upon trust; that the priests said in their sermons just what they chose, and that they did nothing but trouble the common folks. Some one asking him if he was not afraid of dying, he replied that if he knew that there was a tavern in the other world, he should wish to die immediately. The deponent advised him to confess himself, as otherwise he would be declared excommunicated. He replied that he would not confess, and in fact did not, the last Lent, although his son attempted to carry him to confession. His common oaths were ‘the sacred host,’ ‘the hours of God,’ ‘the head of God.’ His common helpers were the devils; saying, ‘by the help of the devil I will do this,’ &c. So that during the whole space of four months the deponent has never known a word or action of a Christian to proceed from him, never kneeling when the signal is given, nor taking off his cap, nor leaving off eating, although requested to do so by his wife and the deponent.

The above statement is not made from any but conscientious motives, and on being read, was declared by the deponent to be correctly recorded. She promised secrecy, and I, the said Commissary, sign for her.

The Canon,
JUAN FERRER, *Commissary*.

Before me—

MIGUEL GIBERT, *Not’y of Tarragona*.

In the city of Tarragona, on the seventeenth day of the month abovementioned, and the same year, before the said Commissary of the Holy Office, appeared, according to summons, and swore formally to

declare the truth, a man calling himself Joseph Leonart, an inhabitant of Tarragona, of age, as he stated, twenty years or thereabout.

Questioned, if he knew the cause of his being summoned to appear.

Answered, that he supposed it to be for the purpose of learning the bad conduct of Felipe Leonart, a Frenchman, and his father. For a number of years the deponent and his mother had concealed many heavy offences committed by him against the Holy Catholic Faith.

The said Felipe Leonart was a great swearer, saying 'The head, soul, and body of Christ' a million times every day, declaring that he did not fear God, the king, nor anybody; and that if he knew there was a tavern in the other world, he should not care if he were to die, although his body were burnt at Carraxet. Everything which succeeded well with him, he ascribed to the devil and not to God, saying, 'The devil will give me food, for I do not want anything from God,' and, 'The devil will give me luck in this;' so that his patron and helper in everything was the devil. He never confessed, and the last Lent the deponent attempted to carry him to the convent of St Francisco; but on perceiving that he was leading him to confession, he ran away from him. He declared it nonsense to relate one's sins to a confessor, and that a man should tell of nothing but what he pleased. The deponent had never seen him more than once at mass. He wore no rosary, nor any sign of a Christian. He had been declared excommunicated for not complying with the precepts of the church, in this city, in Barcelona, and in Valencia. He declared that the preachers were troublers of the people. At one time, in Valencia, he went to bed after tiring himself with swearing, and told the family that a woman, a monkey, and a young man then in the house, had appeared to him in bed, scratched his face all over and thrown him down stairs. They found him at the foot of the stairs with his face scratched, and believed that this had been done by the devil, from his mentioning him so often. The deponent and his wife had advised him to remove his residence lest the Holy Inquisition should punish him; to which he answered that he did not care for the Inquisition. Finally, the said Felipe Leonart lead such a life that he appeared more like a Lutheran than a Christian.

The above is the truth according to the oath of the deponent, who does not make this declaration out of malice or ill will against his father, but solely to discharge his conscience, and to obey the commands of his

confessors. It having been read, he declared it to be correctly recorded, and signed his name.

JOSEF LLEONART.

Before me—

MIGUEL GIBERT, *Not'y of Tarragona*.

CALIFICACION.

A person of ordinary rank, and of an infected nation has been declared, by persons living with him, to have confessed but once for twentytwo years, and at this time by compulsion. On many occasions he has been declared excommunicated for not complying with the precepts of the Church.

The same witnesses, as they cannot perceive that he goes to confession, rebuke him for it, whereupon he abjures God and the Saints in such a manner that he appears possessed. He wears no rosary, does not hear mass, nor confess, and declares that the devil helps him. On being rebuked and threatened with a denunciation to the Inquisition, he speaks contemptuously of it, declares that he will not confess, and that God gives him nothing that the devil will give.

Every day he swears by God without occasion, and affirms that all which happens well to him is done in the name of the devil and not of God. Being told to go to mass, he replied that he would take it upon trust; that the preachers said just what suited them; that he believed what he pleased; that they did nothing but make trouble; that he did not wish for anything from God which the devil could give him; and that it was nonsense to relate a man's sins to a confessor, or anything more than what a man pleased. Wherever he has lived he has been excommunicated for not following the precepts of the Church.

Some one asking him if he was not afraid of dying, he answered that he did not fear God, and that if he knew that there was a tavern in the other world, he should not regard dying immediately.

In the Royal Palace of the Inquisition of Barcelona, on the seventh day of May, one thousand six hundred and thirtyseven, the Inquisitor, Dr

Domingo Abbad y Huerta presiding sole in his morning audience, ordered the Calificadores of this Holy Tribunal, Father Maestro Onofre Ferrer, and Father Maestro Chrysostomo Bonamich, both Conventuals of this city to appear before him.

Having examined the propositions above specified, they declared unanimously that the above person is a scandalous, presumptuous blasphemer, and a formal heretic, who ought to be proceeded against.

MAESTRO FR. ONOFRE FERRER.

MAESTRO FR. CHRYSOSTOMO BONAMICH.

Before me—

DAMIAN FONOLLEDA, *Sec'y*.

In the Royal Palace of the Inquisition of Barcelona, on the seventh day of May, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta presiding sole in his afternoon audience, having examined the information received by the Commissary of Tarragona against Phelipe Leonardo, needlemaker, a Frenchman, and an inhabitant of that city, —ordered, that this person be arrested and confined in the secret prison of this Holy Office to take his trial in form, and that his apprehension be intrusted to the Commissary of the abovementioned city, who shall transmit him from place to place and from the hands of one Familiar to another.

Before me—

DAMIAN FONOLLEDA, *Sec'y*.

FIRST AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentysecond day of May, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta presiding sole in his morning audience, ordered to be brought out of prison, a person, who, on his appearance, was formally sworn to declare the truth, both on this occasion and in all the other audiences which may be held till the determination of his trial; also to preserve secrecy with respect to everything which he may see, hear, or understand, and everything which may take place respecting him.

Questioned, his name, birthplace, residence, age, and occupation, and the time of his imprisonment by the Holy Office.

Answered, that his name was Leonardo Phelipe, needlemaker; that he was a Frenchman by birth, born in the village of Agullon in the bishopric of Genes; that he was about fortysix years of age, and that he was apprehended by the Holy Office on Sunday, the sixteenth of the present month.

Questioned, who was his father and mother, who were his grandfathers, uncles, paternal and maternal, wife, children, brothers, &c.

[*Here follows the prisoner's account.*]

Questioned, of what race and stock were his ancestors and collateral relations, and whether any one of them, or he himself, had ever been put under penance or punished by the Holy Office of the Inquisition.

Answered that they were French, and old Catholic Christians, of pure blood and lineage; that in the place of his birth there were no Lutherans; that none of the family had ever been contaminated with this heresy, and that none of them had ever been apprehended, punished, or put under penance by the Holy Office of the Inquisition, till the present occasion.

Questioned, if he was a baptized and confirmed Christian, heard mass, confessed, and took the sacrament at such times as the Holy Mother Roman Catholic Church directed; at what time he made his last confession, and from whom he received the holy sacrament.

Answered, that he was a baptized and confirmed Christian, according to what he had been told by his parents, and that he recollected the fact of his confirmation by the bishop of Genes, on which occasion he gave him a slap in the face; that he attended mass, confessed, and took the sacrament when directed by the Holy Mother Roman Catholic Church; that the last time he confessed was at the festival of the Resurrection, the present year, in the convent of St Francisco, at Tarragona, to the Guardian or Sacristan; that he received the holy sacrament in the cathedral church from the hands of one of the curates, as could be shown by the certificate found upon him at the time of his imprisonment.

Here the prisoner crossed himself in a clumsy manner, and could not repeat perfectly the words of the *præsignum crucis*. He said the *paternoster*, *ave Maria*, and credo with much reverence, declaring that he did not know the *salve regina*. He repeated the ten commandments, and stated that he knew nothing more of the christian doctrine.

Questioned, if he had visited any foreign countries since he came to Spain, or had any dealings with people suspected in the faith.

Answered, No.

Questioned, if he could read and write, or had studied any science or faculty.

Answered, that he could neither read nor write, nor had ever studied anything but his trade.

Questioned, what were the events of his life.

Answered, that he was born, as already stated, in the village of Agullon, and brought up by his parents till thirteen years of age, without doing anything but eat and drink. On the death of his parents, he was left a destitute orphan, and came to Catalonia begging. He arrived at Barcelona, and lived three years as a servant with Maestre Gosart, needlemaker, after which he served various other persons in Barcelona for the space of more than eleven years. From this city he went to Tarragona, where he worked with Francisco Roca till he married the wife abovementioned, since which he has worked for himself without leaving Tarragona but once, when he staid about three months in Caragoca, at the end of which he returned home.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he neither knew nor conjectured anything, except that he was seized by the Holy Office while at work in his shop.

The prisoner was then informed that in this Holy Office it was not customary to imprison any one without sufficient information that he had said or done, or witnessed the saying or doing by other persons, of something which was, or appeared to be contrary to our Holy Catholic Faith and Evangelical Law, taught and preached by the Holy Mother Roman Catholic Church, or against the free and just proceedings of the Holy Office, and on this account he must understand that he was imprisoned by reason of some such information; therefore he was exhorted, by his reverence for God our Lord and his glorious and blessed Mother the Virgin Mary, to bethink himself and declare the whole truth with respect to his own offences, and what he knew of others, without concealing anything or bearing false witness against any one, by which proceeding he would clear his conscience as a Catholic Christian, and save his soul, and that his trial

should, in this case, be despatched with all brevity and mercy; otherwise justice should be executed.

Answered, that he had nothing more to say.

The declarations which he had made in this audience were then read and declared by him to be correctly recorded. He declared that they contained the truth, that he had nothing to alter in them, and if necessary was ready to repeat them anew. And having been admonished to bethink himself and declare the truth, he was remanded to prison. Not being able to write, I, the said Inquisitor, sign this.

DR DOMINGO ABBAD Y HUERTA.

Before me—

MIGUEL RODRIGUEZ.

SECOND AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentythird day of May, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta presiding alone in his morning audience, ordered the abovementioned Leonardo Felipe to be brought out of prison, which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair which he was bound by his oath to divulge.

Answered, that he had nothing more to say.

The prisoner was then told that he was aware he had in the preceding audience been exhorted by his reverence for God our Lord and his glorious and blessed Mother, &c.

Answered, that he had nothing more to say.

Whereupon he was admonished to bethink himself and remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

THIRD AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentyfifth of May, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta, presiding alone at his morning audience, ordered the

abovementioned Leonardo Phelipe to be brought out of prison; which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair which he was bound to divulge according to his oath.

Answered, that he had nothing more to say.

The prisoner was then told that he was aware he had in the preceding audiences been exhorted, &c.

Answered, that he had nothing more to say.

Whereupon the audience closed, and the prisoner having been admonished to bethink himself, was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE FOR PRESENTING THE ACCUSATION.

In the Royal Palace of the Inquisition of Barcelona, on the twentyfifth day of May, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta presiding sole in his afternoon audience, ordered the abovementioned Leonardo Phelipe to be brought out of prison; which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair which he was bound by his oath to divulge.

Answered, that he had nothing more to say.

He was then informed that the Promoter Fiscal of the Holy Office had an accusation to bring against him, and that it would be well for him, both as a means of discharging his conscience and despatching briefly his trial, to confess the whole truth before the accusation was presented, according as he had been previously exhorted, by which he would experience the mercy which the Holy Office extends towards all who confess freely; otherwise he was informed that the Fiscal would attend, and justice be executed.

Answered, that he had nothing more to say.

Straightway appeared the Secretary, Damian Fonolleda, who, by reason of the absence of the Fiscal, and the indisposition of Mateo Magre, Secretary, took upon him that office. He presented an accusation signed by him against the said Leonardo Phelipe, making oath that he did not present the same out of malice.

ACCUSATION.

I, the Fiscal of this Holy Office, appear before your Excellency, and accuse criminally, Leonardo Phelipe, needlemaker, born in the village of Agullon, in the bishopric of Gens, kingdom of France, and an inhabitant of the city of Tarragona, attached to the secret prison of this Inquisition, and now present, inasmuch as he, being a baptized and confirmed Christian, and enjoying all the graces and immunities which such persons may and ought to enjoy, not having the fear of God, his own conscience, or the justice administered by your Excellency before his eyes, has committed offences against our Holy Catholic Faith, by blaspheming and denying God our Lord, seeking favor and help from devils, and doing other things in the manner following.

1. He has many times been declared excommunicated in Barcelona, Tarragona, and other places, for not confessing in Lent according to his duty. And while he resided in the parish of St Thomas, in Valencia, he could not be persuaded to confess, although he received many admonitions to that effect from the rector of the said parish, thus remaining excommunicated, careless of the salvation of his soul.

2. Certain persons of his acquaintance rebuking him for not confessing, he blasphemed God and the Saints with such fury and malice that he appeared like a demoniac. He wears no rosary. Some one threatening him with a punishment from the Inquisition, he replied that he did not care for the Inquisition, and that he would not confess; also, that he wanted nothing from God which the devil could give him.

3. On Passion Week, during the last Lent, some person was conducting him to the Jesuits of the aforesaid city of Tarragona, for the purpose of confession, out of charity towards him, and although it was in his power to comply with the precept in this instance, he refused, and fled from the church, to the great scandal of the confessor who was there to hear him, as well as other persons.

4. He is accustomed to deny God, and swear 'by the head of God,' and 'the soul and body of Christ,' repeating it commonly many times a day; also declaring that his living, and everything he gets, comes in the name of the devil and not of God. Some one rebuking him for this, he said that he believed what he pleased, and as to hearing mass on the days prescribed, he

would take it upon trust; that the preachers said just what they chose, and did nothing but disturb the people.

5. He says that he does not fear God, and that if he knew there was a tavern in the other world, he should not care if he died, although his body were burnt.

6. I accuse him of having said that a man ought not to tell his sins to the confessor, and that it was nonsense for a man to tell anything but what he pleased. This being a proposition maintained by the false and reprobate sect of Martin Luther, and the prisoner belonging to France, a country where this sect prevails, it is to be presumed that he belongs to it.

7. Furthermore, it is to be supposed that the prisoner has committed many other offences against our Holy Catholic Faith, and uttered other blasphemies and heretical speeches, as well as known that other persons have done the same, all which he conceals like a bad Christian. Of this I intend to accuse him more formally. At present I do it in general terms, and although he has been exhorted by your Excellency to declare the truth, he has not done it, but has perjured himself.

For which reasons I request and supplicate your Excellency to admit my charges as proved, or such a portion of the same as shall suffice for the ends of justice in a definitive sentence, or whatever measure may be taken, and to declare my accusation fully proved, and the said Leonardo Phelipe guilty of the abovementioned offences, condemning him to the heaviest punishments by law thereto affixed, and executing them upon his person and goods, by turning him over to the secular arm of justice, as a punishment to himself and a terror to others. And I request that if necessary, he may be put to the torture, and that the same be continued and repeated till he confess the whole truth of himself and others.

And I formally swear that I do not present this accusation out of malice, but solely to accomplish the ends of justice, which I request at the hands of your Excellency.

DAMIAN FONOLLEDA, Sec'y.

The above accusation having been presented and read, the said Leonardo Phelipe was formally sworn to declare the truth in answer thereto, and it being read over, article by article, he answered as follows.

To the head of the accusation he answered, that he was the same Leonardo Phelipe whom the Fiscal accused, but that he had not committed any offences against our Holy Catholic Faith, nor denied our Lord, although he had sometimes sworn by his name.

To the first article he answered, that he had always confessed like other Christians, and in Valencia had not suffered a year to pass without doing so, and that he had never been excommunicated on this account.

To the second article he answered, that he denied it, for it was not true that he had no rosary. He made use of one in his prison eleven times, and now exhibited the same in his hands; which I, the Secretary, testify.

To the third article he answered, that he denied it, for it was not true; and that during the said Passion Week, in the last Lent, he had confessed in the convent of St Francisco, in Tarragona; that he complied with the precepts of the Church, as he had stated in his first audience, and that this could be shown by the certificate of confession found upon him at the time of his imprisonment.

To the fourth article he answered, that he denied it, for it was not true.

To the fifth article he answered, that he denied it; that he trusted in God, and a heretic could not say such things.

To the sixth article he answered, that he denied it, for it was not true, and he could not imagine how such testimony could be borne against him.

To the seventh article he answered, that he had not committed any offence against our Holy Catholic Faith, nor knew that any other persons had committed offences, and that he had declared the entire truth and had not perjured himself.

To the conclusion of the accusation, he answered that even if he were put to the torture he could say nothing more.

The above is the truth according to the oath of the prisoner, and having been read, was declared by him to be correctly recorded. Not being able to write, I, the Inquisitor sign the same.

DR DOMINGO ABBAD Y HUERTA.

Before me—

MIGUEL RODRIGUEZ.

The said Inquisitor then ordered the prisoner to be furnished with a copy of the accusation, that he might on the third day make an answer thereto with the counsel and assistance of one of the lawyers who defend cases in this Holy Office, namely, Dr Francisco Magrinya, and the Rector of the Company of Jesus. He was allowed to select one of these persons and made choice of Dr Magrinya.

The Inquisitor then ordered him to be summoned, and the prisoner having been admonished to bethink himself, was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE TO COMMUNICATE THE ACCUSATION AND PROOF.

In the Royal Palace of the Inquisition of Barcelona, on the twentieth day of May, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta presiding sole at his morning audience, ordered the abovementioned Leonardo Phelipe to be brought out of prison; which being done, he was

Questioned, if he remembered anything relating to his cause which he was bound by his oath to divulge.

Answered, that he had nothing more to say.

He was then informed that Dr Francisco Magrinya was present, whom he had chosen for his advocate, and that he might confer with him about his defence. The said Dr Magrinya swore *in verbo sacerdotis* to defend well and faithfully the said Leonardo Phelipe so far as justice allowed, to inform him if his case was not a good one, to do all which a good advocate is bound to do, and to preserve secrecy in everything.

The confessions of the prisoner were then read, together with the accusation and his answers, and the prisoner conferred with his advocate who advised him as the best means of discharging his conscience and despatching his trial, to confess the truth without bearing falsehood either

against himself or any other person, and, if he were guilty, to beg pardon, by which he would experience mercy.

Answered, that he had declared the truth in his confessions, and denied the accusation so far as it went beyond this. He begged in consequence to be set at liberty, and to be mercifully dealt with, for what he had confessed. He declared, that after publication of the testimony, he should more formally present matter for his defence.

The Inquisitor then ordered this to be notified to the Promoter Fiscal of this Holy Office, upon which Mattheo Magre, the senior Secretary, acting as Fiscal, answered, that he accepted the confessions of the said Leonardo Phelipe, so far as they were favorable to the accusation, and no farther, denying all the rest. He requested that the proofs might be exhibited.

The Inquisitor declared that the cause should be judged definitively, and the proofs received *salvo jure impertinentium et non admittendorum*, according to the style of the Holy Office. The same was notified to both parties.

The Promoter Fiscal then stated that he produced anew and presented the testimony and proofs against the said Leonardo Phelipe, received and registered in the Holy Office. He requested that they might be substantiated and ratified in form, that all other necessary investigations might be made and the testimony published.

The prisoner then being exhorted to bethink himself and declare the truth, was remanded to prison, which I, the abovementioned Secretary certify.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE FOR PUBLICATION.

In the Royal Palace of the Inquisition of Barcelona, on the seventeenth day of June, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta presiding sole in his morning audience, ordered the abovementioned Leonardo Phelipe to be brought out of prison; which being done, he was

Questioned, if he remembered anything relating to his affair, which he was bound by his oath to divulge.

Answered, that he had nothing more to say.

He was then informed that the Promotor Fiscal of this Holy Office was about to demand publication of the testimony against him, before which it would be well for him to confess the whole truth, by which means his trial should be despatched with all brevity and mercy.

Answered, that he had nothing more to say.

Straightway appeared the Secretary, Mattheo Magre, who officiated as Fiscal, and requested publication of the testimony against the said Leonardo Phelipe according to the style of the Holy Office. The Inquisitor then ordered the said publication to be made, concealing the names and other circumstances of the witnesses which might lead to a discovery of their persons, according to the instructions and style of the Holy Office.

[Here follows the publication, and the answers of the prisoner, corresponding with what has already been given.]

The Inquisitor then directed him to be furnished with a copy of the above publication, that he might, with the assistance of his counsel, reply thereto on the third day. Whereupon being admonished to bethink himself and declare the truth, he was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE TO COMMUNICATE THE PUBLICATION.

In the Royal Palace of the Inquisition of Barcelona, on the twentysecond day of June, one thousand six hundred and thirty seven, the Inquisitor, Dr Domingo Abbad y Huerta presiding sole in his morning audience, ordered the above Leonardo Phelipe to be brought out of prison; which being done, he was

Questioned, if he remembered anything relating to his affair, which he was bound by his oath to divulge.

Answered, that by reason of the troubles which arose in his house, he had sometimes broken out into swearing, saying, ‘the devil take me if this is not true.’

He was then informed that Dr Francisco Magrinya, his advocate was present, with whom he might communicate respecting the publication, and other matters of his defence. The publication and the answers of the prisoner, &c. were then read to the said Dr Francisco Magrinya, who drew up articles of defence upon a paper prepared by the Secretary. Here the audience closed, and the prisoner being admonished to bethink himself, was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

AUDIENCE FOR THE DEFENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentyfifth day of June, one thousand six hundred and thirtyseven, the Inquisitor, Dr Domingo Abbad y Huerta presiding sole in his morning audience, ordered

the above Leonardo Phelipe to be brought out of prison; which being done, he was

Questioned, if he remembered anything relating to his affair, which he was bound by his oath to divulge.

Answered, that he had nothing more to say.

He was then informed that Dr Francisco Magrinya, his advocate, was present, and had arranged his defence, which he might examine. The said Dr Francisco Magrinya then read to him certain articles which he had drawn up in his favor, and this having been heard by the prisoner, he declared that he made a presentation of the same, and requested an examination of the witnesses named in the margin, and that the other investigations referred to might be made.

DEFENCE.

MOST ILLUSTRIOUS SIR—

Although Bernardo Phelippe, an inhabitant of the city of Tarragona has no necessity for any defence against the charges of the Promoter Fiscal of this Holy Office, yet the more clearly to show his innocence, and premising expressly that what he declares against the witnesses is not with an intention to injure or defame them, but solely to defend himself, *onere superflux probationis rejecto*, he offers the following:—

1. It is not true that he has abjured, sworn or blasphemed the head of God, or uttered any other blasphemies, which statement is the truth.

2. It is not true that he has neglected to hear mass on the Sundays and holidays appointed, or neglected to confess and take the sacrament every year, or been excommunicated on such account; which is the truth.

3. The witnesses who depose against him, turn all his oaths into swearing, ‘by the head of God,’ which is the truth.

4. Even though, (*quod expresse negat*) he may have at sometimes sworn ‘by the head of God,’ yet it was done in the heat of passion, and inasmuch as *de jure prima motus non sit in homine*, nothing bad can be imputed to him, which is the truth.

5. In addition to this, the above witnesses are single witnesses, disagree among themselves, and are not deserving of credit, inasmuch as *non det fides testibus singularibus*, which is the truth.

6. The prisoner, although a Frenchman, is still a good Christian, and not at all of suspicious faith. He hears mass on the Sundays and holidays appointed, as many can testify who have seen him; which is the truth.

7. He also confesses and takes the sacrament every year at Easter, and other times at the hands of the Guardian of the Convent of St Francisco and the Sacristan, as may be seen by his certificate of confession given at the last Lent, and which he now presents as a testimonial in his favor solely; which is the truth.

8. There is also the same reason for believing that he has confessed on every Easter, as can be seen by the books of confession kept by the Curates; which is the truth.

9. He who states one falsehood is not to be believed in any other assertion, and inasmuch as the witnesses against the prisoner affirmed that he did not confess throughout the year, but was excommunicated, and declared so, for not complying with the ordinances, and that he did not wear a rosary, all which has been shown to be false by his certificate, and the rosary found upon him; for this reason they cannot be believed, when they state that he does not hear mass, and that he swears and blasphemes; which is the truth.

10. The prisoner suspects that one of the witnesses against him is a young man of about twenty years of age, and a mortal enemy of the prisoner. This, added to the circumstance of his being a minor, should cause his testimony to be rejected; which is the truth.

11. The testimony of the other witness also should be rejected, as he supposes this person to be his wife, who leads a quarrelsome life with him, and bears him great enmity; which is the truth.

12. The prisoner supposes that the cause of the misfortune in which he now finds himself, is, his having given his wife a good beating on the festival of the Resurrection, on which account she probably has directed her malice against him, and suborned the other witnesses; which is the truth.

13. The same hatred is borne against him by Joseph Lleonart, his son, on account of the prisoner's having pawned an anvil, at which his son was displeased; which is the truth.

14. The said Bernardo Phelippe is reputed throughout all the city of Tarragona to be an honest man and a good Christian, attending mass at the church with much punctuality on the days appointed, and confessing and

taking the sacrament at the proper time, as proved by his certificate; which is the truth.

15. The said Bernardo Phelippe has never been imprisoned or punished by this or any other tribunal; which is the truth.

16. From all which it appears that the said Phelippe is free from all the offences charged upon him, and ought to be absolved and released from the prison in which he is confined, experiencing mercy, which also would be justice, *vel alias omni meliori modo quod de jure sibi adaptari valeat, et verum.*

17. *Ponit quod omnia et singula sunt vera, super quibus jus diei et justitiam ministrari postulat, et verum.*

F. MAGRINYA.

The Inquisitor ordered the above to be placed among the proceedings of the trial, and declared that he was ready to make the necessary investigations. Whereupon the prisoner, being admonished, was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

TO THE CANON JOAN FERRER, COMMISSARY.

Leonardo Phelipe, needlemaker, an inhabitant of this city, and now in the secret prison of this Holy Office, on account of an action brought against him by the Licentiate Don Andres Panyagua, Fiscal of this Inquisition, has presented in his defence the following articles or interrogatives, namely—

1. That the said Leonardo Phelipe, although a Frenchman, yet is a good Christian, and not in anything to be suspected of Lutheranism or any other heresy; that as such, he hears mass every Sunday and holiday prescribed, as can be proved by many witnesses.

2. That he also confesses and takes the sacrament every year, at Easter and other times, as can be shown by his certificate of confession received during last Lent, and which he exhibits in his defence.

3. That the wife of the said Leonardo Phelipe treats him badly, and bears him great hatred, and has brought him into this trouble because he gave her a good beating on the festival of the Resurrection last, which greatly increased her hatred towards him.

4. That the same enmity is borne towards him by Joseph Leonardo, his son, with whom he had an altercation on account of his having pawned an anvil against the inclination of his son, for which reason he concerted with his mother this proceeding against the prisoner.

5. That the said Leonardo Phelipe is reputed throughout all the city of Tarragona to be an honest man, and a good Christian, attending church punctually to hear mass on the days appointed, and confessing and taking the sacrament at the proper times.

On which account you will, on the reception of this, proceed to collect information respecting the matter contained in the above interrogatives, in favor of the said Leonardo Phelipe, examining the witnesses named in the margin opposite each article, which is to be done in the presence of the Notary, with the other legal formalities, and according to the printed formula held by the commissaries. You will also take a copy of the register in the church records referred to in the second article. All which being done, you will forward the proceedings, sealed, with all brevity to our hands.

For the above undertaking we grant you full power and commission in form. God preserve you.

DR DOMINGO ABBAD Y HUERTA.

The Inquisitor presiding alone.

MIGUEL RODRIGUEZ.

Barcelona, June 25th, 1637.

In the city of Tarragona, on the eighteenth day of July, one thousand six hundred and thirtyseven, before the illustrious Juan Ferrer, Presbyter Canon of the Holy Church of Tarragona, Commissary of the Holy Office of the Inquisition, and by particular commission from the most illustrious Inquisitors Apostolical of the Principality of Catalonia, appeared according to summons, and swore formally to declare the truth, a person calling himself Father Pablo Morer, Guardian of the Monastery and Convent of St Francisco in Tarragona, of age, as he stated, fortysix years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, No.

Questioned, if any one had attempted to persuade him to speak in favor of any person imprisoned by the Holy Office.

Answered, No.

Questioned, if he knew the Fiscal of the Holy Office, or Leonardo Felipe of the city of Tarragona imprisoned by the Holy Office of the Inquisition.

Answered, that he knew neither of them.

He was then informed that the said Felipe presented him as a witness in his defence, in a case brought against him by the Fiscal of the Holy Office. He was directed to give attention while certain questions were put to him, and declare the whole truth.

To the second question he answered that he knew nothing of the matter, respecting which he was questioned, as he was not acquainted with the person. To the last question, he answered that what he had stated was the truth, and it being read, was declared by him to be correctly recorded. He promised secrecy and signed his name.

Pablo Morer.

Before me—

MIGUEL GIBERT, *Not'y of Tarragona.*

In the city of Tarragona, on the day, month, and year above specified, before the illustrious Juan Ferrer, Presbyter, Commissary, &c. appeared according to summons and swore to declare the truth, a person calling himself Father Nicholas Gil, of the convent of St Francisco in this city, of age, as he stated, fortyfour years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, No.

Questioned, if any one had attempted to persuade him to speak in favor of any person imprisoned by the Holy Office.

Answered, No.

Questioned, if he knew the Fiscal of the Holy Office, or Leonardo Felipe, needlemaker, of this city, now in imprisonment by the Holy Office.

Answered, that he had no knowledge of the Fiscal, but knew the said Leonardo Felipe, and had held dealings with him.

He was then informed that the abovementioned Leonardo Felipe presented him as a witness in a case brought against him by the said Fiscal. He was directed to give attention while certain questions were put to him, and declare the whole truth.

To the second question, he answered that he remembered to have heard the confession of the said Leonardo Felipe once only during last Lent, but could not remember whether he gave him a certificate or not.

The above is the truth according to the oath of the deponent, and having been read, was declared by him to be correctly recorded. He promised secrecy and signed his name

PR. NICOLA GIL.

Before me—

MIGUEL GIBERT, *Not'y Public of Tarragona.*

[Here follow the depositions in the same form with the preceding, of various other witnesses in favor of the prisoner, relating to matters alleged by him in his defence.]

AUDIENCE FOR CONCLUDING THE TRIAL.

In the Royal Palace of the Inquisition of Barcelona, on the twentyseventh day of June, one thousand six hundred and thirtyseven, the Inquisitors, Dr Domingo Abbad y Huerta and the Licentiate Don Blas Alexandra de Lezaeta presiding in their afternoon audience, ordered the abovementioned Leonardo Phelipe to be brought out of prison, which being done, he was

Questioned, if he remembered anything which he was bound by his oath to declare.

Answered, that he had nothing more to say.

Dr Francisco Magrinya, the prisoner's advocate, being present, he was informed that the investigations requested by him, had been made, and if he wished the cause to be decided, it should be done, or if he wished other measures to be taken, to state them, and all should be done which justice permitted. Whereupon the said Leonardo Phelipe, by the advice of his

counsel, answered that he concluded definitively, and begged a merciful sentence.

The Inquisitors then ordered the same to be notified to the Promoter Fiscal of this Holy Office, in order that a conclusion might be made on the third day. Whereupon the prisoner was remanded to prison.

Before me—

MIGUEL RODRIGUEZ.

The above order for conclusion was forthwith notified to the Licentiate Don Andres Paniagua, Fiscal, by me, the Secretary,

RODRIGUEZ.

SENTENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twentyeighth day of July, one thousand six hundred and thirtyseven, the inquisitors, Dr Domingo Abbad y Huerta, and the Licentiate Don Blas Alexandre de Lezaeta presiding in their morning audience, (the Ordinary not attending by reason of the Cabildo of Tarragona having neglected to appoint one to this office *sede vacante*, although notified to this end, and the term of eight days having expired) having examined the proceedings carried on in the Holy Office against Leonardo Phelipe, a Frenchman by birth, and a needlemaker by occupation, a native of the village of Agullon, in the bishopric of Genes, and an inhabitant of the city of Tarragona, now in the secret prison of this Holy Office,—

Ordered, unanimously, that this trial, without any other sentence, be suspended, and remain as it is at present.

Before me—

MIGUEL RODRIGUEZ, Sec'y.

TRIAL OF DON ANTONIO ADORNO,

FOR NECROMANTICAL PRACTICES.

In the city of Valencia, on the thirteenth day of April, one thousand seven hundred and fiftysix, before Dr Lorenzo Ballester, Presbyter, Confessor to the secret prison of the Holy Office, and before the Extraordinary Commissary for this investigation, appeared voluntarily, and made oath to declare the truth, and preserve secrecy, a person calling himself Joaquim Gil, scrivener, residing in the house of Felipe Matheu in the Calle del Mar of this city, a native of Puebla de Arenoso, in this archbishopric, of age, as he stated, twentyfour years.

Questioned, why he had demanded an audience.

Answered, that it was for the purpose of giving information to the Holy Office respecting a certain soldier of the regiment of Asturias in the garrison of this city. This person was called Don Antonio, and was by birth a Neapolitan, a robust, middle sized man, with a dark complexion, and about twentyfour or twentyfive years of age, which was all the description the deponent could give. On the evening of the eleventh of the present month, the deponent and the abovementioned Felipe Matheu were in company with five soldiers at the house of the said Matheu. Among these was the abovenamed Don Antonio, and this person declared in conversation with the deponent that he possessed the faculty of discovering the thief when a thing was stolen. This he had performed in the following manner. On a certain occasion one of his friends was lamenting the loss of some money which had been stolen from him, when he, the said Don Antonio, replied, that he would discover the thief. He then wrote the names of all the persons present upon separate pieces of paper, and threw them into the fire. Those which contained the names of the innocent were consumed, but the one containing that of the thief remained. Nobody was able to take this out of the fire except Don Antonio. The paper was kept from consuming by the power of the words *Christo Señor Nuestro*, uttered by him, and it was drawn out from among the coals by the help of this expression; '*Ego sum. Factus est homo. Consummatum est.*' Besides this he knew another way of

practising this divination; and this was to collect the ashes made by the papers, and rub them on the back of his hand, where they would leave marked the name of the thief. Furthermore he stated that he possessed another method of accomplishing this purpose, but this he did not explain.

This conversation having been heard by the abovementioned Felipe Matheu, he rebuked Don Antonio, and this last replied that what he had done he would repeat even before the Inquisitors, or, if that was of any consequence, after communion, inasmuch as he used the words which had been uttered by Christ. Proceeding in the conversation with the deponent, he told him that he had some instruments in his pocket which were useful for many things. He then drew from his right pocket a paper folded up and containing two or three coils of something which the deponent did not see distinctly, on account of the darkness, but felt and handled them. The deponent asked Don Antonio where he had obtained the above knowledge. He replied that he had got it by studying a book of magic which he possessed; that he had learned from this the secret of making himself invisible, and also to render a man invulnerable to thrusts with a sword, a trial of which last he would make upon a dog or cat and show the efficacy of it. The deponent asked him if he knew any secrets relative to playing at ball. He answered that he did not remember any at present, but would make some researches and call upon the deponent at his house, when he would teach him a secret to gain the favor of the ladies. This was agreed to, and the deponent described the house to him. He offered him money if he would discover all his arts, which he did for the purpose of laying the whole before the Holy Office for the benefit of the Catholic Faith.

Questioned, if any other persons heard the above conversation, or knew anything relating to it.

Answered, that the abovementioned Felipe Matheu heard a great part of it, as also Joseph Masquef, scrivener, who lived in the same house, Joseph Jordan, a servant, and two Alguacils, a father and son, who were in the company, and whose names he did not know.

Questioned, if he had made this declaration out of any malice which he bore to the said Don Antonio.

Answered, that he had made it solely from the impulse of his conscience, and because he believed the above things were contrary to our Holy Faith.

He affirmed that the whole was the truth, promised secrecy, and signed his name.

JOAQUIM GIL.

Before me—

DR JOSEPH MONTES,
Presbyter Notary of the Holy Office.

In the city of Valencia, on the seventeenth day of April, one thousand seven hundred and fiftysix, before Dr Lorenzo Ballester, Confessor to the secret prison of the Holy Office and Extraordinary Commissary for this investigation, appeared voluntarily and made oath to declare the truth, and preserve secrecy, Joaquim Gil, &c.

Questioned, why he had demanded an audience.

Answered, on account of the declaration made by him before the present Commissary respecting a certain Don Antonio, of the company of Don Jorge Duran, in the regiment of Asturias. This man, in addition to the peculiarities of his person before described, had a scar above his left eyebrow, apparently the effect of a wound, and a dint of the size of a filbert in the top of his forehead, with black and rather short hair. He came to the house of the deponent on the fifteenth of this month according to agreement, and after some conversation gave him a strip of parchment, about a finger's breadth wide and above a span long, this was slit through the middle lengthwise and had written on it the following words. *'Ego + sum. Exe + homo consummatum est. Ego Juaginus Aprecor Dominum Nostri Jesu Christi in vitam eternam seculi seculorum libera me de omnibus rebus de ignis cautius et omnia instrumenta hominum detentat me hac die hac nocte custote rege et cuberna me Amen.* This was rolled up in lead with a small piece of bone, and Don Antonio told him to wear it in the shape of a cross, next to his skin, near the heart, and it would shield him effectually from all thrusts with a sword. It was exhibited by the deponent.

He also gave him another strip of parchment of half a finger in breadth, and above two yards long. At one extremity was drawn with ink a leg and foot, and at the other a heart with a cross above it. Other figures and letters

were drawn in different parts. With this he proceeded to take divers measurements upon the body of the deponent, as, from one shoulder to the other, from the shoulder to the chin and nose, &c. This he informed him would secure him from being wounded, if he used it in the following manner. He was to rub it with the wax which dripped from the tapers burnt during the celebration of mass. This was to be done on nine several days during mass, keeping it under his cloak, and taking care that no one saw him. Afterwards it was to be worn in the shape of a cross, next the skin, near the heart. He gave him at the same time three bits of parchment, each about three fingers' breadth long and one wide. Two of these contained each two lines of writing, and the other three. They were severally numbered on the back, 1, 2, 3. To these were added another, very small, also written over.

He informed him that by the help of these he could perform any kind of divination, and that if he wore the thinnest of these parchments upon his left little finger, under a white stone set in a ring, he would be directed by it in the following manner. Whenever the stone turned red, he might play at any game which was going on, except dice or *quillas*, and be sure to gain; but if the stone turned black, he would lose by playing. Before any such use, however, was made of the parchments, he was directed to put them in the shoe of his left foot, near the ankle, and to sprinkle them with the water used by the priest at mass. These parchments were also exhibited.

The deponent requested Don Antonio to show him the book of magic which he had mentioned, but he declined, alleging that the deponent could not read nor understand it.

Questioned, if he knew, or had heard that the said Don Antonio Adorno had any temporary insanity, or was given to wine, and if any other person was present during the last conversation.

Answered, that he knew not whether he was subject to any such irregularities, and that no other person was present during their last interview. He declared that the whole of the declaration was the truth, and not uttered by him from malice or ill feeling, but solely in obedience to his conscience and oath. Secrecy was promised by him, and he added his signature.

JOAQUIM GIL.

Before me—

DR JOSEPH MONTES, *Presbyter Notary
of the Holy Office.*

In the city of Valencia, on the fourteenth day of April, one thousand seven hundred and fiftysix, before Dr Lorenzo Ballester, Presbyter, Confessor of the secret prison of the Holy Office, appeared, according to summons, and made oath to declare the truth and preserve secrecy, Joseph Sanches Masquefa, scrivener, residing in the house of Felipe Matheu, scrivener, of this city, a native of the city of Origuella, of age, as he stated, nineteen years.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he did not know, but supposed it to be for the purpose of learning what he had heard of a conversation in which a certain soldier of the regiment of Asturias, in the garrison of this city, was engaged; this person, who, as he had been informed was named Don Antonio * * * and was by birth a Neapolitan, was of a middling height, somewhat full faced, dark complexioned, and about twenty or twentytwo years of age. On the evening of the eleventh of the present month, discoursing upon various subjects, this person remarked that he was acquainted with several arts, and in particular knew one by which he could ascertain who was the thief when a theft had been committed, and which he had practised on the following occasion. A soldier of his regiment had stolen two or three dollars from another, at which the sergeant was expressing his displeasure, and Don Antonio told him that if he would promise no harm should ensue to the thief or himself, he would discover who had stolen it. This the sergeant agreed to, and Don Antonio wrote the names of all who were suspected of the theft upon pieces of paper. These he put into the fire, where they were all consumed except the one bearing the name of the thief. This was seen by all present, and some of them endeavoured to snatch it from the flames but were unable. Don Antonio alone was able to perform this action, and when the name of the thief was read, he was searched and the money found in his stockings.

This relation having been listened to by Felipe Matheu, he asserted that the thing could not be done unless by a league with the devil, and that it was a matter which ought to be laid before the Inquisition. Don Antonio replied that it was an action which he should not hesitate to perform immediately after confession and communion, for it was done by uttering words that had been spoken by Christ; that is to say, '*Ego sum, Christus factus est homo, consummatum est,*' expressions which were good and holy. A conversation then ensued in Italian, between Don Antonio and Joseph * * * a servant in the house of Felipe Matheu, which was not understood by the deponent. The conversation was broken off by the said Matheu.

Questioned, if any other persons were present at this conversation, besides those already named.

Answered, that there were also present Joseph Gil, a scrivener, in the same house, two Alguacils, one of whom was named Alba, and three soldiers of the regiment abovementioned, whose names he did not know.

Questioned, if he knew whether the said Don Antonio was subject to any occasional insanity, or was given to wine.

Answered, that he knew not of his being subject to any such irregularities, and that the above conversation was maintained on his part with much seriousness. The above is the substance of what is known to him respecting the matter, and not related from malice toward the said Don Antonio, but solely according to his conscience and oath. It was read in his hearing and declared by him to be the truth. Secrecy was enjoined upon him, which he promised, and added his signature.

JOSEPH SANCHEZ Y MASQUEFA.

Before me—

JOSEPH MONTES, *Presbyter Notary
of the Holy Office.*

[Here follow, in the original, the depositions of the other witnesses mentioned above as present on the occasion. These are omitted, as they do but repeat what has been already related.]

CALIFICACION.

In the Holy Office of the Inquisition of Valencia, on the seventeenth day of May, one thousand seven hundred and fiftysix, the Inquisitor, Dr Don Inigo Ortiz de la Peña being at his morning audience, in which he presided

alone, there appeared the Calificadores, Padre Francisco Siges, of the Order of Mercy, Padre Antonio Mira, Jesuit, Ex-Rector of the college of San Pablo, Padre Juan Bautista Llopis, of the Order of Mercy, and Padre Augustin de Vinaros, Ex-Provincial of the Convent of Capuchins, who, having conferred together respecting the acts and assertions now to be specified, qualified them in the following manner, viz.

1st. The person in question, in the presence of many others, on the night of a certain day which is named, declared that he possessed the power when anything was stolen, to ascertain who was the thief; and in proof of this, the said person, on the same occasion declared that in a former instance, when a quantity of money had been stolen, and search was making for the thief, he offered, upon the condition that no harm should ensue to him or the culprit, to find him out; which being agreed to, he wrote the names of those whom he suspected of the theft upon papers and put them in a fire, when those containing the names of the innocent were consumed, and that of the guilty one remained. He then uttered certain words, which signified '*Christ our Lord,*' by virtue of which the name of the delinquent was preserved from burning. And by virtue of these, words, '*Ego sum; factus est Homo; consummatum est,*' the paper was drawn from the fire. The name of the thief was then read, and the money found upon him within his stockings.

Declared unanimously that this contains a profession of superstitious necromancy, and a practice of the same, with the effects following; also an abuse of the sacred scripture.

2d. The assertions in the above article having been listened to, it was replied to this person that the thing could not be done without some pact with the devil, to which he answered that it was so honest and just a deed that he would perform it immediately after confession and communion, and even before the Inquisitors, inasmuch as it was done by repeating the words of Christ, which were the Latin expressions given in the first article. It was repeated that the thing could not be done in this manner, and that it ought to be denounced to the Inquisition; whereupon this person persisted in his assertions. He also stated that he knew another way of performing the same kind of divination, which was by collecting the ashes made by burning the papers, and rubbing them upon the back of his hand, where they would leave impressed the name of the culprit. He furthermore asserted that he knew another method, which he did not explain.

Declared unanimously that this contains a confirmation of the preceding, with a heretical assertion, and a new profession of necromancy.

3d. The same person continuing the above conversation, asserted that he possessed certain instruments which were useful for many things, and proceeded to take from his right breeches' pocket a paper containing three or four folds of something, which were not distinctly seen by reason of the night. And it being demanded of him where he had learned his arts, he replied that he had obtained them from a book of magic in his possession, which taught him how to do whatever he desired.

Declared unanimously that this contains another profession like that already qualified.

4th. He declared to the person to whom the above assertions were made, that out of the abovementioned book he could acquire the art of making himself invisible; also that in this manner a man could be made invulnerable to the thrust of a sword; in proof of which he would make trial upon the body of a dog or cat, that they might see the truth of it.

Declared unanimously that this contains a new profession of necromancy.

5th. The person who bore witness to these proceedings having asked him whether he knew any art respecting playing at ball, he replied that he did not at present, but would make researches and come to the house of the above person, where he would teach him other arts which he knew, to gain the favor of the ladies. This was agreed upon, and this person gave him directions to find his house, offering him money if he would make these disclosures to him, all with a view to give information of the same to the Holy Office, in order to purify our Holy Faith, and extirpate everything contrary thereto.

Declared unanimously that this contains a profession of necromancy qualified as above, with the addition of an amatory necromantical practice.

6th. Some days after this, in consequence of the above agreement, he went to the said person's house, where he gave him a strip of parchment about a finger's breadth wide, and a span long, slit through the middle and united at the extremity, on which was written the following. *'Ego + sum, Exe + Homo, consummatum + est, Ego Joaquinus Aprecor Domini nostri Jesu Christi in vitam eternam seculi seculorum, libera me de omnibus rebus, de ignis cautus et omnia instrumenta hominum detenta me ach die,*

ach nocte, custode rege et gubernare amen.' This was rolled up within a piece of lead and a portion of bone, and, according to his direction, was to be worn next the skin, near the arm, in the shape of a cross. This would, as he asserted, secure the wearer against any thrusts with a sword. The articles have been exhibited.

Declared unanimously that this contains a practice with instruments of superstitious necromancy, added to a doctrine for their application which is abusive of the sacred scripture and insulting to the holy cross.

7th. On the same occasion, he gave to this person another piece of parchment, half a finger's breadth wide, and above two yards long, at one end of which was drawn with ink a leg and foot, and at the other a heart surmounted by a cross, with other figures and letters in different parts. With this he took divers measures upon the body of the person abovementioned, from one shoulder to the other, from the shoulder to the chin and nose, from the chin to the stomach, measuring also the face, which he informed him was done to secure him from wounds. He directed him to rub it over with the wax which dripped from the tapers burnt during the celebration of mass. This was to be done on nine several days, and the operation was to be concealed from view by his cloak. The parchment was exhibited.

Declared unanimously, that this contains an additional profession of necromancy, with an exhibition of additional necromantical instruments, and the method of using them, added to an insult to the holy sacrifice of the mass and the holy cross.

8th. On the same occasion, he gave to this person three bits of parchment three fingers' breadth long, and one wide each; two of them containing each two lines of writing, and the other three, all numbered on the back; also another written parchment. He directed him to wear the thinnest of these pieces on the little finger of his left hand, under a white stone set in a ring, and informed him that when this stone turned red he might play at any game except dice or *las quillas*, with a certainty of winning, but if it should turn black he was to abstain from playing. The parchments abovementioned were, before this was done, to be placed inside his right shoe, next the ancle, and sprinkled with the Holy Water used at mass, after which they were to be worn next the heart. The parchments were exhibited.

Declared unanimously, that this contains an additional profession and doctrine of superstitious necromancy, with an additional method of

practising it, added to a new insult to the sacred ceremonies of the mass.

9th. The said person having requested to see the book of magic which he declared was in his possession, he refused to exhibit the same, declaring that the person who made the demand would not be able to read or understand it, but that he had studied the whole in a certain place which he named.

Declared unanimously, that this contains a profession of possessing a book of magic, and studying the same for the purpose of practising it.

Finally declared unanimously, that the person under qualification be pronounced under suspicion *de levi*.

FR. FRANCISCO SIGES,
P. ANTONIO MIRA,
FR. JUAN BA. LLOPIS,
FR. AUGUSTIN DE VINAROS.
DON JOACHIN DE ESPLUGUES Y PALAVICINO,
Secretary.

In the Royal Palace of the Inquisition of Valencia, on the twentieth day of May, one thousand seven hundred and fiftysix, the Inquisitors Licentiate Don Antonio, Pelegen Venero, and Don Inigo Ortiz de la Peña being at their morning audience, having examined the information received in this Holy Office against Don Antonio Adorno, a soldier in the regiment of Asturias, belonging to the company of Don Jorge Duran, by birth a Neapolitan, and a resident in this city, for the crimes of professing necromancy and amatory divination, and practising the same with insult to the holy sacrifice of the mass and the holy cross—

Ordered unanimously, that the said Don Antonia Adorno be confined in the secret prison of this Holy Office; that his property be sequestered; his papers, books, and instruments seized, and arranged for his accusation. Ordered further, that before execution, this be submitted to the members of His Majesty's Council of the Holy General Inquisition.

DON JOACHIN DE ESPLUGUES Y PALAVICINO,
Secretary.

[In this part of the trial are inserted the originals of fourteen letters, received from the different Inquisitions in the kingdom, stating that their records had been examined without finding anything against the prisoner. Also a letter from the Grand Council of the Inquisition at Madrid, confirming the above order.]

In Council May 31st, 1756.

The Dicasts Ravazo, Berz, Barreda, and Herreros.

Let justice be executed according to the above order.

TO OUR CALIFICATOR DR BOXO, AND THE FAMILIARS NAMED IN THIS LETTER.

Don Antonio Adorno, the subject of the accompanying warrant of imprisonment, is a soldier in the company of Don Jorge Duran, belonging to the regiment of Asturias. He is a Neapolitan by birth, of a middling height, robust, dark complexioned, with a long scar over his left eyebrow, and a dint in the top of his forehead. His age is twentyfour or twentyfive years. In order to apprehend him, our Calificator, Dr Joseph Boxo, will conduct himself in the following manner:—

He will consult, with great secrecy and caution, accompanied by our Familiar Francisco Suñer, or, in his absence, any other Familiar in that neighborhood, as Notary, the Colonel or Commander of the regiment, where the said Don Antonio Adorno shall be found, and if necessary, exhibit to him the Warrant. His assistance is to be required in the apprehension, which being performed, his person is to be immediately identified. All the papers, books, and instruments found upon him are to be seized, as well as those which may be found among his baggage. Care should be taken that he may have no time to conceal anything, and all the effects seized, the Calificador will remove to his own house. At the same time, all his other property, if he possess any, will be sequestered, an inventory thereof being taken, and the whole left in the hands of such person as the Colonel or Commander may appoint for the safe keeping of the same, commanding him not to part with anything without our order. If any cash should be met with, the Calificador will secure it, as well as the

clothes for the use of the prisoner, all which are to be transported to his house along with the papers, books, and instruments above specified.

This done, the Familiar Suñer, or whoever shall act as Notary, will divest him of every kind of offensive weapon, and conduct him to the town of Arbos on horseback, without pinioning him, as this is only directed in cases where an escape is attempted. Two stout fellows armed will guard him on each side. At Arbos, he is to be delivered into the hands of our Familiar Raymundo Freiras, an inhabitant of that place. Should he not be at hand, the prisoner is to be brought onward to Vilafranca and committed to the care of our Familiar Pedro Batlle, along with the papers, books, instruments, money, and clothes of the prisoner, all which are to be brought from the place of his arrest, as well as the warrant for his imprisonment, a copy of the inventory of his goods, this letter, and the adjoined passport for the Gate of the Angel in this city. The transfer being made to any one of the abovementioned Familiars, a receipt will be taken, which it is to be transmitted to this tribunal, as also a bill of the expenses paid by the person receiving it, from the time he undertook the business till his return home, specifying the pay of the guard, horse hire, his own and the prisoner's expenses.

The Familiar of Arbos or Vilafranca, will, in the same manner, transport him with whatever he may receive from the Familiar of Reus, to this city, which he will enter at dusk just before the gates are shut. He will enter at the Gate of the Angel, and present the accompanying passport of the Governor to the Officer of the Guard. Should the Patrol demand to see it, it may be exhibited to them, after which he will proceed directly to this Royal Palace of the Inquisition, and inquire for the Alcayde. Into his hands will then be delivered the prisoner, and all the effects pertaining to him, together with the warrant of imprisonment, the inventory of the goods, and this letter. The next day he will come before this tribunal and give a relation of his proceedings. God preserve you.

Royal Palace of the Inquisition of Barcelona, June 30th, 1756

The Licentiate,
D. JOSEPH DE OTERO Y COSSIO.
The Licentiate,
DON MANUEL DE GUELL Y SERRA.
JUAN ANTONIO ALMONACID, *Sec'y*.

ANSWER.

MOST ILLUSTRIOUS SEÑORES.

Until the 10th of the present month I was not able to succeed in apprehending Don Antonio Adorno, as he did not make his appearance in this quarter before that date. The capture was made with great caution, the commander having contrived to deliver him into my hands in the prison of the regiment, from which place he proceeds this day, Tuesday, July 13th, under the care of the Familiar Rafel Bellveny, the Familiar Francisco Suárez being sick.

No inventory of his property was taken, as none was to be found either upon his person or in his knapsack, except the papers herewith transmitted, and a book containing various documents respecting the nobility of the house of Adorno. No money has been found, and the prisoner is considerably in debt to the regiment. The commander has kept every article of his clothing, so that it has been necessary to purchase a suit for him. God preserve your Excellencies many years.

DR JOSEPH BOXO, *Calificador and
Commissary of the Holy Office.*

Reus, July 13th, 1756.

FIRST AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the fifth day of August, one thousand seven hundred and fiftysix, the Inquisitor, Licentiate Dr Joseph de Otero y Cossio, being at his morning audience, ordered to be brought out of prison, a person calling himself Don Antonio Adorno, a native of the city of Genoa, aged twentyseven years, who was sworn to declare the truth, and preserve secrecy as well on this as on all other occasions, till the decision of his cause.

Questioned, his name, birthplace, age, occupation, and the date of his imprisonment.

Answered, that he was born, as above stated, in the city of Genoa, that his age was twentyseven years, that he was a soldier in the infantry regiment of Asturias, company of Don Jorge Duran, and that he was arrested on the tenth of the last month.

Questioned, who was his father, mother, grandfather, uncles, &c.

[Here follows the genealogy of the prisoner.]

Questioned, of what lineage and stock were his abovementioned ancestors and collateral relatives, and whether any one of them, or he himself, had ever been imprisoned or put under penance by the Holy Office of the Inquisition.

Answered, that his family was noble, as above stated, and that neither he, nor any one of them had ever been punished or put under penance by the Holy Office.

Questioned, if he was a baptized and confirmed Christian, and heard mass, confessed, and communed, at such times as the Church directed.

Answered, Yes; and the last time he confessed was to Father Fr. Antonio —, (his name he did not know) a barefoot Friar of the Convent of the Holy Trinity; and that he partook of the sacrament in this Convent in the city of Valencia, where his regiment was then stationed.

Here the prisoner crossed himself, repeated the *Pater Noster*, *Ave Maria*, and *Credo*, in Spanish, without fault, and answered properly to all the questions respecting the Christian doctrine.

Questioned, if he could read or write, or had studied any science.

Answered, that he could read, write, and cipher, having learned of Dr Francisco Labatra, in Vienna; and that he had studied grammar in the Colegio de los Praxistas in this capital.

Questioned, what were the events of his life.

Answered, that he was born in Genoa; and while a boy, was carried by his parents to Vienna, where he followed his studies as above stated. At the age of sixteen he entered as a cadet in a regiment of infantry. After serving here till twentytwo, the regiment was broken up, and he remained with his mother at Vienna for the space of a month. He then set out for Spain for the purpose of securing some property belonging to him by inheritance from his ancestors in Bellpuix and other parts of the kingdom. He landed at Barcelona, and proceeded to Bellpuix, Malaga, Granada, and Seville; but, failing in his attempts to obtain his property, he enlisted in the infantry regiment of Asturias then quartered in this city. In this regiment he visited several parts and cities of these kingdoms at their respective garrisons, and particularly the kingdom of Valencia, from whence he proceeded to Reus, where he was arrested.

Questioned, if he knew or suspected the cause of his imprisonment.

Answered, that he supposed it to be on account of some acts he had performed to discover certain thieves in his company, which performances he had executed with a degree of mystery and mummerly to create wonder. The facts were as follows.

In the Guard of the Duke of Berwick, at Valencia, some shirts and stockings were stolen, and the commanding officer requested the prisoner to make trial of one of his methods of discovering the thief, he having before been a witness of the operation of one of them. He accordingly assembled all the soldiers of the guard in a dark room, and informed them they must each one put his finger into a cup of water, and that the water would blacken the finger of the thief. Before the room was darkened he showed them the cup containing a quantity of clear water. They all agreed to the proposal, and the room was shut up so as to exclude every ray of light. The prisoner then conveyed a quantity of ink into the cup, and after making a preliminary harangue directed every one to dip his finger within. This they all did except one whom he supposed to be the thief. He wet his finger in his mouth lest it should be discovered that he had not complied with the direction.

They now threw open the windows and found every man's finger black but that of the delinquent. The prisoner perceiving this and observing the agitation which he manifested, exclaimed to him, 'You are the thief;' and finally compelled him to pay for the stolen articles.

In order more fully to impress them with the belief that this man was guilty, the prisoner directed the commander of the guard to write the name of each person on a piece of paper and burn it to ashes, informing him that this ashes would give the impression of the name of the one who was guilty, upon his hand. In order to effect this the prisoner wrote with a certain liquor upon his own hand the name of Juan Antonio ——, (his other name he did not remember) then showing himself to the company he washed his hands before them, (taking care, however, not to rub them much) and observed, 'You see there is nothing now written upon my hand; but when this list is burnt it will exhibit there the name of the thief.' The paper was then burnt, and he rubbed the ashes upon his hand, when the letters made their appearance, and the prisoner gained the reputation of a wizard, more especially in the conception of the said Juan Antonio.

The prisoner declared that in the harangue abovementioned, he made use of no prayers, and that the words which he uttered were made use of solely to astound and amaze the hearers.

He was then informed that in this Holy Office it was not customary to imprison any one without sufficient information that he had said, done, or seen, or heard something contrary to the Holy Religion of God our Lord, and the Holy Mother Apostolic Roman Church, or against the proper and free jurisdiction of the Holy Office, in consequence of which he was to understand that he was imprisoned on account of some such information. Therefore he was exhorted in the name of God our Lord and his glorious and blessed Mother our Lady the Virgin Mary, to bethink himself and confess the whole truth in relation to the matter wherein he felt guilty, or knew of the guilt of others, without concealing anything or bearing false witness against any one, by doing which, justice should be executed, and his trial despatched with all brevity and mercy.

Answered, that he recollected nothing more, and that what he had stated above was the truth. His declarations were then read, and declared by him to be correctly recorded. He was then admonished to bethink himself and remanded to prison.

Signed by him,
M. ANTO. ADORNO.
DON JOSEPH DE NOBOA, *Sec'y*.

SECOND AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the seventh day of August, one thousand seven hundred and fiftysix, the Inquisitors, Licentiate Dr Joseph de Otero y Cossio, and Dr Manuel de Guell y Serra, being at their morning audience, ordered the abovementioned Don Antonio Adorno to be brought out of prison; which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair which he was bound to divulge according to his oath.

Answered, No.

He was then informed, that he was aware he had, in the preceding audience, been exhorted in the name of God, our Lord, &c.; and he was anew exhorted in the same manner, by conforming to which he would

acquit himself like a Catholic Christian, and his trial should be despatched with all brevity and mercy; otherwise justice should be executed.

Answered, that he had considered the exhortation, but had nothing to add, and what he had above related was the truth, according to the oath he had sworn. This declaration being read, was declared by him to be correctly recorded, and, exhorted to bethink himself, he was remanded to prison.

Signed by him,

M. ANTO. ADORNO.
DON JOSEPH DE NOBOA, *Sec'y*.

THIRD AUDIENCE.

In the Royal Palace of the Inquisition of Barcelona, on the twelfth day of August, one thousand seven hundred and fiftysix, the Inquisitors, Licentiate Dr Joseph de Otero y Cossio, and Dr Manuel de Guell y Serra, being at their morning audience, ordered the said Don Antonio Adorno to be brought out of prison; which being done, and the prisoner present, he was

Questioned, if he remembered anything relating to his affair, which he was bound to divulge according to his oath.

Answered, No.

He was then informed, that he was aware he had been exhorted in the preceding audience, &c.

Answered, that he had considered the exhortation, but had nothing more to say.

Straightway appeared the Licentiate Don Fausto Antonio de Astorquiza y Urreta, Inquisitor Fiscal of this Holy Office, and presented an accusation, signed by him, against the said Don Antonio Adorno, which accusation he formally swore was not offered through malice. Here follows the accusation.

MOST ILLUSTRIOUS SIRS,

I, the Inquisitor Fiscal, appear before your Excellencies, and accuse criminally Don Antonio Adorno, a native of the city of Genoa, aged twentyseven years, a soldier in the regiment of Asturias, and at the time of his arrest, in garrison, in the town of Reus, in this principality, now attached to the secret prison of this Holy Office, with his property sequestered, and present here in person—for that this person, being a baptized and confirmed

Christian, and not having the fear of God, or the justice of your Excellencies before his eyes, has committed heavy crimes against our Holy Catholic Faith, by professing and practising various necromantical arts, with insult to the holy sacrifice of the mass, its sacred ceremonies, and the holy cross; also imparting his evil art and instruments to others, for their practice, with the like insult to the holy cross and holy sacrifice of the mass. On which account, I hold him at least to be suspected *de levi* in the faith, and accuse him of the whole, both in general and in particular.

1. The said person, on a time specified, and in the company of certain persons named, declared that he was able when anything was stolen, to discover the thief, and in proof of this assertion, stated that he had formerly done this by writing the names upon papers, of some persons, among whom a sum of money had been stolen, and putting the papers into the fire, repeating the words, '*Ego sum; factus est homo, consummatum est.*' The papers were consumed, except that bearing the name of the thief. None but the said person could take this paper out of the fire, and the money was found upon the one designated.

2. Some one objecting to him, that this could not be done without some pact with the devil, he replied that it was so justifiable an act, that he would perform it immediately after mass or communion, and it being declared a matter to be laid before the Inquisition, he affirmed that he would do it in presence of the Inquisitors.

3. Furthermore, he asserted that he could execute the above purpose by rubbing the ashes of the papers upon his hand, where it would leave impressed the name of the thief; also, that he knew another method which he did not explain. I request that he may be questioned what this method is, where he learned it, and whether he has practised these two last, uttering the words before specified.

4. Continuing the conversation with the abovementioned person, he informed him that he possessed certain instruments of use in various ways, and in fact showed him something folded up, which he took out of his pocket. And, on being asked whence he obtained the knowledge of these arts, replied that he learned them from a book of magic in his possession, which enabled him to do whatever he pleased. I request that he may be questioned respecting this book of magic, as well as the contents of the abovementioned envelope.

5. He told this person that he could learn from the same book how to make himself invisible, as well as invulnerable to the thrust of a sword.

6. Being questioned by this person whether he knew any art relative to playing at ball, he answered, not then, but that he would come to his house, and reveal to him a secret for gaining the favor of the ladies.

7. He went accordingly to this house, and there gave to the said person a strip of parchment bearing these words, '*Ego + sum. Exe + homo consummatum + est. Ego Juaginus Aprecor Domini Nostri Jesu Christi in vitam eternam seculi seculorum libera me de omnibus rebus de ignis cautus et omnia instrumenta hominum detenta me ach die ach nocte custode rege et gubernare me Amen.*' This was rolled up with a piece of lead and bone, and directed to be worn, in the shape of a cross, next the skin, near the heart, which would make the wearer invulnerable. I request that this parchment may be examined, and the prisoner questioned respecting it.

8. He also gave the same person another strip of parchment, containing various letters and figures, taking measures with it upon his body, for the purpose of securing him from wounds. He directed him to rub this over with the wax which dripped from the tapers during mass, and afterwards to wear it next his skin. I request that this may likewise be examined, and the prisoner questioned respecting it.

9. He furthermore gave to the same person four other written parchments, directing him to wear one of them upon the little finger of his left hand under a white stone set in a ring. When this stone turned red, he might play at any game except dice or *las quillas*, and be sure to win; but, if it turned black, he was not to play. He directed him further to put these parchments in his right shoe and sprinkle them with holy water, after which they were to be worn near the heart. I request that these also may be examined, and the prisoner questioned concerning them.

10. The same person requesting to see the abovementioned book of magic, he refused him, alleging that he could not read or understand it, but that he, the prisoner, had studied the whole. I request that farther investigations may be made respecting this book.

11. On another occasion, when some articles had been stolen, he discovered the thief in this manner. Collecting all the suspected persons in a dark room, he made a harangue, and ordered each man to dip his finger into a cup containing water, informing them that the water would blacken the

finger of the thief. Before this was executed, he conveyed some ink into the cup. Afterwards the windows were opened with another harangue, and each man's finger was found black with the exception of one who had not obeyed the direction. This the prisoner judged to be the thief. Without doubt the abovementioned harangues were conformable to the rest of his actions, and I request that he may be examined concerning them.

12. Furthermore he directed that the names of the persons present on the above occasion, should be written upon a paper and burnt. The ashes he rubbed over his hand, where it left marked the name of the delinquent, which the prisoner had previously written there with a certain liquor, in such a manner that it could not be seen.

13. In the audiences which have been held respecting him, he has been exhorted to declare the truth and confess his crimes, which he has not done, but endeavoured to hide the enormities so recently committed by him, thus rendering himself unworthy of that mercy which your Excellencies extend to those who confess with sincerity, and deserving a punishment corresponding to his great offences.

Therefore, I request and entreat your Excellencies to accept the confession of the said prisoner, so far as in my favor, and no farther, and to regard as fully proved my accusation, or such part thereof as may suffice to obtain a sentence, condemning the prisoner as perpetrator of the above crimes to the heaviest punishments thereto assigned by the sacred canons, pontifical bulls, common laws, and edicts of this realm, for a punishment to him, and a terror and example to others.

Furthermore I request your Excellencies that without any diminution of my proofs, the prisoner may, if necessary, be put to rigorous torture, to be continued and repeated till he confess all his crimes and accomplices.

The Licentiate,

DON FAUSTO ANTONIO DE ASTORQUIZA Y URRETA.

This accusation having been presented and read, the said Don Antonio Adorno was formally sworn to answer thereto, and declare the truth; and the same being again read, article by article, he answered as follows.

To the head of the accusation he replied that he was the same Don Antonio Adorno mentioned therein, and that although he in reality performed what has been laid to his charge, yet he never imagined it to be contrary to our Holy Catholic Faith, nor supposed it to be necromantic or superstitious; that he never had practised anything out of disrespect for the mass, nor had uttered sacred language for a superstitious purpose, nor imparted evil doctrine or instruments to others for this end; therefore he ought not to be suspected in the faith.

To the first article, he answered, that it was true, and that the circumstances occurred in the city of Valencia, in the house of a person whose name he could not recollect, but only that he resided in the Calle del Mar, near a Convent of Nuns. He made the assertions to give the company a high opinion of him. There were present on this occasion, three soldiers and an officer, who, with the prisoner, formed the patrol, a scrivener and two Alguacils, who also were attached to the patrol in Valencia. The operation which he described, he had heard of in the city of Inspruck in Germany. He had once practised it on the occasion of three dollars being stolen from Matheo Suarez, his sergeant. He wrote the names of some persons upon pieces of paper, and on the back of each, the words '*Ego sum: ex homo: consummatum est.*' These were thrown into the fire, but the experiment did not succeed, for they were all burnt. He did this in private, and merely to satisfy his curiosity, without imagining it to be superstitious.

To the second article, he answered, that it was true he had made the assertions contained therein, as he could not believe the act to be evil, in which the words of Christ were used.

To the third article, he answered, that it was true he had spoken what is therein stated, and that the divinations mentioned, were those he had confessed in the first audience, but that he had not made use of any prayers in these operations, although on the abovementioned occasions he gave those present to understand that various words were to be uttered.

To the fourth article, he answered, that it was true the conversation and acts therein described took place; that it happened in Valencia, with the scrivener abovementioned. The paper which he took from his pocket, contained some bits of bone and a bullet battered to pieces. As to what he asserted respecting the book of magic, he had done it to measure the degree of credulity of the said scrivener, who readily swallowed all his tales, and

offered him money to learn the abovementioned arts. He never possessed any such book of magic.

To the fifth article, he answered, that what it contained with respect to the security from the thrust with a sword, was true, but as to what it stated respecting his assertion of making himself invisible, he had no recollection of any such thing.

To the sixth article, he answered, that it was true.

To the seventh, eighth, ninth, and tenth articles, he answered, that they were true. The parchments described by the Fiscal, and now exhibited, were recognised by him for the same he gave to the scrivener, with whom he held the conversation described. This man's name was Joachin. He was so desirous of obtaining a knowledge of the things related by the prisoner, that he furnished him with the parchment for the purpose. It was all done by the prisoner, to divert himself with the credulity of this person, and upon the parchments was written, among other expressions, these words in the German language, '*tu pist aynor tas tu tost claupt*;^[17] that is, '*you are a fool to believe this*,' by which it might be easily perceived that his only object was to impose upon him.

It being now late, the audience closed, and the above having been read to the prisoner, was declared by him to be correctly recorded, and the truth, according to the oath which he had sworn.

Signed by him,

M. ANTO. ADORNO.
DON JOSEPH DE NOBOA, Sec'y.

In the Royal Palace of the Inquisition of Barcelona, on the thirteenth day of August, one thousand seven hundred and fiftysix, the Inquisitors, Licentiate Don Joseph de Otero y Cossio, and Don Manuel de Guell y Serra, being at their morning audience, ordered the abovementioned Don Antonio Adorno to be brought out of prison; which being done, he was ordered to continue his answers to the accusation under the oath which he had already sworn.

To the eleventh and twelfth articles he answered that they were true, and that the circumstances took place in the manner described by him in the first audience, but that the harangues he made, had only for their object to create wonder in the hearers, and that he used no prayers nor sacred words.

To the thirteenth article he answered that he had confessed everything, and that he promised a thorough amendment of his follies into which he had been drawn by his ignorance, and desire to gain a little money to relieve his misery.

To the conclusion he answered that he again implored the mercy of the Holy Office for what he had confessed, which was all he had done, and that although he were put to the torture he could say nothing more. The above being the truth according to the oath he had sworn, and the whole having been read in this audience, was declared to be what he had confessed, and was signed by him.

M. ANTONIO ADORNO.
DON JOSEPH DE NOBOA, *Sec'y*.

SENTENCE.

In the Royal Palace of the Inquisition of Barcelona, on the fourteenth day of August, one thousand seven hundred and fiftysix, the Inquisitors, Licentiate Don Joseph de Otero y Cossio and Don Manuel de Guell y Serra being at their morning audience, and having examined the proceedings against Don Antonio Adorno as far as the accusation and answers thereto—

Ordered, unanimously, that this person be severely reprehended, admonished, and warned, in the Hall of the Tribunal with closed doors, and that he be banished perpetually from the Spanish dominions at a date to be fixed upon, and that he be informed that if he fail to comply punctually with every order, he will be severely punished and proceeded against with all the rigor of justice;—that this trial be suspended for the present and the sentence submitted to the Council.

DON JOSEPH DE NOBOA, *Sec'y*.

In the Council, September 4th, 1756.

Señores, BARREDA, RAVAZO, and HERREROS.

Let justice be executed according to the above sentence.

EXTRACTS

FROM THE REGISTER OF THE PRISONS.

March, 1730.

No.	8.	Juan
Panisso.	Prison of	
the	Martyrs.	
Maintenance,	two	
sueños and	the	
bread of	the	
Contractor.		

Juan Panisso, a native and inhabitant of this city, a married man, in custody in the secret Prison of this Holy Office, with his property sequestered, for uttering heretical speeches. Respecting this prisoner, information was forwarded last January, that proceedings were on foot for taking the depositions of the witnesses against him, with a view to their publication. The audience for this purpose was held on the twentyninth of this month, and the prisoner answered to the charges with a full denial. In this state the case remains at present.

April, 1730.

The prisoner was furnished with the publication of the testimony, and allowed to confer with his counsel. He drew up articles of defence, and in this state the case remains.

June, 1730.

The prisoner's defence was received on the third of this month, and the audience for communication with his counsel was held on the eighth, when his final defence was made. On the ninth, sentence was passed with the assistance of the Ordinary, unanimously, that the prisoner should be put to the regular torture, before the execution of which, it was resolved that the case should be referred to your Highness, which was done on the tenth. The matter remains in this state waiting for the decision of your Highness.

August, 1730.

On the first of July we received the order of your Highness to put the prisoner to the torture *ad arbitrium*. On the twelfth an audience was held, in which a sentence to that effect was passed. The prisoner was informed of the same, and admonished in the customary manner, but persisted in his

denial. He was then put to the torture,^[18] but suffered the whole without confessing anything. On the fifteenth, with the assistance of the Ordinary, his case was definitively judged by a sentence pronounced unanimously, that the prisoner hear his own condemnation read in the hall of the Tribunal with open doors; that he make an abjuration *de levi*, be severely reprehended and warned, absolved *ad cautelam*, and be banished from this city, Madrid, and the court of his Majesty, to a distance of eight leagues, for the space of five years, the three first of which to be spent in the royal garrison of this city. This sentence was referred to your Highness the same day, and on the fourteenth of August, the answer received in which your Highness ordered that the prisoner be brought into the hall of the Tribunal, and there, with closed doors, be severely reprehended and warned, that he be admonished to abstain from the like offences in future, and forthwith dismissed. This was executed on the same day, together with the audience for binding him to secrecy, and making inquiries respecting the prison. The prisoner was then dismissed.

DR DON MIGUEL VIZENTE CEBRIAN Y AUGUSTIN.

March, 1730.

Isabel Boxi, alias Modroño. Prison of Sta. Maria. Maintenance, two sueldos and the bread of the Contractor.	Isabel Boxi, alias Modroño, widow, native of Vilaseca, in the diocese of Tarragona, aged sixtythree years, confined in the secret prison of this Holy Office, with her property sequestered, for witchcraft and superstition. Respecting this prisoner your Highness was informed in the month of January, that the witnesses were giving their testimony against her for publication.
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Nothing was done in all February, and part of the present month, with respect either to this or the other cases, for this reason; the Inquisitor, Licentiate Don Balthasar Villarexo has been out of health most of this month, and I have been in the same state all the month of February. For the same reason, also, no account was transmitted the last month, there being no proceedings to relate. At present, we have done nothing more than hold an audience for the publication of the testimony against the above prisoner, and shall proceed with this case after the holidays.

April, 1730.

The publication of the testimony was done on the eighteenth and twentyfourth of this month, on which occasions the prisoner made her answers to the charges, and denied the whole. In this state the case remains at present.

May, 1730.

The publication was communicated to the prisoner, and she conferred with her counsel, and drew up her defence. Sentence was passed, and the same referred to your Highness.

June, 1730.

On the third of this month, the order of your Highness respecting the prisoner was received, which having confirmed the sentence, an *auto* was given in the church of Santa Agueda on the eighteenth of this month, the prisoner being present in penitential garments, with the insignia of her offences. Her sentence was read and she made an abjuration *de levi*, after which she was absolved *ad cautelam*.^[19] On the nineteenth, she received a scourging, and on the twentieth, after being reprehended, admonished, and threatened, she was informed that she must pass three years of confinement, in Vique, and be banished seven years more from Tarragona, Barcelona, and Madrid. On the same day, the audience was held for binding her to secrecy and ascertaining the state of her connexion with the prison. The day following she was despatched to Vique where she now remains in the custody of a learned person who is to instruct her in the Catholic Faith.

DR DON MIGUEL VIZENTE CEBRIAN Y AUGUSTIN.

March, 1730.

No. 3
Ana Vila y Campas.
Prison of La Cruz.
Maintenanace, two
sueldos and the
bread of the
Contractor.

Ana Vila y Campas, a native and inhabitant of this city, aged thirtyfive years, and a widow, confined in the secret prison of this Holy Office, with her goods in sequestration, for witchcraft and superstitious impostures. With relation to this prisoner, your Highness was informed in the month of January, that the depositions were collecting against her. The audience has since been held, and after the holidays, the cause will be carried on.

April, 1730.

On the seventh and twentyfirst of this month, the audience for publication was held, in which state the case remains at present.

May, 1730.

The prisoner communicated with her counsel, answered to the charges, and was sentenced. The sentence was referred to your Highness.

June, 1730.

On the thirteenth day of this month, the order of your Highness confirming the sentence, was received, in consequence of which an *auto* was given in the church of Sta Agueda, where the prisoner was present, in penitential garments, with the proper insignia of her offences. Her sentence was read, she made an abjuration *de levi*, and was absolved *ad cautelam*. On the nineteenth, she was scourged, and on the twentieth, was reprehended, admonished, and severely threatened, after which the audience was held for binding her to secrecy, and making inquiry respecting the prison. On the night of the same day, she was carried to the *casa de la Galera*, where she is to be confined for ten years, at the expiration of which term, she is to be banished perpetually from this city and Madrid, for the distance of eight leagues. She remains at present in the charge of a learned person, who will instruct her in the Catholic Faith.

February, 1736.

Joseph Fernandez
in the secret prison
of this tribunal, for
having written and
spoken divers
heresies,
blasphemies, and
insults against our
Holy Faith.
Ditstitute.
Maintenance, two
sueldos, and the
bread of the
Contractor.
Prison of the
Innocents.

Joseph Fernandez, a native of the town of Santa Llina, in the bishopric of Urgel, aged eighteen years, formerly an apothecary, and latterly a soldier in the cavalry regiment of Calatrava, taken from the Royal prison of this city of Barcelona, and transported to the secret prison of this tribunal, on the twentieth of the present month of February. This prisoner made a spontaneous confession on the fifteenth of January of the present year, declaring that he had made an explicit league with the devil, and had granted him his soul. He furthermore stated that he had uttered, on many occasions, divers impious and heretical sayings against God, and against Christ and his Holy Mother. This confession was ratified on the eighteenth and twentyfirst

of the month; and on the twentyeighth, in consequence of his confession, a sentence was passed, that the said Joseph Fernandez be reprehended, admonished, and warned; that he make an abjuration *de vehementi*, be absolved *ad cautelam*, and intrusted to the charge of a Calificador or learned person, for the purpose of being instructed in the mysteries of our Holy Faith, ratifying his previous confession, which sentence was ordered to be referred to your Highness, and transmitted the same day.

On the eighteenth of February, the answer of your Highness was received, with a confirmation of the sentence, which was not put in execution, in consequence of the prisoner's having written several letters to the Inquisitor Don Balthasar Villarexo, which letters contained insulting, heretical, and blasphemous matter against our Holy Catholic Religion, as well as contemptuous and insolent language against the said Inquisitor. For this reason an order was issued for his imprisonment, and the said Joseph Fernandez was, on the twentieth of the same month, taken from the Royal Prison, where he was then confined. On the twentysecond and twentythird, an audience was held, in which he confessed that the letters were his, and that he had written them for the purpose of getting free from the Royal Prison, and the garrison where he was confined for desertion. He having named several persons in prison, before whom he had uttered heretical speeches, a commission was expedited on the twentyeighth to take their depositions. The cause is delayed till the depositions are completed.

April, 1736.

On the twentysecond of March, the depositions of several witnesses were received, and some of them were ratified *ad perpetuam rei memoriam*, as the deponents in question were about to depart for the garrisons, to which they were condemned. A meeting of the Calificadores was held on the twelfth of April, and the proceedings examined. On the thirteenth, an order was issued that the prisoner should be taken from the intermediate prison, which he then occupied, and transferred to the secret prison. On the seventeenth, nineteenth, and twentieth, audiences were held, in which he confirmed what he had before declared in the audiences of the twentysecond and twentythird of February; namely, that his confession of leaguings with the devil and giving up his soul, was wholly fictitious, having been fabricated by him for the purpose of getting free from the garrison of Oran, where he was confined. He further confessed, that he had, in reality,

uttered speeches against our Holy Faith, but that this also was done for the purpose above stated, and not with any belief in his own assertions. On the twentyseventh of the present month, an audience was held, in which the prisoner nominated for his *Curador*, Dr Joseph Viñals, who accepted the trust, and was allowed to exercise it. On the same day, the prisoner, in the presence of his *Curador*, ratified his confession without adding or diminishing anything, and the prisoner having been admonished in the regular manner, the accusation against him was presented.

May, 1736.

The prisoner answered to the accusation on the twentyseventh and thirtieth of April, confessing the charges to be true, repeating as before, that he had spoken the words as a means of being liberated from his confinement in the garrison of Oran, and without any bad intention. Having appointed the abovementioned Dr Joseph Viñals for his counsel, he conferred with the prisoner respecting his case on the second day of the present month. The counsel declared that he was ready for the proofs and a definitive decision, whereupon a commission was ordered for a ratification of the testimony *in plenario*. On the eleventh, the ratifications were received, and on the twentyfifth and twenty ninth, audiences were held, in which a regular and formal publication of the testimony was performed.

September, 1736.

On the first of June, publication was made of several letters written by the prisoner to different persons. On the fifth, the answers of the prisoner to the charges were ratified before Dr Joseph Viñals, his *Curador*, and the prisoner communicated with the counsel respecting his defence. On the thirtieth, the defence was offered by the prisoner's counsel, and a commission was granted to make the inquiries requested therein. On the eighteenth of July, the twenty eighth of August, and first of September, the result of these inquiries was received in the tribunal. On the fourth of September, an audience was held, and the prisoner informed that the matters for his defence were arranged, to which he answered, that he had nothing further to offer, and was ready for the decision. One of the charges against him, being that he had affirmed the physicians had pronounced him disordered in his mind, sometime in the last year, an order was issued for the physicians of the prisons to examine him. On the twentyfifth of

September, a paper was received from the two physicians declaring that they had examined him, and that he was not then, nor had been at any time previous, in a state of mental alienation.

December, 1736.

On the eleventh of October, an audience was held, at which the Ordinary attended, and sentence was passed, that the condemnation of the prisoner be read before him in the hall of the tribunal with open doors; that he make an abjuration *de levi*, and be banished eight leagues from this city and Madrid, for the space of three years, the first of which to be passed in confinement in some garrison to be fixed upon for that purpose; also that he be severely reprehended, admonished, and warned, and returned to the confinement from which he was taken, when brought to the prison of this tribunal. Ordered also, that before the execution of the above sentence, it be referred to your Highness, which was done on the thirteenth of October. The matter is now in waiting for the answer.

January, 1737.

On the eleventh of this month, the answer of your Highness was received with the order respecting the prisoner, in execution of which, his sentence was read to him in the hall of the tribunal, and he made an abjuration *de levi*, was absolved *ad cautelam*, admonished, reprehended, and warned, after which he was sentenced to ten years banishment from this city and the Court, to the extent of eight leagues, the first five years of his banishment to be passed in confinement in the garrison of Oran. The same day an audience was held to bind the prisoner to secrecy, and make inquiries respecting the prison; after which he was sent to the Royal Prison of this city.

Secret prison of the Inquisition of Barcelona, January thirtyfirst, 1737.

DON FRANCISCO ANTONIO DE MONTOYER.

January, 1737.

Miguel Antonio Dundana, alias Miguel Antonio Maleti, in the secret prison of this	Miguel Antonio Dundana, alias Miguel Antonio Maleti, a native of the city of Coni, in Piedmont, aged twentyfour years, a soldier in the regiment called the Queen's Dragoons, confined in the secret prison of this tribunal on the sixth day of December last, for heretical speeches. On the tenth, fourteenth, and seventeenth of the same month,
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tribunal, for
heretical speeches.
Prison of St.
Bartholomé.
Destitute.
Maintenance, two
sueldos, and the
bread of the
Contractor.

the customary audiences were held, in which the prisoner confessed nothing to the point. On the last day he nominated for his counsel, Dr Manuel Bonvehi, who accepted the trust, and the confessions of the prisoner were ratified. The accusation was then presented, to the several articles of which the prisoner replied on the sixteenth and nineteenth of the same month, declaring that some of them were false, and some true; but that he had uttered the words in mere jest. On the twentieth, an audience was held, in which the prisoner conferred with his counsel concerning his defence, and ratified the answers made to the articles of the accusation, making an end by calling for the proofs. On the same day, letters were sent to the other Inquisitions, requesting that their records might be inspected to know if any proceedings existed against this person. On the eleventh of the present month, a commission was granted to ratify the testimony for a decisive trial.

March, 1737.

On the sixteenth of this month, the ratifications of the testimony were received in the tribunal, the business having been delayed on account of the great diversity of quarters occupied by the regiment of the Queen's Dragoons.

May, 1737.

On the eighth, ninth, and tenth of April, the testimony was given in publication, and a copy of the same given to the prisoner, that he might arrange his defence by the help of his counsel. On the eleventh, an audience was held, in which he conferred with Dr Manuel Bonvehi, his advocate, and on the second of May, an audience was held, in which his defence was received. On the ninth of the same month, the commission and papers relating to the affair, were sent for.

June, 1737.

The papers were not received this month, on account of the difficulty in finding the requisite persons, but it is expected the business will be accomplished shortly.

July, 1737.

On the sixth of this month, the papers were received, and on the eighth the prisoner communicated with his counsel. On the seventeenth, the testimony against him was attested *in plenario*, and his condemnation confirmed. On the twentieth, the proceedings of the trial were examined, and the Reverend Father M. Fr. Mariano Anglasell being present in the capacity of Judge Ordinary of the bishopric of Solsona, it was unanimously ordered that the prisoner be put to the regular torture; which sentence was ordered to be previously submitted to your Highness.

September, 1737.

On the thirtieth of August, your Highness confirmed the above sentence, and ordered that the torture should be given *ad arbitrium*, to extort a confession of the acts and intentions of the prisoner. The papers relating to the trial which had been forwarded, were received back on the seventh of the present month. The prisoner being under the hands of the physician, on account of his health, the torture could not be applied till the twentieth, when the physician having certified that he was then in a condition to endure it, an audience was held, and the charges against the prisoner repeated, to which he answered that he had nothing to reply, further than what had been already said. He was then apprised of the sentence against him, and despatched to the torture room, where he confessed that he had uttered many of the assertions imputed to him, but that it was done in sport, and at times when his companions had intoxicated him, and he was not conscious of what he said, believing in his heart the contrary to what he had uttered.

On the twentyfifth, an audience was held, in which he confirmed without alteration, what he had confessed under the torture, adding that he had made other assertions of the like nature, all for the motive above stated, and without entertaining inwardly any belief contrary to the precepts of the Holy Mother Catholic Church. In this manner the prisoner attempted to palliate his heretical speeches. On the twentyseventh, his confessions having been examined, they were attested, and the censure previously passed upon him confirmed, by which he was declared to be strongly suspected in the faith. On the twentyeighth, a final decision was given in the presence of Father P. Mro. Fr. Mariano Anglasell as Ordinary, and the prisoner was sentenced unanimously to be brought into the hall of the tribunal, and there, with open doors before the Secret Ministers, and with

the insignia of his offences, to hear his condemnation read, make an abjuration *de vehementi*, be absolved *ad cautelam*, be severely reprehended, admonished, and warned, and then to be banished from this city, Madrid, the Court of His Majesty, and the town of Guisona and Tarragona, to a distance of eight leagues, for the period of eight years; the first five of them to be spent in confinement, in some garrison in Africa, to be fixed upon for this purpose, and that he be previously intrusted to the care of some learned person to receive instruction in the faith.

November, 1737.

On the sixteenth of October your Highness was pleased to order that the prisoner attend at an *auto de fe* if one should occur soon, otherwise to be led to some church in the guise of a penitent, and there hear his sentence read, make an abjuration *de levi*, be severely reprehended, admonished, and warned, and banished for life from Spain, after passing five years of confinement in the garrison of Oran, where he should be put under the care of some learned person, to receive instruction in the mysteries of our Holy Faith. On the third of November, the sentence was executed in the church of Sta Agueda. The same day he was sworn to secrecy, and despatched to the Royal Prison of this city, thence to be transported to his confinement in Oran. A letter was sent to Father Fr. Pablo de Colindus at that place, intrusting to him the instruction of the prisoner.

Inquisition of Barcelona, Nov. 28th, 1737.

DON FRANCISCO ANTONIO DE MONTOYA Y ZARATE.

July, 1739.

Juan Bautista Segondi, imprisoned for the crime of searching for treasures. Prison of San Francisco Xavier. Maintenance, two sueldos, and the bread of the Contractor.

Juan Bautista Segondi, a native of the town of Perpignan in France, and an inhabitant of this city, aged fortytwo years, a married man, and by trade a watchmaker, confined in the secret prison of this tribunal, with a sequestration of his property, on the fourteenth of July, for superstitious and necromantical practices. He was assigned two sueldos and the bread of the Contractor, on account of the Treasury, as little of the prisoner's property was secured. On the fifteenth, the first audience was held, in which he confessed that he had used the hazel rod for the purpose of discovering the situation of water,

metals, and mines, inheriting the capacity to practise this art, from his being a seventh son, without the intervention of a female, and being born in the month of May. He stated that he had heard his father declare such persons could make the abovementioned discoveries, by holding the hazel rod in their hands. On the twentieth and twentyfourth, audiences were held, in which he confessed nothing more. The accusation was then presented against him, the several specifications of which he granted to be true. On the twentyfourth, he was furnished with a copy of the accusation, and nominated for his counsel, Dr Joseph Vila. On the twentyseventh, an audience was held, in which he communicated with his advocate, respecting his defence, and the cause was received for proof in a full trial. A commission was granted for the ratification of the testimony.

August, 1739.

The testimony having been ratified, it was given, in publication, on the nineteenth of this month, at which time, and on the twentyfirst, the prisoner replied thereto, by confessing the truth of the charges, and an additional one, of the same kind, being produced against him, it was also given in publication. On the twentysixth, an audience was held, in which the testimony, and the responses of the prisoner were read to his advocate, Dr Joseph Vila, and arrangements were made for the defence.

September, 1739.

On the ninth of this month, the defence was offered, and on the twelfth, the cause was judged before Father Mro. Fr. Mariano Anglasell, as Judge Ordinary, and sentence was passed upon the prisoner; which was, that he be brought into the hall of the Tribunal, and there, with open doors, hear his condemnation read, make an abjuration *de levi*, be severely reprehended, admonished, and warned, and apprised, that if he commit the smallest act of the nature of his former offences, he shall incur the penalty of two hundred lashes. It was also ordered, that the sentence, before execution, be submitted to your Highness.

October, 1739.

The confirmation of the sentence having been received on the ninth of this month, it was put in execution on the thirteenth, on which day audience was held to swear secrecy respecting the prisons.

Inquisition of Barcelona, Oct. 31st, 1739.

DON FRANCISCO ANTONIO DE MONTOYA Y ZARATE.

July, 1731

Joseph Oliver.
Prison of La Cruz.
Destitute.
Maintenance, two
sueños, and the
bread of the
Contractor.

Joseph Oliver, a native of this city, aged twentyseven years, a married man, and by occupation a husbandman. Proceedings were instituted against this person, and his actions having been attested to, he was ordered, on the eleventh of this month, to be imprisoned, with a sequestration of his property, for performing superstitious and magical cures. On the fifteenth of this month, he was confined in the secret prison of this Holy Office; and on the seventeenth, eighteenth, and nineteenth, audiences were held, in the last of which, the accusation against him was presented. In the aforementioned audiences, and in his answers to the accusation, he confessed the most of his crimes. On the twentieth and twentyfirst, he communicated with his counsel, and the case was admitted for proof in a full trial. The customary preparations being made, and the testimony ratified, the proofs are preparing for publication, and in this state the case remains.

August, 1731.

On the eighteenth and twentyfirst of this month, the audience for publication was held, and the prisoner having answered to the charges, the audience for communication with his counsel, was held on the twentyseventh. By the advice of his advocate, the prisoner concluded his defence without alleging anything in his own justification. In this state the case remains.

September, 1731.

On the sixth of this month, judgment was pronounced before the Ordinary, and the prisoner was unanimously sentenced to attend at an *auto de fe* if one should take place soon, otherwise at some church, in penitential guise, with the insignia of his crimes; and there hear his condemnation read, make an abjuration *de levi*, be severely reprehended, admonished, and warned, and be banished eight leagues from this city, Madrid, and the Court of His Majesty, for the period of ten years, being first confined three years

in the garrison of this city of Barcelona. It was also ordered, that, before the execution of the sentence, it be submitted to your Highness.

October, 1731.

On the first of this month, the answer of your Highness was received, ordering that the prisoner should hear his condemnation, and undergo the first part of his sentence in the hall of the tribunal, then to be banished as above specified, for the period of five years. This order was executed on the fifth, when the prisoner was sworn to secrecy respecting the prisons, and forthwith despatched.

DR DON MIGUEL VIZENTE CEBRIAN Y AUGUSTIN.

December, 1732.

Blas Ramirez, a native of the village of Paya, in La Huerta, bishopric of Murcia, a soldier in the regiment of dragoons of Tarragona, aged thirtytwo years. Sent prisoner to this Holy Office, by Dr Jacinto Christofol, Curate of the town of La Selva, in the archbishopric of Tarragona, and Commissary of the Holy Office. A letter accompanied the prisoner from this Commissary, dated the eighth of November, and another of the same date was received from Dr Joseph Solano, chaplain of the regiment abovementioned. In both of these it was stated that the said Blas Ramirez had made a league with the devil, according to his own spontaneous confession. The aforementioned Dr Joseph Solano having communicated the case to the Archbishop of Tarragona, he was directed by him to transmit information of the same to the Commissary Dr Jacinto Christofol, who apprehended the said Blas Ramirez, and sent him under a guard to this Holy Office. On the thirteenth of November, Luis Pusol, the Familiar, gave him in charge to the Alcayde of the secret prisons, and on the same day the Inquisitor Fiscal offered a request that he might be kept in the *carceles comunes*, till the letter of the above Dr Joseph Solano should be examined, and his reasons explained for putting him into the hands of the Commissary as an offender against the faith, as well as to ascertain if there existed other evidence against him besides his confession. On the sixteenth a commission for making investigations upon this head was granted to Dr Mariano Morlaus, Commissary of the Holy Office, in the town of Tarragona, as the regiment abovementioned was quartered in that town and the neighbourhood. On the twentieth the commission was returned with the information that the

abovementioned Dr Joseph Solano had left that place for Logroño, there to remain till Lent.

In the meantime the prisoner requested an audience, which was granted on the nineteenth of November, and he made the following declaration. When he was a youth he lived with the Curate of his village, and performed the offices of cooking, sweeping the house, and such other work as is usually performed by women, on which account some people called him a hermaphrodite, which, however, was not the fact. After his master died he suffered much poverty and mortification on account of the ridicule which this brought upon him. He joined the religious orders of St Francis and St Dominic, but was expelled from both when the report became current that he was a hermaphrodite. Finding himself overwhelmed with vexation and poverty, he at last invoked the devil to assist him in his misfortunes, offering him his soul if he would change his appearance into that of a woman, that he might earn a living by prostitution. The devil accordingly appeared to him several times, first in a human shape and afterwards in that of a monstrous animal. He demanded a certificate of the possession of his soul, which he was unwilling to grant, but offered to give him his word to surrender himself after seven years, if the devil would grant him his conditions. He afterwards repented of his iniquitous practices, and sought a remedy for his soul by following the directions of the Rector of the town of La Selva, Commissary of the Holy Office, and those of the Chaplain of his regiment, Dr Joseph Solano, which persons, in consequence of his confessions, transmitted him a prisoner to this Holy Office. A request has been made that letters be sent to the Inquisition of Navarre, demanding an examination of the said Dr Joseph Solano.

April, 1733.

Letters were sent to the Tribunal of the Inquisition of Logroño, requesting an examination of Dr Joseph Solano, who was residing in that district. On the twentieth of November, a letter was received from Dr Mariano Morlans, Commissary of the Holy Office in the town of Tarrega, bishopric of Solsona, stating that a priest of that town was ready to denounce the prisoner, from what he had heard of the colonel of his regiment respecting his compact with the devil. On the twentysecond of the same month, a commission was demanded for the above mentioned Dr Mariano Morlans to examine the said priest, and summon the colonel

referred to, as a witness against the prisoner. On the eleventh of December following, the said Commissary Morlans transmitted the information against the prisoner, gathered from thirteen witnesses, most of whom deposed that they positively knew the prisoner to be a woman, and one of them stated that he had asked the prisoner how she could, being a woman, procure such a thick beard. She replied that she had produced it with the help of an ointment; that she had been seduced and abandoned in her youth; that she afterwards dressed herself like a man, and turned soldier.

Another of the witnesses deposed that the prisoner informed him she was once a boy, and entertained a wish to become a female from her attachment to a young man. That the devil appeared to her in the shape of a handsome youth, and demanded what she wanted; to which she replied that she wished for the shape of a female. This the devil granted her, and they made a compact, by virtue of which she was to be alternately male and female, changing sex every seven years; which alteration she had effected by means of a certain herb.

On the seventeenth of December, the Inquisitor Fiscal requested that the acts and declarations of the prisoner might be attested, and this having been done in a junta of four Calificadores, the same persons unanimously presented the prisoner as a wizard, sorcerer, and one holding an explicit compact with the devil.

The information above specified having been received distinct from the prisoner's own declaration, in the audience which he had requested, the Inquisitor Fiscal petitioned that he might not be tried as an *Esponaneo*,^[20] on account of what he had concealed in his confession, that he might be removed into the secret prison, and his trial instituted forthwith. On the eighteenth of the same month, orders were issued for confining him in the secret prison, and commencing his trial. Three audiences were held, in which he confessed nothing beyond what he had declared in his first confession on the thirteenth of November. On the twentyfirst of January the accusation was presented, and an audience was held the same day, when the prisoner replied to the charges. On the two following days the acts which he had omitted in his confession were attested, and the prisoner declared that although in the bargain which he had made with the devil he had offered to surrender up his soul, yet he had not paid him any worship, nor abjured our Holy Faith, notwithstanding he internally consented to the delivery of his soul, and in consequence departed from our Holy Faith and God our Lord.

The prisoner was furnished with a copy of the accusation, and on the twentyfourth conferred with his counsel, reserving his defence till after the publication of the testimony. The case was then admitted for proof, and the witnesses residing at a great distance, and in various places, the ratification of the testimony was delayed for some time. The business being finally accomplished, publication of the testimony was made on the thirteenth and fourteenth of April. In the audiences which were held on those days, the prisoner declared nothing of consequence. The audience for communication with his counsel was held on the sixteenth, and that for the defence will be held as soon as possible.

* * * * *

[Here occurs a chasm in the manuscript.]

July, 1740.

Juan	Ginesta,
confined	in the
secret	prison.
Prison	of the
Martyrs.	
Maintenance,	two
sueldos	and the
bread	of the
Contractor.	

Juan Ginesta, a native of this city, aged twentyfive years, was confined in the secret prison on the sixth of June, with sequestration of property, for performing magical cures and deceptive tricks, and uttering speeches against our Holy Faith. The first audience was held on the eighth, when he confessed that he had taught a person to perform cures by the application of certain remedies, and the uttering of a prayer; and also that he had practised the same arts himself. On the ninth, another audience was held, in which he confessed other practices of the same nature, and that he had uttered many speeches, by way of joke and pastime. On the fifteenth, the third audience was held, in which he declared, that having been questioned several times whether he had been in the Inquisition, he had answered, Yes. The accusation against him was presented on the eighteenth, at which time, and on the twentyfirst and twentyfifth, the prisoner answered to the charges, confessing the performance of the cures imputed to him, and the mode of executing them, denying withal some parts of the accusation. On the twentyfifth, he was ordered to be furnished with a copy of the accusation for the purpose of making his defence within three days. He nominated for his advocate Dr

Manuel Bonvehi. On the twentyseventh, an audience was held, in which the prisoner communicated with his counsel respecting his defence. The Inquisitor Fiscal demanded ratification of the testimony, and the case was admitted for proof in a full trial. The testimony was then ratified and given in publication on the thirteenth, fifteenth, and nineteenth of July. On the twentythird an audience was held, in which the prisoner conferred with his counsel. The publication of the testimony was read to him, and he was furnished with the necessary papers for drawing up the defence. On the twenty ninth an audience was held, when the prisoner's counsel presented the defence, and demanded investigations; for which purpose a commission was granted on the same day.

September, 1740.

The result of the investigations was presented on the third of August, and on the eighth, were communicated to the prisoner's counsel, when the defence was concluded. On the eleventh, before the Judge Ordinary, the Most Reverend Father, M. Fr. Mariano Anglase Merzenario, sentence was passed that the prisoner be brought into the hall of the tribunal, and there, with closed doors, in the presence of the Secret Ministers, hear his condemnation read, be reprehended, admonished, and warned, and afterwards banished eight leagues from this city, Madrid, and the Court of His Majesty, for the period of two years; which sentence was submitted to your Highness on the thirteenth of the same month, and on the tenth of September the answer was received ordering the first part of the sentence to be executed as above specified, and the prisoner to be banished for one year. This was carried into execution on the eleventh of September, and the audience held for binding the prisoner to secrecy and taking the customary precautions respecting the prison; after which an order was despatched to the Alcayde to take him from his confinement.

Inquisition of Barcelona, Sept. 27th, 1740.

DON FRANCISCO ANTONIO DE MONTROYA Y ZARATE.

MISCELLANEOUS DOCUMENTS.

Augustin Tamarit, a physician, of the town of Salas, was imprisoned in the Inquisition on the third of July, 1757, and tried for heretical speeches. The following are some of the articles of the accusation, with the imputed assertions qualified; that is, their character and tendency formally pronounced by the officers of the Inquisition.

In the Royal Palace of the Inquisition of Barcelona, on the twentieth day of March, one thousand seven hundred and fiftysix, at the morning audience, the Inquisitors Licentiate Don Joseph Otero y Cossio, Licentiate Dr Manuel de Guell y Serra as Calificadores, and Father Mariano Alberich, Jesuit, Fray Augustin Voltas, Dominican, Fray Raphael Talavera, Minim, and Fray Buenaventura de Lanuza, Observante, all of this Holy Office—having read article by article the following propositions, *qualified* them in the following manner.

A certain person, a native of these kingdoms, has asserted,

That the Moors were wealthy, prosperous, and in the enjoyment of plentiful rain, directly the reverse of us Christians, and concluded by saying ‘What remains for us but to join the Moors?’ On another occasion he asserted that it was better to be bad than good, as good people were generally poor, and bad ones rich.

The first part of this proposition is scandalous, savouring of Molinism and apostacy. The last is heretical.

Speaking of the bishops, he said, in answer to a question, ‘What power have they to ordain priests?’

This proposition is insulting to the episcopal dignity, and by the way in which it is expressed, the inference is drawn that it is virtually heretical.

That the friars and ecclesiastics devoured the people, and that the king ought to take them into his service, by which means he would have soldiers enow.

This is scandalous, and insulting to the ecclesiastical and secular state.

That the figures of the Saints were said to work miracles, and if this were the fact, let one of them be thrown into the river to see if he could save himself.

Blasphemous and virtually heretical.

That it was a great pity for a man to be obliged to tell another, meaning the Confessor, everything he did, and that it would be better to speak into a hole and stop it up, for ‘what good did confession do?’ That he went to confession but once a year, signifying that but for constraint he would not go at all.

This is heretical, as it is a scorning of the Divine institution of sacramental confession.

Speaking of the supplications which are made for rain, he asked, ‘What use is there in running after these Saints, and what power have they to make it rain? What is the use of carrying in procession these images?’ meaning several, and among others that of Nuestra Señora del Coll, ‘as they are nothing but bits of wood or stone.’

A heretical blasphemy.

Speaking of the Bull of the Santa Cruzada, he asserted that if he was sovereign, he would hang every one who received the Bull.

This is insulting, et sapiens hæresin.

Speaking of the chapels and hermitages in the village where he lived, he asked ‘What do those images do there?’ meaning, ‘Why do not people destroy them?’

A heretical blasphemy.

Others saying to him ‘Let us go to mass,’ he answered by asking, ‘What could they get by hearing mass?’ thus disturbing the devotions of the hearers, and scorning this holy performance.

Considered in connexion with the other assertions, this is scandalous, and sapiens hæresin.

Speaking of Indulgences, he said with some contempt, that he should value six dineros more than all the Indulgences together, and that they were good for nothing.

Scandalous and heretical.

Speaking of prodigies and miracles, he said that from the time of Christ to the present day there had been no miracles, that he knew this well, since he had conversed with a learned person. On another occasion, discoursing on the same subject, he said, that God had never performed a miracle, and he knew it, making at the same time the sign of the cross upon his forehead.

Heretical.

Speaking of tithes, he asserted that, were it not for compulsion, he would not pay tithes, and that it would be better for people to enjoy the fruit of their labors themselves, and not the ecclesiastics.

Insulting and scandalous.

Speaking of burials and supplications for the dead, he asserted that when he died he would as willingly be interred in common, as in consecrated ground, and that but for compulsion he would not have a mass said for his soul.

Sapit hæresin.

He spoke with disrespect of the Holy Inquisition, and said that the Inquisition corrected none but madmen and fools, making them declare just what was desired, and then punishing them.

Scandalous and insulting to the Holy Tribunal.

The bells tolling for a dead person, some one said to him, ‘Let us say a *paternoster* for the dead,’ to which he replied with contempt, ‘To what purpose all these prayers for the dead?’ The other person answering that they were supplications for his soul if in Purgatory, inasmuch as the souls, which do not go to heaven or hell, are detained in Purgatory, he replied scoffingly to this effect: ‘Who has ever been in Heaven, Hell, or Purgatory, to tell us what becomes of the souls of the dead?’ adding, that sooner than die he would be transformed to a horse, an ant, or any other animal, for dead men never come back, and that when dead he would as willingly be buried in rubbish as in consecrated ground.

Heretical.

Speaking of supplications for rain, he said they were good for nothing, and that it was nonsense to waste money for this purpose, for whether supplications were made or not, it would rain and shine just as it did in other parts of the world; that the rain depended upon the clouds, and God did not concern himself about it, adding, ‘Search in what part God exists to

make it rain;' and some one answering him, he repeated that they must get this error out of their heads, about supplicating for rain, as it was of no effect.

Scandalous and heretical.

That St Thomas committed errors like the rest, and that it was useless to cite the authority of the Holy Fathers, for they were not to the purpose.

Scandalous and insulting to the Holy Fathers.

That we could not be certain that the supplications produced rain or cured sickness, and that it was superstitious to believe so as the vulgar did.

Heretical.

The person who uttered the above sayings is declared unanimously to be a scandalous, presumptuous, and insulting blasphemer of the Saints, Holy Fathers, the Pope, and Ecclesiastical State, and to be suspected *de vehementi*.

MARIANO ALBERICH.

FR. RAFAEL TALAVERA.

FR. AUGUSTIN VOLTAS.

F. BUENAVENTINA DE LANUZA.

JUAN ANTONIO ALMONACID, *Sec'y*.

[Dr Tamarit, however, was fortunate enough to escape with a penance, the customary reprimands and threats in case of repeating his offences, and an imprisonment of about three months.]

In the town of Cardona, in the bishopric of Celsona, on the thirtieth of May, one thousand six hundred and fortyeight, in the afternoon, appeared voluntarily, before the Revered Joseph Riera, Presbyter and Commissary of the Holy Office of the Inquisition, and Dr Pablo Serra, Presbyter Rector of the said town of Cardona, and Notary, sworn, a woman calling herself Vitoria Sala, wife of Hermenter Sala, who came, as she stated, to give information of something relating to the Holy Office.

Questioned, what she had to declare.

Answered, that about a year ago, while she was confessing herself in the church of San Diego, of the aforesaid town of Cardona, to Father Fr. Felix

Coll, a regular Ecclesiastic of St Francisco, and at that time Conventual of the Convent of San Diego, on many occasions during the act of confession or immediately after, and while in the confessional, he had told her that he should ruin her, and many times he practised touching her face, thighs, and back. On one occasion he endeavored to feel of her bosom but she prevented him. At other times he touched and squeezed her with his hands, and in one instance attempted to kiss her, which she avoided by turning away her head. He told her that she must not discover these things to any other confessor, for he did not behave thus with any bad intention, but for the purpose of removing her scruples, and that it would be for her benefit.

The deponent was informed that the Promoter Fiscal of the Holy Office presented her as a witness in a cause under his direction against the said Father Fr. Felix. She was directed to give attention while her deposition was read word for word, and she declared that it was all true, and that she had nothing to add, diminish, or alter, respecting it, as it was the truth, and if necessary she was ready to repeat it anew against the said Father Fr. Felix Coll; that she did not make the declaration out of malice or ill will, but solely to discharge her conscience. The said Vitoria not being able to write, I, the said Commissary, sign in her name.

JOSEPH RIERA, *Presbyter Commissary.*

Before me—

PABLO SERRA, *Presbyter, Rector of Cardona,*
sworn Notary.

In the town of Cardona, in the bishopric of Celsona, on the fourth of August, one thousand six hundred and ninetyeight, before the Reverend Joseph Riera, Commissary of the Holy Office of the Inquisition, appeared, according to summons from Celadonio Siejas, sworn Nuncio of the Holy Office, a woman calling herself Vitoria Salas, an inhabitant of the town of Cardona, in the bishopric of Celsona, aged, as she stated, thirtyfive years, more or less. She was formally sworn to declare the truth and preserve secrecy.

Questioned, if she knew why she was summoned to appear.

Answered, that she supposed it to be on account of the following statement which she had made to the Inquisition. She had confessed herself in the chapel of San Luis, or the church of the Convent of San Diego, in the town of Cardona, to Father Fr. Felix Coll, of the order of St. Francisco, then residing in the said convent, and, during confession or immediately after, while in the confessional of that chapel, where he was deputed to hear confessions from February till September, 1697, he, at various times to the number of twenty or twentyfive, touched her with his hands, squeezed her face and neck, and on one occasion attempted to kiss her, but she prevented him by turning away her head. Also, on another occasion, he told her that he should ruin her, and that she must not speak of it or discover it to any one, as he did not act from any bad intention, but that all was done for her benefit. He further told her that he wanted to go to her house.

Questioned, if she knew that this person had solicited any others during confession or immediately before or after.

Answered, that she had no knowledge of any such matter, but had been told by Marianna Guer y Savall, that the same Father Fr. Felix Coll had squeezed her hands in the act of confession several times.

The above is the truth according to the oath of the deponent. She was enjoined secrecy, which she promised. I sign in her name,

Before me—

VITORIA SALA.
DR PABLO SERRA *Presbyter*,
Rector of Cardona, &c.

MOST ILLUSTRIOUS SIR,

When the guilty acknowledge their offences and repent with sorrow, God accepts them and grants them his most holy grace; and inasmuch as I have been so unfortunate as to commit some offences which relate to this Holy Tribunal, I transmit the following confession of them, not being able to present myself in person.

I was accustomed frequently in the town of Cardona, to hear the confessions of a married woman named Vitoria Sala. I never took any great

liberties with her, but touched her a few times while in the confessional. Neither I nor she had any bad intention in this, but as I perceived that she was affected with some internal inquietude, I took her by the hand and touched her face and bosom with the other, as also her neck; this I did thirty or forty times. These slight faults I confess before God and the Holy Tribunal on account of the scandal which they may occasion. I cast myself at the feet of your Excellency, hoping to have my offences overlooked with love and charity, and promising henceforth the amendment of my errors. Trusting in this my conscience remains quiet, and I continue secure in my obedience, praying to God for the prosperity of your Excellency.

Gerona, September fourteenth, 1697.

Your most humble servant, who kisses the feet of your Excellency,

FR. FELIX COLL

MOST ILLUSTRIOUS SIR,

Since my letter of the fourteenth of September, to your Excellency, I have conducted myself with great circumspection on account of the charges I made to your Excellency against myself for faults committed against the Holy Tribunal. And as I am hindered from presenting myself at the feet of your Excellency, I again place myself in the same condition, under the shelter and patronage of the Holy Tribunal, in order that your Excellency, as the father of all piety and clemency, may clear my conscience and soul. Your Excellency must know then, that during a year which I lived in the town of Cardona as preacher of the convent, I was in the practice of confessing a certain female named Vitoria Sala, who was afflicted with many scruples, and in order to remove them at the pressing instances of her husband, I suffered myself to be led away by the devil so far as to behave with much impropriety towards her, as on many occasions when she was at my feet, I uttered to her very unchaste language, touching her bosom and face with my hands. This I did to the amount of seventy times or thereabout. Also, being without the confessional, I gave her many embraces, and solicited her to love me. Although it be true that I practised these evil deeds, yet by the mercy of God I did not injure her honor or reputation.

Furthermore at the same time I was so forgetful of my duty, that, falling unhappily in company with a female named Marianna Guer y Savall, who came to the holy confessional to confess her faults to me, which faults were committed in my own person, the devil was so crafty that he caused me, a miserable sinner, to be led away in ten or twelve instances to speak language of endearment to her, and touch her bosom and face. These, father of all clemency, are my depraved actions in the Holy Sacrament of penitence. Instead of directing these two souls in the way of salvation, I led them to the devil by reason of my incontinence, malice, and little fear of God. And now, as God has granted me time, place, and occasion, I throw myself, like another Prodigal Son, at your feet, that like a loving father you may extend toward me whatever may be requisite to punish my heavy sins and offences, promising henceforth, to amend my evil ways, that the light of God may shine more clear. May God prosper and guard the infinite years of your Excellency.

Barcelona, May seventeenth, 1698.

Your most unworthy servant, who kisses
the feet of your Excellency,
FR. FELIX COLL.

P. S. Although I write from this city, yet I have come hither to throw myself at the feet of your Excellency. My residence is in the Convent of St Francisco in Gerona.

In the Imperial College of Tortosa, on the eighteenth day of March, seventeen hundred, the Inquisitor Licentiate, Don Juan Joseph Hualte presiding sole in the afternoon audience, having examined the information and proceedings in this Inquisition against Fr. Felix Coll, an Ecclesiastic and Confessor, of the Order of St Francisco, and a resident in the Convent of that order in Gerona,

Ordered that he be reprehended, admonished, and directed to refrain from confessing females in private; submitting this sentence to the Council.

Before me—

DON JUAN DE CASTILLA.

[Further proceedings were carried on against this person, but suspended by his death.]

In the town of Besahi, on the twentysecond day of February, one thousand seven hundred and eightyfour, before me, Estevan Castanir, Presbyter and Curate of the Parochial Church of St Vicente, and me, Lorenzo Terrader, Presbyter and Canon of the Collegial Church of Besahi, Notary, sworn to preserve secrecy and perform faithfully our duties, appeared, according to summons, and made oath to declare the truth, and preserve secrecy, Juan Ricart, porter royal, a native of the above town, of age, as he stated, thirtyfive years or thereabout.

Questioned, if he knew the cause of his being summoned to appear.

Answered, that he could conjecture nothing.

Questioned, if he knew that any person had said aught which was, or appeared to be contrary to our Holy Catholic Faith and Evangelical Doctrine.

Answered, No.

He was then given to understand that information had been received and sworn to in this Holy Office, that a certain person had, accompanied by others, been to a certain castle in search of enchanted money; that they had signed a compact with the devil; that on reading a book the devil had appeared to them and promised them riches; and that he, the said Juan Ricart could give intelligence of these and many other things. For this reason he was admonished, in the name of our Lord and his glorious and blessed Mother, to bethink himself and declare the whole truth.

Answered, that in June or July, 1783, he learned that Narcisso Mañalich, Advocate, with some associates were about to visit the devil in search of money; which information he had communicated to the Alcalde of this town; that these persons went to the castle of Madremaña, where the devil appeared to them. They read from a book, and the devil asked what they wanted. The one who was reading (name not known) answered, 'Twentyfive millions.' The devil replied they must give themselves to him. They signed the agreement, and were allowed six years to live. They then

demanded the money and were told that they must bring him a certain stone (*piedra de espiritu*). They went afterwards to the castle of Esponella, read the book, and the devil came. He asked what they wanted. They answered, the money which he had promised. He asked for the stone, and they replied that some one had stolen it. He then exclaimed, 'Fulfil your promise, and I will fulfil mine,' and disappeared. All this the deponent learned from the account of Mañalich and his companions.

Some days afterwards, the greater part of the same persons were assembled at the house of Juan Traver de Ursall, in Barcelona, where the deponent was present to watch their proceedings, by the direction of the Alcalde of Besahi. He was also to endeavour to get possession of the book, and have them all apprehended. The other persons present were the said Mañalich, Juan Fraver de Ursall, his wife, a young man of the family, and Monsieur Josef. It was resolved in the meeting, to choose a new reader, and practise further operations. A person in the town of Junquera was elected, and it was resolved to go to the castle of Benda, on the next Tuesday. The deponent went to the Alcalde with this intelligence, and he despatched a party, with the deponent, to lie in wait for them at a place on their route, but they had taken the alarm and avoided the deponent's company. The deponent was informed by Tomas Riera that he had gone by night to Gerona, to get some nails out of the coffin of a child of three or four years, and that on beginning to dig, there appeared to him many visions. Mañalich told the deponent that he believed the devil never cheated any one, but performed all his promises. The abovementioned Tomas Riera had slept with Monsieur Josef, and he was accustomed to hold conversations with the devil in his own language; and the persons aforementioned had informed the deponent that Monsieur Josef had obtained money of the devil.

Questioned, what was the age, personal appearance, &c., of the said Narcisco Mañalich, and of all the others. [*Here follows the description.*]

The above is the truth according to the oath of the deponent, &c.

JUAN RICART, *Porter Royal*

Before me—

LORENZO TERRADER, *Canon, and Presbyter*
Notary, appointed for this investigation.

In the town of Besahi, bishopric of Gerona, on the twentyfourth day of February, one thousand seven hundred and eightyfour, before the abovementioned officers sworn to preserve secrecy and perform well our duties, appeared, according to summons, and made oath to declare the truth and preserve secrecy, Miguel Berga, advocate, a native of this town, aged thirtythree years.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it to be on account of Mañalich's affair.

Questioned, if he had written any letter or communication to the Holy Office of the Inquisition, giving an account of any crime within his knowledge; what were the contents of that paper or communication, and by whose hand was it written.

Answered, that he had written three letters to Dr Ignacio Sans Pabordre, at Figueras; that in the first, dated July fourteenth, 1783, he stated that the said Mañalich had told him he had gone twice with his associates to the castle of Esponella after money, and that both times the devil had appeared to them; that they had all signed a bargain with him, and were promised the money when they returned to the castle.

The second, dated August fourth, 1783, stated that Mañalich had declared that the sixth day of that month was fixed upon to visit the castle of Monroig, in search of money.

The third, dated the thirteenth of the same month, informed that he had seen Mañalich, but could give no further intelligence respecting the affair, and that something more might be learned from Juan Ricart.

The deponent went on to declare that Josef Llonella informed him that he and the said Mañalich, accompanied by Jaime Gubert, a young man of Besahi, went to Montpellier to meet a Jew, in order to learn from him the means of obtaining money by diabolical art. The Jew gave them a maggot within a tube, and told them a maggot must be added to the tube every day to be eaten, and that if they swore, which they did, to make a league with the devil, and perform what he directed them, written upon a paper, they should have what money they pleased. They signed in blood an agreement with the devil, written in his own characters, and promised never to go to confession. Notwithstanding they did everything according to the Jew's directions, they got nothing.

The deponent continued in these words;—‘Some time afterwards I called upon Mañalich, endeavouring to bring him into the company of the abovementioned Dr Pabordre Sans, or Dr Revira, Canon of the Cathedral of Gerona, but he replied to me that he would not see either of them till he got the money; and furthermore informed me that they and the devil had fixed upon the sixteenth of August for the time to receive the treasure; that the devil appeared to them dressed in red, and promised if one of their number were given up to him, they should have thirtyone millions; that Mañalich offered himself, and the devil gave him eight years to live, but this period was not to begin till the money was received. I exclaimed, “The devil will deceive you.” He answered that the devil’s promises were truer than the Faith, and further told me that to raise the devil, the following things were necessary;—a book which directed everything that was to be said, a loadstone, a *pedra de espiritu*, six nails from the coffin of a child of three years, six tapers of rosewax made by a child of four years, the skin and blood of a young kid, an iron fork with which the kid was to be killed, camphorated high proof brandy, *lignumvitæ* charcoal to make a fire, and hazel rods. Intelligence of all this I gave to Sr Domero Gerones, the Vicar Boada, and the Alcayde. The Alcayde sent Juan Ricart, his porter, to join them, and learn the day fixed upon for going, after the money, in order that he might take them prisoners. This Juan Ricart went with them for some days, and gave notice when the Jew arrived who was to read the book. The Alcayde set a watch for them, which was discovered, and the Jew escaped.

‘After this, I endeavoured again to bring Mañalich into company with Dr Pabordre Sans. This I effected, but found that Mañalich would not declare the truth to the Doctor. He gave me to understand that he still retained the book and instruments enumerated above, and they should let the business lie by for some time, without speaking about it, and then renew it and get the money of the devil. Afterwards, when I censured his conduct, he tried to make me believe that all he had told me was a fabrication, but I have always believed it to be the truth.’

The above having been read to the deponent, is declared by him to be correctly recorded, and the truth according to the oath sworn by him.

Signed,

MIGUEL ANTENTAS Y BERGA, *Advocate*.

Before me—

LORENZO TERRADER, *Presbyter and Canon,*
Notary in this investigation.

In the town of Besahi, on the thirtieth day of May, one thousand, seven hundred and eightyfour, before the abovementioned officers, sworn to preserve secrecy and perform faithfully their duties, appeared, according to summons, and made oath to declare the truth and preserve secrecy, Josef Gircos, Advocate of Besahi, a native and inhabitant of the said town, of age, as he stated, thirtysix years or thereabout.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, No.

Questioned, if he knew that any person had said or done aught which was, or appeared to be contrary to our Holy Catholic Faith, and Evangelical Doctrine.

Answered, No.

He was then given to understand that information had been received and sworn to in this Holy Office, that certain persons, Narciso Mañalich and Josef Llorella, had been at Montpelier to visit a Jew, &c. [*Here follows a recapitulation of the preceding testimony.*]

Answered, that he had heard the same from Narciso Mañalich, and what he knew of the matter was the following;—‘About eighteen months since, this person and Josef Llorella y Saler, of this town, left the place, accompanied by a young man named Gubert. To what place they went, and whether they kept company all the way, I do not know. They were gone about three weeks, and shortly after their return I heard Miguel Antentas y Berga, Advocate, of this town, declare that they had been to Montpelier, in France, to meet a Jew who was to show them how to obtain money by diabolical arts; that the Jew gave Mañalich a maggot in a tube, to which he was to add a new maggot every day to be eaten, and that the Jew told them they might have as much money as they wanted by swearing a pact with the devil, and doing what he prescribed to them upon a written paper. One of the conditions was, never to go to confession. For these instructions I think the said Antentas told me they paid the Jew seven or nine *Louis d’ors*. On their return from Montpelier, at a village or place near Bisbal, they made trial of one of the Jew’s methods of obtaining money. This was done at a spot where two roads crossed each other. A trench was dug in the ground

and a hen killed, with the blood of which they all wrote their names on a paper and placed the same in the trench, taking care, as the Jew directed them, not to be frightened. Notwithstanding they complied with all these directions, the money did not appear.

‘After their return to this town, they went with some others to the castle of Esponella, where the book was read for the purpose of raising the devil. Here the devil appeared in the shape of a man dressed in flesh colored clothes, and, as Antentas told me, with large eyes. The devil asked what they wanted, to which Mañalich or some other replied, “Money, good money, and not enchanted.” The devil told them they should have it if one of the number would give himself up, but this no one of them was willing to do.

‘Llorella related the affair to his wife, and she gave information of it to Antonio Rigalt, that he might assist in extricating her husband from such a desperate business. Rigalt consulted Antentas and they concluded to lay the case before the Inquisition, which was done.

‘What Antentas knew of the affair he learnt of Rigalt, Llorella, and Mañalich. Afterwards, when Llorella repented of his connexion with the others, and left their company, I think I heard him say, at the house of Antentas, that he had seen, shortly before, in the possession of Mañalich, the paper which the Jew gave them, and that the devil appeared to them in a flesh colored dress, with large eyes and sharp finger nails. I was afterwards told by Antentas that Mañalich, seeing Llorella had left them and they could not proceed with their undertaking according to the direction of the Jew, who informed them that if one of the number died or left them they must get another, made choice of an uncle of Traver beforementioned, for this purpose.

‘Mañalich then resolved to give himself up to the devil according to his demand, stipulating for some years’ grace. This matter was discussed by the company at the castle of Esponella, in connexion with a plan for getting thirtyone millions, or some such sum, from the devil. The plan, however, failed in this manner. On the night of Monday, before St John’s day, in 1783, the company, or part of them, met at the house of Traver, but Mañalich being suddenly taken sick, could not accompany them to the castle.

‘Antentas also informed me, that he told Mañalich that the devil would deceive him, and that he could not make any man rich. To this he replied that the devil fulfilled all his promises, and that if he once got the money of him, he would go to confession nevertheless, and so would cheat the devil. He also told me, in the month of August of the same year, that Mañalich had resolved to make an attempt for the money again, at the abovementioned castle, or at another, called the castle of Buadella; that he deferred it on account of the affair having become noised abroad. Since this time I have heard nothing of him or his undertakings, except that he proposed another journey to Montpelier, and offered two hundred pounds to Simon Escaellar or Ventura to accompany him.’

The above is the truth, according to the oath of the deponent, who declares that he has not spoken out of malice, but solely in obedience to his conscience, and having been read to him, is declared to be correctly recorded.

Signed—

JOSEF GIRCOS, *Advocate*.

Before me—

LORENZO TERRADER *Presbyter*,
Notary in this investigation.

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DON LEONARDO VIDAL, assistant to a founder of brass cannon, aged twentythree years, a native of San Estevan de Ripollet, in the diocese of Barcelona, and residing in *la Rambla*, near the theatre, next door to a tallow chandler’s, to discharge his conscience, and for no other purpose, gives the following information to the Holy Office.

Antonio Suarez, the keeper of a coffee-house, opposite the Theatre in *la Rambla*, has in one of his rooms six or eight pictures, rather coarsely done, two of which contain indecent figures. All of these the informant has seen, but remembers only one, which represents a young man taking hold of a female who has her bosom indecently exposed. The said Antonio is about fifty years of age, lame and splayfooted, with one arm partly crippled and the fingers contracted.

Also, with the same motive, he gives information that Dr Manuel Portius, Presbyter, a public teacher of Latin and the Humanities, aged thirtyeight years, of a low stature, and with a somewhat long nose, living in

the Baxada de San Miguel, in the third story of a house, the corner of which is occupied by a baker, has several pictures, colored and uncolored, among which are some representing females whose bosoms are scandalously exposed, and others with improper representations. One of these has this title; 'L'Abbé a la Toilette,' and exhibits with other figures, a priest in his calotte, very nicely dressed in the clothes of a layman, seated at the side of a lady, with whom he appears to be talking about dress. All these pictures of Dr Manuel Portius are handsomely executed, and consequently the more provocative and scandalous. They are hung upon the walls of his cabinet or study, in view of every one who enters, and particularly of his pupils, the number of whom, as I understand, amounts to nearly thirty.

Furthermore, he gives information that Don Felipe Crame, a captain in the royal artillery, tall, light complexioned, red haired, and blind of one eye, aged thirtyfive years, being in conversation with the informant and three others, whose names will be hereafter specified, made the following observation:—'*A Spanish officer whom I hold in estimation, has said that it was not the will of God that there should be any kings, which could be proved by a passage from scripture.*' This passage he quoted, which was not to the purpose, but only, as I remember, stated that God told the Israelites that a king was not convenient for them. The name of this officer, the said Don Felipe Crame did not mention, and nothing else respecting him is known to the informant.

The persons who heard these observations from the mouth of the said Don Felipe Crame, were Don Manuel Pe, an assistant of the cannon founder, and Don Antonio de la Torre, clerk of the director of the foundry. There are also others who have some knowledge of the same; namely, Don Manuel Brito, and Don Alexandro Vicente, assistants in the foundry.

The informant undertook to make an accusation in the name of the above persons. He also apprized the said Don Felipe Crame, that he was under an obligation to denounce his friend, and as the informant knows not whether this has been performed, he gives the present information in order fully to discharge his conscience.

Barcelona, February fourth, 1793.

LEONARDO VIDAL.

TO OUR COMMISSARY, THE REVEREND ANTONIO FONT, PRESBYTER.

We herewith transmit you a letter, received by us, from Don Leonardo Vidal, assistant to a founder of cannon, and a resident in this city. We hereby commission you to summon him to appear before you, and ascertain according to form whether the letter be his, causing him to specify clearly every circumstance of person, place, and time, relating thereto. This done in due form, and before a Presbyter in your confidence to serve as Notary, you will forward the minutes of the examination to us along with these papers. Our Lord preserve you many years.

Royal Palace of the Inquisition of Barcelona, February seventh, 1793.

DR DON PEDRO DIAZ DE VALDES.

The Licentiate,

DON MANUEL DE MERRA Y PANIAGUA.

DR DON JOSEPH FRANCISCO GONZALES DE NOBOA,

Secretary.

* * *

TO THE REVEREND CURATE OF THE PARISH OF ST MARTIN DE PROVENSAL.

Information has been received in this Holy Office, that Antonio Axis, and Josefa, his wife, who perform cures, and practise various superstitions, have taken up their abode in Clot, in the district of St Martin de Provensal. The tribunal have, in consequence, ordered that a letter be despatched, ordering you to make investigations respecting these facts, and also respecting the life and conduct of the said persons, whether they obey the precepts of the church, and attend at confession and communion. Our Lord preserve you many years.

Royal Palace of the Inquisition of Barcelona, September ninth, 1803.

DR DON CYRO VALLS Y GELI, *Sec'y.*

ANSWER.

In obedience to the orders of the Holy Tribunal of the Inquisition, which God preserve in all its strength, dated the ninth of this month, I have made the following investigation. I summoned before me Joseph Masvidal of this village, and made him swear not to divulge to any one the questions I asked

him, and also to declare to me the truth. I demanded who informed him that Antonio Axis could cure his disorder. He answered, Felipe Cadena of this place, and Pablo Marine of the Llano de Barcelona. Felipe Cadena stated that the said Antonio had cured him by cutting off the crest of a black cock, taking from it three drops of blood, mixing it with water and making him drink it, adding that if a priest were in the house, it would be necessary to go out of doors to practise the operation.

I demanded what medicines the said Antonio prescribed him. He replied that the first was a white onion and five plantain leaves. These were cut up and placed upon his stomach, which relieved his pain, a symptom which the wife of Antonio pronounced good. The cure, however, not being effected, he was ordered to procure a partridge, twentyfive needles, and a new pot, all of them to be bought and carried home with the left hand. The needles were to be stuck into the partridge with great fury, and the whole put into the pot. Then at midnight the sick man was to set it on the fire with the left hand, and with the left hand keep stirring the fire till two o'clock in the morning. He informed him that during this, the tables and plates would put themselves in motion, but that he must not be frightened, as he should be present himself. All these directions were followed, and there were also present at the time, Francisco Vintro, and Francisco Siralt, his brothers-in-law, to keep him in courage during the operation. At two o'clock he took it off the fire, but found himself no better. Antonio's wife, Josefa, directed broth to be made for him, he being as thin and spare as if he had suffered a long illness. This was done the next morning, when he found himself exceedingly weak and fatigued. A similar case occurred, as he believes, to a tavern keeper in Barcelona, which is known to the Reverend Father F. Juan Mesados.

His health not improving for the space of three months, he saw Axis again, who made signs of the cross upon the parts of his body where he felt pain, but this had no more effect than the preceding experiments. Axis then told him that he was possessed by five companies and five captains of evil spirits, that the companies amounted to five hundred in number, and might be easily cast out, but the five captains were not so easily got rid of. He proceeded to exorcise them, and Masvidal fell to screaming and behaving like one possessed. The *little ones*, as he called them, being despatched, he went to work upon the captains, and the first night, after supper, about nine o'clock, he began to make signs of the cross, and talk in unintelligible

language. He then gave two loud screams, so horrible as to frighten every one; and Axis affirmed that they were heard in the farthest regions of the air by the other spirits. On this occasion, the two brothers-in-law, beforementioned, were present.

Axis declared that the spirits were not despatched, and he exacted a promise from them by the mouth of the patient, that they would depart at nine o'clock the next morning; but continuing to remain at that time, they promised anew in the same manner, to depart at nine that night. The patient sent for Juan Munseis, Juan Baxo, and Antonio Torras, all inhabitants of the place. At nine o'clock, the performances before described, were repeated, the patient suffering greatly, crying out and talking, as people do when bewitched. This was repeated morning and night, for five or six days.

All this producing no effect, they advised him to confess the whole to the abovementioned Reverend Father, F. Juan Mesados Servita. This was agreed to, and Axis, the patient, Munseis, Torras, and Baxo, went to his cell. The Reverend Father repeated some exorcisms, and Axis repeated his crossings and supplications. He afterwards declared he had seen the spirits, and described their shapes.

My informant also stated that Axis possessed the power to restrain the tempests, for as they were returning in company from St Cypria, a storm overtook them, and he was in great terror. Axis told him that a shower of stones was falling at San Cucufase del Valles, but that he need not fear, as he would shelter them from it, by means of a prayer that he knew. And so it happened, for the shower fell as they learned afterwards, but did not touch them, although they were forced to travel quite to the seashore. Furthermore, Axis declared to him that he had been in hell, and described to him the condition of the damned. One night some evil spirits appeared to him, and offered him money if he would give himself up to them, but he would not consent.

I likewise summoned to appear before me, Isidro Lepu of this place, and obliged him to swear to declare the whole truth, and preserve secrecy. I demanded whether he knew Antonio Axis, and his wife, Josefa Axis. He answered that he did, inasmuch as they lived in the same house with him, although in a different part. I asked him if he knew whether the said Axis performed cures. He replied that he knew of his performing some, and that Axis asked him to go in company with him one night, adding that they

would hear a loud noise, but he must not be frightened being in his company, as they would be out of danger; that they must go at midnight, and without any clothes. This proposal was rejected. Axis replied to him, that he had no way to get a living, but my informant persisted in his refusal.

The above are the literal declarations which I have taken under oath from the person named. I have, moreover, strong suspicions that Axis and his wife neglect mass on many occasions. Axis himself during his residence this year in my parish, has not confessed, nor taken the Pascal communion, although this has been done in the house where he lives, and I have entreated him and his wife to comply with the observance. Besides what is related above, he has attempted many other superstitious cures upon people belonging to Barcelona and strangers; all which I certify to be the exact truth.

DR FRANCISCO GUIU, *Parochial Curate*.
St Martin de Provencals, October second, 1803.

* * *

MOST ILLUSTRIOUS SEÑORES,

The supernumerary Inquisitor Fiscal declares that a commission should be granted for the purpose of examining this letter, and also to examine and ratify the depositions of the delator and the witnesses, which is submitted to the opinion of your Excellencies.

The Licentiate, BASARRATE.

Secret Chamber, October tenth, 1803.

MOST ILLUSTRIOUS SIR,

In obedience to the dictates of my conscience and the counsel of my confessor, Padre Gervasio Minguella, Carmelite Calzado, I inform your Excellency of the following act which I have committed. Upon three several times, at the solicitation of one of my companions, I went to visit a woman for the purpose of learning, by a divination with cards, whether a certain young man, to whom I am betrothed, would return hither from Olot, where he now is. The above woman, having consulted the cards, answered that he would return; but that it would be sometime first. Other things she

also informed me by divination. The woman's true name I do not know, but she is called Pepa dels Gossos, and lives in the Calle dels Tallers. I entreat that your Excellency will pardon this weakness of mine, for I was not aware that I was committing an offence. My confessor informs me of the fact that I have been guilty, and that I must, within six days, give notice of the same to your Excellency.

God preserve your Excellency many years.

I kiss the hands of your Excellency.

Your servant, ANTONIA PUXANT,
daughter of JAIME PUXANT, Calle del Hom.
Barcelona, February third, 1805.

TO PADRE GERVASIO MINGUELLA, CARMELITE CALZADO.

We herewith transmit you orders to proceed in company with another person of sacerdotal character to officiate as Notary, having first sworn fidelity and secrecy, and summon before you, Antonia Puxant, daughter of Jaime Puxant, living in the Calle del Hom. You will ascertain from her, upon oath, whether the subjoined letter be hers, whether she affirms the contents to be true, and whether there be any part of the same to alter, or any addition to make. Within four days of this, you will ratify the above depositions before the Notary, and other trustworthy persons, and if any testimony which may corroborate the same should offer, you will receive it, and ratify the said testimony at the end of four days in like manner. Information respecting the character and credit of the witnesses, you will transmit, written in the margin of the depositions. Also in a separate paper you will forward an account of the character and christian conduct of the person denounced. This order is to be returned to our hands with all the other papers. Our Lord preserve you many years.

Royal Palace of the Inquisition of Barcelona, February thirteenth, 1805.

DR DON JOSEPH DE LLOZER.
Licentiate, DON MANUEL DE MERRA Y PANIAGUA.
DR DON JUAN DE RODAS.
D. D. JUAQUIN MONER, *Secretary*.

MOST ILLUSTRIOUS SEÑORES,

I return your Excellencies the order of the date of February thirteenth, of the present year, along with the deposition of Antonia Puxant, native of Ripoll, in the bishopric of Vique, daughter of Jaime Puxant, resident in the

Calle del Hom, of this city. With this you will also receive the depositions of six other witnesses to the same facts, which I have taken by the information of the abovementioned Antonia. The tardiness with which this business has been accomplished, will be overlooked by your Excellencies, on reflecting upon the extent of my occupations, and on the fact that the people from whom the depositions were taken, are of the laboring class, seldom at their houses, and of consequence difficult to find. The last named among them was not met with till the twentyseventh of March.

With regard to the declarations of Antonia Puxant, I have to state that both in her deposition, and in the ratification, she appears to have disclosed the truth with perfect ingenuousness, as far as her knowledge extended and the interrogatives went, although a mistake was made in the name of the street, in which Pepa de los Gosos performed her divinations, which she affirmed was the Calle de Nazaret; but on being reminded of the error, she informed me, after the ratification, that it was the Calle de Farlandina which is situated at the head of the street leading from the convent of Nuestra Señora de los Angeles, to the Casa de Charidad of this city.

Respecting the persons denounced by the said Antonia Puxant, both in the deposition and ratification, I have summoned only those who, as I understood from her, were present when the aforementioned Pepa de los Gosos performed her divinations before the said Antonia. As to the other persons and matters, referred to by her, I have instituted no proceedings respecting them, deeming an additional order from your Excellencies necessary to this step.

I have also to inform your Excellencies that the said Antonia Puxant is very anxious that her father, Jaime Puxant, may know nothing of her declarations, and in particular, that in the ratification, respecting Margarida Puxant, inasmuch as this woman is married to the brother of the above Jaime Puxant. She states further, that she heard sometime since that the above Margarida, her aunt, had been summoned before our Holy Tribunal for witchcraft and superstition; whether at the instance of her father or relations, or other persons, does not appear, and for this reason or some other, a discord had arisen between them.

With respect to the character and occupation of the denounced Pepa de los Gosos and the fact whether she observes the precepts of the church, I cannot transmit you any information, as I do not know the person, and have

not yet been able to find her; but according to all that can be learned from the witnesses, she is undoubtedly guilty. They inform me she is very cautious in concealing herself.

In relation to the other witnesses, I have to remark the following. As to Gertrudis Poc y Marti, mentioned in the deposition of Antonia Puxant, it appears to me that he has concealed the truth in his declaration, from fear or some other motive; which opinion is confirmed by his having delayed the ratification beyond the specified time, so that it was found necessary to summon him anew. He appears, however, after he had been charged to declare the truth on the eighth of March, when the ratification took place, to have made a full and ingenuous declaration, which corresponds with the statements of the above Antonia Puxant.

As to the deposition of Rosa Llobet, it appears to be true, although nothing to the purpose. This person was summoned as she was supposed to be the lady of the house where the divinations were performed, from the description of Antonia; but I found, upon examining her, that she was not. Still some information was obtained by her means, she having informed me that a house near the one abovementioned, on the left hand, is a great resort for young females for some unknown purpose. In consequence, I have summoned the occupant, Francisca Jacoba, whom I shall hereafter refer to.

Respecting Madalena Masllorens, I believe that she has declared sincerely the whole truth. It is to be observed that this person is not the proprietor of the house in the Calle de Farlandina in which Pepa de los Gosos practised her arts, as was thought by Antonia Puxant.

With relation to Francisca Jacoba, who occupies the first floor of the first house in la Riera Alta, on the left hand as you go from the Convent of the Capuchins, she confesses that the said Pepa de los Gosos has visited her house upon business, as many other persons have done, but affirms that she never practised there, any performance or divination with cards; yet from her manner of answering the interrogatories, and her warmth in defending the said Pepa, talking at great length in her favor, and declaring she had been accused falsely, I have no doubt she is a friend of hers, and, therefore, that her testimony is very suspicious. In this, however, I may be mistaken.

With respect to Maria Tintorer, who is the proprietor of a house in the Calle de Farlandina where the divinations above referred to were performed, I think she has spoken the truth, and that her whole testimony

may be credited. As to the Gipseys of the Calle de St Pablo, Señor Augustus Fuster, and the other females, I have not summoned them, waiting for an order from your Excellencies to this effect.

With regard to Antonia Ragas, I think her testimony may be admitted, as it corroborates that of Antonia Puxant in some points. Respecting the other witness, mentioned by Antonia, named Margarida, I have not been able to take her deposition, as she has been long confined by sickness, in the hospital in this city.

The above, Most Illustrious Señores, are the depositions which I have taken, and the judgments I have formed respecting them. I trust you will pardon the faults which I have committed therein, and rectify my errors.

I remain your Excellencies' most humble servant, and kiss the hands of your Excellencies.

FR. GERVASIO MINGUELLA, *Carmelite Calzado*.

In the city of Barcelona, on the twentieth day of February, one thousand eight hundred and five, before the Reverend Father Fr. Gervasio Minguela, Carmelite Calzado, Presbyter and Commissary appointed for this investigation, and me, Fr. Joseph Abella, Presbyter Carmelite Calzado, Notary, having sworn to preserve secrecy and perform faithfully our duties, appeared, according to summons, and made oath to declare the truth and preserve secrecy, Antonia Puxant, a native of Ripoll, in the bishopric of Vique, daughter of Jaime Puxant, of this city, aged seventeen years.

Questioned, if she knew or conjectured the cause of her being summoned to appear.

Answered, that she supposed it to be on account of a letter which she had caused to be written in her name, to the Holy Tribunal, on the third day of the present month.

Questioned, at what time and place, and in the presence of what persons were the operations with the cards performed; also, with what words and gestures, and whether the performer received any rebukes for her actions, or appeared to be of sound mind.

Answered, that about six months ago, at the request of the deponent, she performed the operation three several times in the space of three or four weeks at different places; that is to say, the first time in the Calle de la Riera Alta, at the other times in the Calle de Nazaret. The houses she did not know. In the Calle de Nazaret the entrance was by a small door in the lower story near a garden. The places she could recognise on seeing. The person who performed the operation was always unwilling to do it at her own house. Those present on the first occasion were four in number; the deponent, the operator, one of her friends called Gertrudis, and sometimes Jesus, because she lives in the Calle de Jesus. She was a married woman. The fourth was, as the deponent imagined, the lady of the house. On the second occasion there were present the two first persons before mentioned, a young woman named Antonia Ragosa, living in the Calle del Conde del Asalto, a native of Ripoll, and the lady of the house called Helena or Magdalena. On the third occasion there were present the two first persons, and another called Puntina, the widow of a weaver. The operations were performed with singular actions and unintelligible language. All that the deponent could understand was the word 'Barrabast.' Nobody rebuked the performer, and she practised the whole seriously, and in her right mind.

Questioned, what things she divined.

Answered, that she told her what money she had in her pocket; what she was thinking about; that her father wanted her to marry a young man whom she disliked, and that on this account her father was displeased with her. Sometimes she made wrong statements, but this the deponent thinks was done designedly, and in order that she might not be discovered. She also told the deponent that the young man of Olot, to whom she was betrothed, and whose name was Caspar Giralt, would write to her within three weeks, and that he would visit this city, adding other information. The operator always chose Friday for her performances, and the deponent paid her two reals vellon.

Questioned, if she knew that any other persons had said or done anything which came under the cognisance of the Holy Office.

Answered, that she had heard of four other persons who performed divinations. One was named Fargas, and lived in a lane near St Paul's Church. Another was named Teresica, and appeared to be a married woman. She lived in the same street. Another was called Garvi. Her residence

unknown. The last was called Teresa, and sometimes Ballarenga, a married woman, and formerly living in the Calle de la Parra. The deponent was told by a young woman named Felipe, that on the second of this month she passed the night with the said Ballarenga, where they burnt a rosary and a two real piece along with some holy water. On the following morning the said Felipe showed the deponent some black powder which she stated to be the ashes of the rosary and money, and said it was a potent love powder. The deponent was also informed by a young woman named Ursula, who lives in la Riera Alta, that a person living in Barceloneta carried on the same practices.

Questioned, if she knew anything more.

Answered, that a young woman named Teresa, living in the Calle del Conde del Asalto, told her that a certain man declared to her mother, that he knew a woman who would carry her to Olot in an hour's time, upon the condition that she should not invoke any Saint.

Questioned, what was the age and personal appearance of the abovementioned Pepa de los Gosos.

Answered, that she was a little old woman with sunken eyes and a wrinkled face.

Questioned, if she knew anything more.

Answered, that a woman named Serafina Xuera, wife of Señor Miguel in the Calle de St Olegario, had told her there was a woman in her house who performed divinations.

Questioned, if she knew anything more.

Answered, No.

The above having been read to the deponent, is declared by her to be correctly recorded. She further states that she has not made these declarations out of malice, but solely in obedience to her conscience. Secrecy was enjoined upon her, which she promised, and not being able to write, I, the said Commissary, sign in her name.

FR. GERVASIO MINGUELLA,
Carmelite Commissary.
ANTONIO PUIXANT.

Before me—

FR. JOSEPH ABELLA, *Carmelite Calzado, Notary.*

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In the suburb of Barceloneta, on the thirtieth day of October, one thousand eight hundred and six, before the Rev. Juan Pedrals, Presbyter and Commissary, and me Ignacio Ribes, Presbyter Notary, sworn to preserve secrecy, and perform faithfully our duties, appeared, according to summons, and made oath to declare the truth and preserve secrecy, Manuel Baxo, a native of the town of Blancas, in the bishopric of Gerona, aged sixtyfour years, and dwelling in Barceloneta, in the Calle del Sementerio.

Questioned, why he had demanded audience.

Answered, to give the following information to the Holy Office. Within about three years he had observed that his wife, named Cecilia Pruna, and vulgarly la Cileta, had, on many occasions, in his house, performed such practices as these. About ten or twelve o'clock at night, she took a sheep's liver and put it in an earthen pot with a small quantity of water. This she boiled over the fire and kept piercing it with a nail set in the end of a stick, which he observing, she hid the stick and made use of a knife for this purpose. She practised divinations with cards to ascertain whether any person would be rich or poor, married or single, or whether any one arriving from America brought money or not. There was a ship which ran out to sea in the night, with the Collector of the Customs and some of his officers on board, and while the whole city was in suspense as to their fate, not knowing whither the ship had gone, she informed the second officer of the marine that he might be under no apprehensions, for they had arrived at Naples, without any injury, which in fact turned out to be the case. Furthermore, she used to gather dead men's bones out of the graveyard, and burn them to powder, but what she did with this powder he did not know. She also made use of certain grains which she obtained at the Convent of Jesus, and observed that in order to be efficacious they should be gathered at the time when our Lord was in his tomb, and not suffered to touch the ground. These practices his wife had learned from a sailor of St Felio Guixots, named Pedro Torrent, according to what she had stated to a woman residing in the house. The deponent had made many exertions to persuade

his wife to comply with the precept of the church, and attend mass, but she refused.

Questioned, what persons were present when these superstitious and necromantic deeds were done, what persons took part in them, what instruments were used, what words spoken, what ceremonies performed, and whether the whole was done seriously or in a jesting manner; whether she was rebuked by any one, and by whom; whether, after being rebuked, she continued the practices, and whether she was in her right mind.

Answered, that various persons were present on the above occasion, but their names and residences were unknown to him. Many persons likewise unknown had participated in the operations. As to the instruments used, they had been already described, as well as the manner and ceremonies; that it was not done in jest, and she was in her right mind; and finally, that he had often reproved her without effect.

Questioned, what was the age, personal appearance, and residence of the person in question.

Answered, that she was about sixty years of age, tall, of a swarthy complexion, and lived in his house.

Questioned, if he knew that any other person had said or done aught contrary to our Holy Catholic Faith, or against the proceedings of the Holy Office.

Answered, No.

The above being read to the deponent, he declared it to be correctly recorded, and that he had nothing to add or alter in relation to it; that it was the truth, and not uttered by him out of malice or ill will against his wife, but solely in obedience to his conscience. Secrecy was enjoined, which he promised, and added his signature.

MANUEL BAXO.

JUAN PEDROLS, *Commissary*.

Before me—

IGNACIO RIBES, *Notary*.

* * * *

To the reverend Vicar of Santa Maria de los Reyes to whom is intrusted the district of the Calle del Santo Hospital, Barcelona.

It is desired in this Tribunal of the Holy Office, to learn the conduct in a religious, moral, and political relation, of Dr Don Josef Baldrich, advocate of the Royal Audience, and a resident in the Calle de Jerusalem, at the corner opposite the church of St Augustin, in this city. To know whether he observes the regulations of our Holy Mother Church, and his general character in religion and politics. For this purpose the Tribunal have directed that instructions be sent you to make all possible exertions to this end, both in the discharge of your ordinary functions, and by cautious and secret inquiries from persons of good credit, not omitting anything in these researches which may discover his most secret thoughts upon the matters above specified.

The above instructions I communicate to you by order of the Tribunal. God preserve you many years.

Royal Palace of the Inquisition of Barcelona, October thirtieth, 1818.

DON JOSE AYMAR Y SOLER, *Sec'y*.

ANSWER TO THE ABOVE.

To Don Josef Aymar y Soler, *Sec'y*.

Sir,

Dr Don Josef Baldrich conforms punctually to the precepts of the church, and regularly presents me his certificate to this effect. I have also ascertained by inquiries, that his character is good in a political view, and that he is a well informed and industrious person. I can furthermore state that I have never had any complaint against him, all which intelligence I transmit in discharge of the duty imposed on me. God preserve you many years.

Barcelona, November seventh, 1818.

CLOY TUBERI, *Presbyter and Vicar del Pino*.

* * *

To the Reverend Cura Parroco of Canellas.

This Tribunal of the Holy Office, desire to know the religious, moral, and political behaviour of the Baron de Canellas; whether he follows the precepts respecting Easter, and the other regulations of our Holy Mother Church; and, having learnt that he has taken up his residence in your town, the Tribunal have ordered that you receive instruction to make all possible

researches for this purpose, both in the performance of your ordinary duties and by making inquiries through the instrumentality of trustworthy persons, with all proper caution and secrecy; the satisfactory performance of which, the Tribunal expect from your prudence and zeal.

These instructions I transmit by order of the Tribunal. God preserve you many years.

Royal Palace of the Inquisition of Barcelona, November fourth, 1819.

DON JOSE AYMAR Y SOLER, *Sec'y*.

ANSWER.

To Don Josef Aymar y Soler, Secretary of the Holy Office of Barcelona.

In compliance with the order of the Tribunal of the Holy Office, I am enabled to state that the Baron de Canellas has resided in this place ever since the beginning of 1815, except being occasionally absent on account of the season or his health, as at the present time; he is now at Manlleu where he has resided since the first of August of the present year, with the intention of passing the hot months there. It has not been ascertained when he means to return, but I believe he has determined to do this next January.

As to his moral and religious conduct, he commonly hears mass once or twice a day, says his prayers very devoutly, and enjoins the same upon all his family; but when his mental irregularities occur, which have happened three or four times within six years, he is highly phrenetical, and will utter blasphemies like a heretic, as I have been informed, although such a thing has never happened in my presence or that of my vicar. Even in these fits of delirium, however, he manifests towards us some respect and fear. His last attack, according to what I have been able to learn, endured from January till the end of April of the present year, during which he conducted in a most inexplicable manner, behaving at times very regularly, and at others like a madman. During all this period I believe he never failed to attend mass at the stated time, although he declared that he was no better than a dog, that he possessed neither faith, hope, nor charity, that everything was a dream to him, and that he had no belief in the divine mysteries.

Sometimes he would fall to raving, and declare that he had all hell within him, on which occasions he would utter the most horrid blasphemies. Finally at the end of the period abovementioned he grew tranquil, and I directed him to observe the ordinances relating to Easter, threatening him, in case of refusal, with a denunciation to my prelate. All the threats and exhortations I could use were fruitless for some time. At length, learning that the Missionary Fathers from Villanueva were to take this parish in their way in the course of their labors, he sent me a message, desiring me to grant him a forbearance for a few days, as he was in readiness to perform his duties to the mission. Notwithstanding, however, the assurances I had received from the Missionary Fathers, they did not visit us, and the Baron remained without confession, in which state he left this place for that in which he now resides.

In the year one thousand eight hundred and eighteen he also omitted the above duty in this place, and passed the Lent at the college, in the capital, where he confessed, and took the sacrament, as appears from a regular certificate which he showed me. When in good humor, which happens the greater part of the time, he exhibits outwardly, great piety and zeal, taking much care that his religious worship is accompanied with every mark of respect, and paying the regular sums for the support of my church. He is also very charitable, in which point, indeed, I can bear witness that he follows his natural inclination.

Father N. de Barbara, lecturer in philosophy, of the Franciscan Convent, at Villafranca, preached in this place during the last Lent, and had many disputes with the Baron while he was in the height of his extravagances. In the course of these the Baron uttered some assertions which, had they proceeded from a person of sound mind, would have been reported to the Holy Tribunal, but in his condition it was judged best to consider him as a madman.

In fact, I am convinced that with occasional seasons of intermission, he is not to be looked upon as a sane person; and finally with all his singular piety and devotedness to the cause of the church, charity to the poor, and apostolic zeal in speaking against the vices of these miserable days, I perceive in him a great fund of excessive vanity and pride.

The above information I lay before the Tribunal of the Holy Office, to be applied to the requisite purposes. God preserve you many years.

FRANCISCO MARCER, *Cura Parroco*.
Canellas, November 18th, 1819.

The Inquisitor Fiscal declares it as his opinion that the investigation of the above matter should be suspended and recorded for want of proof.

D. CASTILLON.
Secret Chamber, November 23d, 1819.

The said Inquisitor having examined the above proceedings, in his morning audience, on the day before stated, ordered that the investigation be suspended for want of proof, and that it be recorded in the registers under the name of the person referred to.

Attest. DR DON CYRO VALLS Y GELI, *Sec'y*.

* * * *

INFORMATION has been received and sworn to in this Holy Office, that a certain person has, in the presence of others, among whom was Juan Bonafos, surgeon, living in the house of Don Antonio Canals, uttered the following assertions.

1st. That the priests in the holy sacrifice of Mass, have no power to bring Christ down from heaven, which is proved by the example of the English, who, although so learned a people, yet do not believe this, which they would if it were true, from their great sagacity.

2d. That the French have done right in breaking up so many ecclesiastical and lay communities, which were the cause of such a multitude of dissensions and altercations, destructive to the crown and to the Apostolic Roman Catholic Church.

3d. That the chaplains dress in black to cover their ignorance, inasmuch as they know nothing.

4th. That there is no hell nor purgatory.

5th. That the highest disgrace which could befall him in this world, would be to have one of his relations a monk, or the Beneficiado of a parish.

6th. That if the Tribunal were to order him to be arrested, he had arms in his house and would resist till he had killed four or five.

In consequence of this, we hereby grant a commission to our Commissary Dr Antonio Amill, for the examination before Dr Andres

Fernandez de la Cuesta, Presbyter, as Notary, of the said Juan Bonafos, according to the formula herewith subjoined. The name and residence of the speaker and those who were present, are to be recorded, as also all the circumstances of time, place, &c., as prescribed in the above direction; the whole to be forwarded to us with this commission. God preserve you.

Royal Palace of the Inquisition of Barcelona, June eleventh, 1791.

The Licentiate,

DON MANUEL DE MERRA Y PANIYGUA.

DR DON PEDRO DIAZ DE VALDES.

JUAN ANTONIO ALMONACID, Sec'y.

In the city of Barcelona, on the eleventh day of July, one thousand seven hundred and ninetyone, before Dr Antonio Amill, Presbyter and Commissary of the Holy Office, by virtue of a commission of the Holy Tribunal of the Inquisition of Catalonia, and me, Andres Fernandez de la Cuesta, Presbyter and Notary, having sworn to preserve secrecy, and perform faithfully our duties, appeared and made oath to declare the truth and preserve secrecy, Juan Bonafos, surgeon, a native of the village of San Lorenzo de la Muga, in the bishopric of Gerona, of age, as he stated, twentyone years.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he did not know.

Questioned, if he knew that any person had said or done aught which was, or appeared to be, contrary to our Holy Catholic Faith and Evangelical Doctrine.

Answered, Yes, inasmuch as about six months before, he had heard Joseph Coch, a surgeon, native of Sellern, and at present residing in Barcelona, make the following assertions.

1st. That the priests &c. [*The six assertions specified above.*]

On another occasion, the deponent having stated to him that he had been in the Carthusian Convent, where he read an edict of the Holy Tribunal, prohibiting several books, and among them, one called *Avisos de Moises*,

the above person replied, that as Christ had abolished the law of Moses, he hoped that another Christ would come and abolish the laws of the first. He moreover told him that he had prohibited books in his possession, which in fact he showed to the deponent. Their titles the deponent does not know.

Questioned, in what place the abovementioned Josef Coch made these assertions, and what persons were present at the time.

Answered, that it was at the house of the surgeon Baramon, in the Calle de los Flases; and that the person present was Antonio Trabe, surgeon, who lives with Dr Torner, Beneficiado of San Justo.

Questioned, what was the age and personal appearance of the said Joseph Coch.

Answered, that he should suppose him to be about thirtythree years old; that he was of a middling height, with a thin, pock marked face, and black hair.

The above is the truth, according to the oath of the deponent, who states that he has not made this declaration out of malice, but solely from conscientious motives. Having been read to him, he declares it to be correctly recorded. I add his signature.

JUAN BONAPOS.

DR ANTONIO AMILL, *Presbyter Commissary*.

Before me—JUAN BONAPOS.

DR ANTONIO AMILL, *Presbyter Commissary*.

Before me—

ANDRES FERNANDEZ DE LA CUESTA,
Presbyter Commissary, Notary.

* * * *

IN the city of Barcelona, on the twentysecond day of March, one thousand eight hundred and ninetytwo, before Dr Andres Fernandes de la Cuesta, Presbyter and Commissary of the Holy Office, by virtue of a commission from the Holy Tribunal of the Inquisition of Catalonia, and me, Francisco Junca, Presbyter Notary, appointed for this investigation, sworn to preserve secrecy and perform faithfully the duty,—appeared according to summons, and made oath formally to declare the truth and preserve secrecy, Francisco Beau, clerk, a native and inhabitant of Barcelona, and residing in

the Calle dels Tallers, in the house of the Earthen Ware Company, on the second floor, of age, as he stated, thirtyeight years.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it might be for the purpose of inquiring about the following matter. Being one day at dinner, in the tavern of Domingo —, in the Calle de la Paja, he heard a certain Estruch, and another person who was a fifer in the Walloon Guards, talking about the French affairs. The said fifer spoke against the christian religion and Spain, and Estruch opposed him. Among other things in the conversation, this fifer observed that he believed only three things; but what these were, the deponent could not recollect—it was so long ago—only one of them, as it appears to him, related to giving charity. He declared that he possessed many books, and was not afraid of the Inquisition, for he had already been engaged in some disputes relative to a woman, which had come under the cognisance of the Holy Tribunal, or some of the officers. More of the conversation than this, he does not remember.

The deponent was then told that information had been received and sworn to, that a certain person had uttered, in his presence, and in that of others, the following assertions; *that fornication was no sin, and as to the rest, the whole was made good by giving charity to the poor.* Other persons having mentioned the commandments, he replied, that they were all fulfilled by giving alms. Speaking disrespectfully of the church, he asserted, *that the friars and chaplains did nothing but eat and stuff their paunches; that the church sought nothing but her own interest, collecting tithes from one year's end to another; that the Pope had no more power than any other man; that he did not believe in the decalogue, nor the obligation to hear mass and confess, but only that there was a God, and that men were bound to give to the poor, and not steal.* The conversation turning upon the miracles performed by the intercession of the Saints, he asserted *that he believed none of them, because he had not witnessed them.* Those of Christ being mentioned, he made this remark;—*'What a length of time from that period to 1791! and yet you believe them!'* thereby giving it to be understood that he did not believe them.

The deponent was therefore admonished in the name of God our Lord, and his Glorious and Blessed Mother, Our Lady, the Virgin Mary, to bethink

himself and declare the whole truth.

Answered, that he heard the whole of these assertions except the first and last, relating to the miracles.

Questioned, why he had not given information of what he had heard to the Holy Office, inasmuch as it was so directly contrary to Our Holy Religion and Evangelical Law.

Answered, that he was so occupied with his dinner, and the debates going on, that he never thought of the obligation.

Questioned, from what cause and motive, and to what end the said fifer uttered these scandalous expressions; how many times, and what persons were present. Also, whether he was mad or drunk at the time, and whether he had been rebuked; how many times this was done, and if he abstained.

Answered, that he knew nothing of the cause, motive, or end of these words being spoken; that they were uttered only once at the noon above specified, in the sight and hearing of the deponent. That the persons present were the abovementioned Domingo, and a certain Juan, who, he believed, resided in the Calle Condal, next the house of Dr Juncia, on the second or third floor; also another person whom he did not remember; that he judged him to have been in his right mind, having asked the said Domingo in the presence of Estruch whether this man had not drunk too much, to which he replied that it could not be the effect of the wine, as he had, on other occasions, drunk more. That he did not recollect whether he was rebuked, but only that they kept disputing.

Questioned, what was the personal appearance and age of the said fifer.

Answered, that he was of a middling size, about forty years old, and had been the gardener of the citadel; that he belonged to the grenadier company of Brias, according to his own statement.

The whole of the above is the truth according to the oath sworn by the deponent, who also declared that the declarations were not made by him out of malice or ill will, but solely to discharge his conscience. The whole being read in his hearing, was declared by him to be correctly recorded, and he added his signature.

FRANCISCO BEAU.
DR ANDRES FERNANDEZ DE LA CUESTA,
Presbyter and Commissary.

Before me—

FRANCISCO JUNCIA, *Presbyter Notary*
for this Investigation.

* * * *

IN the city of Barcelona, on the fourteenth day of June, one thousand eight hundred and two, before the Reverend Cayetano Tuco, Presbyter and Commissary appointed for this investigation, and me, the Reverend Juan Palol, Presbyter Notary, sworn to preserve secrecy and perform faithfully our duties, appeared, voluntarily, and made oath in the name of God our Lord to declare the truth and preserve secrecy in everything upon which she might be questioned, a woman, calling herself Maria Anna Sauri, a native of the town of Trem, in the bishopric of Urgel, of age, as she stated, forty years, a resident in Barcelona for twentysix years, and at present residing in the Calle de Basea, in the fourth story of a house opposite a carpenter's, next the stairs called den Casador. She was the widow of Juan Martines, merchant, a native of the town of Figueras in the bishopric of Gerona.

Questioned, why she had demanded an audience of the Holy Office.

Answered, for the purpose of denouncing certain matters to the Holy Tribunal.

Questioned, what matters.

Answered, that about six months ago she dwelt in the Calle de San Raymundo, near the Calle del Asalto, in a house between a tavern on one side, and a tailor's shop on the other. In this neighbourhood resided a female named, formerly, Teresa Sola, and after her second marriage, Salanova, a native of Barcelona, aged from forty to fortyseven years. Her husband was named Francisco Salanova, and was by trade a weaver, and a native of San Felix de Llobregat. The deponent witnessed several transactions between the said Teresa Sola, now Salanova, and a Swiss soldier of the regiment called Bretxa. This soldier was called Joseph; his other name unknown, as well as the place of his birth. Information respecting him could be obtained of a certain captain, called Don Felice Cristi.

The deponent saw these two persons take certain live frogs, stick needles into their eyes, breasts, and backs, and put them into a new pot over a great fire. This was done, as they informed her, for the purpose of compelling a certain man to marriage. She also saw them take three or four wax candles

and light them. These they burnt bottom upwards, burning, at the same time, rosemary, and repeating unintelligible language, and making divers motions with the feet and hands.

The deponent also saw them practise operations with cards for the purpose of divining whatever things they chose. She requested them to perform one for her, and ascertain whether a person named Vicente, whom she supposed to be sick, would return soon from Valencia. 'The said Teresa shuffled the cards, and then answered me that he was not sick, and would return soon, which in fact took place, and the abovementioned Vicente shortly appeared. She told me, at the same time, that I was in much distress, and if I would give her and the abovementioned soldier half a dollar, they would enable me to attain all my wishes. I gave them the money, and saw that they immediately took the figure of a dragon tied by the neck, and placed it in the sun. This occasioned me so much terror that I begged them to desist. Upon this they gave me back the half dollar, uttering maledictions, and the said Teresa declared that I was about to fall into an irretrievable misfortune, and that I should be obliged to sell every rag from my back, which in truth is my condition at present; and although I only laughed at the prediction then, they both told me that I might proclaim to the whole world that they had said it.'

The deponent further stated that the said Teresa had a companion named Maria Anna Gitar, a native of Barcelona and a resident in the Calle de San Raymundo. The deponent has never seen this person perform any superstitious acts, but has heard that on occasion of a quarrel between them, some witchcraft was practised; also that the said Maria Anna Gitar had a sister named Magdalena, (the name of her husband unknown) and the deponent heard the abovementioned Teresa Sola, now Salanova, declare that her sister Magdalena had not been at confession for the space of eight years. At other times, when these two were quarrelling, the deponent has heard the said Magdalena exclaim, 'I am not like you, who lay heaps of rosemary in the balcony at night to burn the next morning.'

Furthermore, the deponent has seen the said Teresa Sola, now Salanova, burn alum for some superstitious purpose, to her unknown. On this occasion there were two other persons present, namely, a girl called Antonia, about twentythree years of age, a native of Barcelona, and living with the abovementioned Teresa, and Raymundo Campeñs, widow of Esteva

Campeñs, tailor, dwelling in the Calle de San Raymundo, aged, apparently, about fortyfive years.

Furthermore, the deponent remembers that she saw the said Teresa and the abovementioned soldier called Joseph, burn alum for the purpose of causing a reconciliation between a young man and a female named Magdalena, which persons had fallen into a quarrel. The said Teresa also practised operations with cards, and burnt rosemary, in order to effect this object. On the first occasion were present the abovementioned Antonia and Raymunda Campeñs, and on the second, Josefa Bardaguer, a girl of about twenty years of age, living in the Plazuela del Pino in the second story of a house which makes a corner of the Plazuela, and other persons whom she does not remember, as she had witnessed these performances between the said Teresa and the soldier so many times.

The said Teresa also informed her that she possessed a St Antonio upon paper, which sweated whenever any ill was about to happen, and that when a pack of cards was shuffled and the ace of spades and five of diamonds drawn, it signified death or apprehension by the Holy Office. The deponent further stated that the said Teresa, was accustomed to burn rosemary, and sprinkle holy water all over her house, walking backwards to the door; and that she possessed an herb which foretold everything, good or bad, about to happen. Upon the stalk of this herb she placed a piece of gold or silver money, or a ring; and the deponent on one of these occasions saw a tile fall from the balcony into the street. In this tile was a piece of a silver key, a gold ring, and seven reals vellon.

Furthermore, the deponent has heard that when the said Teresa lived in the Calle de Arolas, there ran out of her house, one day, a dog, with an ox's heart, stuck full of needles, and that the Alcalde, whose name is unknown to the deponent, with the men and boys of the neighbourhood, caught the dog and burnt him in the middle of the street.

The deponent has also seen the said Teresa burn nine plates and three strings of cotton, which she informed her was done to break the heart of a certain person. She also told the deponent that on the night of St John's day, she went to collect the leaves of certain herbs in a place called Trinidad, where criminals who have been hanged are buried. There accompanied her three or four women and a man who was a lamplighter. The names of none of them were known to the deponent. Three or four men came out and

threw stones at then without hitting any one. She also informed the deponent that she had in her possession medals and a crucifix of the Holy Office.

Furthermore, the deponent stated that she requested her to ascertain whether a person of her acquaintance in Valencia would return soon to Barcelona; and the said Teresa Sola, now Salanova, bade her go and purchase a pack of French cards at the shop of Revella, in the Plaza del Angel. This the deponent did, and paid two reals plate for them. The cards being produced, an operation was performed, and she pronounced that he would return ere long, and that he had met with a misfortune; for, on a journey to visit his sister, he had fallen from his horse and broken his leg. She then further declared that at half past six o'clock the next morning he would be in Barcelona; the whole of which proved true, for at half past six he knocked at the door and said he had been on a visit to his sister, who was a nun, and had fallen from his horse and broken his leg.

Furthermore, the deponent stated that she had seen divinations with cards performed by the surgeon of the Swiss soldiers in the regiment called the regiment of Bretxa, now in Madrid. This surgeon was called Don Felipe. His other name is unknown to the deponent. She has also seen in his possession a book filled with figures of tombs, evil spirits, and skeletons; and the surgeon told her that it contained matter which was denounceable. There was present on this occasion the wife of the colonel of the Swiss regiment, called Dona Maria. Her other name and birthplace the deponent did not know; but only that when the regiment was in Barcelona, the said Don Maria dwelt in the Calle Nueva del Asalto.

Questioned, what else she knew or had to relate.

Answered, that she had seen the above practices performed so often that she had forgotten a great many instances.

Questioned, what persons were present on any of the above occasions.

Answered, that she had already named them.

Questioned, if she had seen or heard that any other person had said or done anything against Our Holy Catholic Faith, or against the proceedings of this Holy Office.

Answered, that she knew nothing further, and had she known anything, should have divulged it before.

Questioned, why she suffered so much time to elapse without giving information.

Answered, that she was ignorant of her obligation to do this, till on relating these things to her spiritual father, he ordered her to make a deposition of the whole before the Holy Tribunal.

Questioned, what was the personal appearance of the above mentioned Teresa Sola, now Salanova; of the soldier; of Maria Anna Gitar, and her sister.

Answered, that Teresa Sola, now Salanova, was a well shaped person, somewhat fleshy, with a dusky complexion, reddish eyes, chestnut hair, and small hands, having no scar to distinguish her. That Maria Anna Gitar was a tall person, with an ugly pock marked face, the color of her eyes, hair, &c. not remembered. That her sister Magdalena was a small person, with a face likewise ugly and pock marked; other characteristics forgotten. That the soldier called Joseph was a well shaped person, with a long, palish face, and chestnut hair; the other marks not remembered.

The above, being read to the deponent, was pronounced to be her own declaration, and faithfully recorded. She declared that she had nothing to correct of its contents, except that the abovementioned Magdalena was not the sister of the said Teresa, but of Maria Anna Gitar. She affirmed that she did not make the declaration out of malice or ill will against the abovementioned Teresa Sola, now Salanova, the soldier Joseph, Maria Anna Gitar, and her sister Magdalena; but solely to discharge her conscience. Secrecy was enjoined upon her which she promised, and not being able to write, I, the present Commissary, sign in her name.

CAYETANO TUCO, *Presbyter and Commissary.*

Before me—

JOAN PALOL, *Presbyter, Commissary, and Notary.*

In the city of Barcelona, on the eighteenth day of June, one thousand eight hundred and two, before me, Cayetano Tuco, Presbyter and Commissary, appointed for this investigation, and me, the Reverend Juan Palol, Presbyter Notary, both sworn to preserve secrecy, appeared and made

oath in the name of God our Lord, to declare the truth and preserve secrecy, Maria Anna Sauri, widow, being also present, in the quality of honest and religious persons, the Presbyters whose names are signed below.

Questioned, if she remembered having made a declaration before the ministers of the Holy Office against any persons for crimes within her knowledge.

Answered, and related substantially the whole of the preceding declaration. She requested that it might be produced and read.

The deponent was then informed that the Promotor Fiscal of the Holy Office presented her as a witness *ad perpetuam rei memoriam*, in a cause under his direction against the said Teresa Sola, now Salanova, against the Swiss soldier named Joseph, against Maria Anna Gitar, and against her sister Magdalena, whose husband's name is unknown. The deponent was directed to give attention while her declaration was read, and if she found anything to add or alter of its contents, to perform it in such a manner as to declare the truth, as her assertions might prejudice the said persons. The above deposition was then read *de verbo ad verbum*, the deponent hearing and understanding the same.

The deponent declared that it was her identical deposition, as it had been read and recorded; that she had nothing to add or alter respecting it, for the whole was the truth which she attested and ratified; and that if necessary, she was ready to repeat the whole against the said Teresa, Maria Anna, Magdalena, and the soldier, and against the surgeon Don Felipe, not from malice or ill will, but solely to discharge her conscience. Secrecy was enjoined upon her anew, which she promised to observe, and the deponent not being able to write, I, the said Commissary, sign in her name along with the honest persons.

CAYETANO TUCO, *Presbyter and Commissary.*

FRANCISCO PALMAROLA, *Presbyter.*

ANTONIO HUGUET, *Presbyter.*

Before me—

JUAN PALOL, *Presbyter, Commissary, and Notary.*

TO CAYETANO TUCO, PRESBYTER COMMISSARY.

In consequence of the deficiency of the information relating to the deposition of Mariana Sauri, widow, native of Tremp, and residing in Barcelona, in the Calle de Basea, in the upper story of a house opposite a carpenter's, the Tribunal has ordered that you be instructed to make inquiries with all possible expedition respecting the character and responsibility of the abovementioned person, and of the credit due to her testimony; also respecting the character and conduct of Teresa Salanova, wife of Francisco Salanova, weaver, living, as it appears, in the Calle de San Raymon, between a tavern and a tailor's shop. You will likewise make the same inquiries respecting the life and character of Joseph ——, a soldier in the Swiss regiment of Vetchar, and whether these persons conform to the precepts of the Church in the annual confession and Paschal communion. These orders I transmit for your execution. Our Lord preserve you.

Royal Palace of the Inquisition of Barcelona, June 28th, 1802.

DR DON CIRO VALLS Y GELI, *Sec'y*.

TO THE MOST ILLUSTRIOUS INQUISITOR.

MOST ILLUSTRIOUS SIR,

I have made inquiries of the Vicar of the district of the Calle Nueva de Asalto and other streets, for the purpose of learning the character and conduct of Teresa Sola, now Salanova, and of the girl Antonia, who lives with her, and whose name has hitherto been unknown, but is now ascertained to be Antonia Costa. These two persons live in the third story of a house which makes the corner of the Calle de la Guardia. It has been ascertained from the *cartepacio* of the communions, that neither the said Teresa Salanova, nor Antonia Costa, have, within the present year, presented their certificates of the Paschal communion.

Respecting the soldier named Joseph, of the Swiss regiment of Vetchar, I have not been able to learn anything, except that the regiment is now in Madrid.

The above is the substance of what I have succeeded in learning, and I communicate the same that your Excellency may apply it to the proper

purposes. God preserve the life of your Excellency many years.

Barcelona, July 2d, 1802.

Your most humble chaplain who kisses the hands of your Excellency,

CAYETANO TUCO, *Presbyter Commissary*.

TO THE MOST ILLUSTRIOUS INQUISITOR.

MOST ILLUSTRIOUS SIR,

I have made the most industrious search for information respecting the character and life of Maria Anna Sauri, widow, but cannot ascertain what degree of credit ought to be attached to her testimony. I am informed by the Reverend Antonio Huguet, Presbyter, that he has some knowledge of her, as all these persons belong to the town of Tremp. He cannot tell, however, what life she leads, and only knows that she has been in the Galera. I made inquiries of the Pacionero del Pino, and he stated to me that he had seen her in the Galera, where she was then in custody for smuggling. Nothing more respecting her was known.

I have, with the assistance of the Vicar del Pino, examined the *cartepacio* of communions of the whole district of the Calle de Asalto, Calle de Lancastre, Calle den Guardia, Calle del Olmo, Calle de San Olaguer, which, as supposed by her in her deposition, must be the second Calle de San Ramon, the whole Calle de San Ramon, and all the lanes. No part of the *cartepacio* exhibits the name of Marianna Sauri. I then proceeded to Santa Maria del Mar, as the Calle de Basea, where she resides, is situated in that parish, and here in the *cartepacio* of the communions it was found, but nothing further to direct me. She has left Barcelona, whether for Tremp or Figueras, I cannot positively determine.

The above information I communicate to your Excellency to be applied to the proper purposes.

Barcelona, July 2d, 1802.

Your most humble chaplain who kisses the hands of your Excellency.

CAYETANO TUCO, *Presbyter and Commissary*.

* * *

MOST ILLUSTRIOUS SIR,

Father Fr. Vicente Xaus, Franciscan, residing in the Franciscan Convent of Gerona, by an extra sacramental commission from Eulalia Forcat, dwelling in the Hospicio of that city, with the intention to assume the scapulary of a sister, gives information to the Holy Tribunal, that Joseph Jalbert, merchant, a resident, as well as the other persons referred to, in this city of Barcelona, and now residing in the Callejuela de San Antonio, in a house where a herbseller keeps, uttered about two years ago, certain insulting language about Ecclesiastics, both secular and regular, saying they were a set of vagabonds, and that he would not give them money, with many other things which she has forgotten. These words were said at the house and in the presence of Señor Francisco Galup, merchant, living in the Calle de la Merced, and who can give further information of the facts. At another time, and in the presence of the abovementioned Eulalia Forcat and Augustina Buxeras, a resident in the Calle de Basea, besides his accustomed speeches above described, he took a paper on which was the figure of a Saint, and rubbed it over his posteriors outside of his clothes. The said Eulalia also saw him open a book containing many indecent figures.

Furthermore, in the name of the same person, he denounces to the Holy Tribunal the following matter. Father Fr. Antonio Puig, of Barcelona, a monk of my seraphic order, and residing in the Grand Convent of Barcelona, a thing which grieves me exceedingly, hearing the confession of this person, in which she informed him that she was mortifying herself with the exercise of the penal discipline, he visited her one day when she was confined to her bed by indisposition, and speaking of her penance, she discovered to him a portion of her body where she had applied it, when the abovementioned Father examined it, and felt it with his hand, asking her if it pained her where he touched. This business, God be thanked, proceeded no further.

He furthermore states that the said Father did even worse than this to the abovementioned Augustina, as he had learned from her own mouth. He had ascertained from her confession, that she also was practising the penal exercise, and went to her house one day, where he disciplined her so violently that she was unable to sit down. She sent for the abovementioned Eulalia to examine her, fearing that she had received some wound. The said Eulalia does not recollect that she stated he had disciplined her twice

before, but remembers that she asserted she had seen a part of the good Father's body uncovered.

Upon these matters the Holy Tribunal will institute the necessary proceedings.

P. VICENTE XAUS, *Franciscan*.

Gerona, June 2d, 1807.

P. S. Both the above occurrences happened about two years ago. Nevertheless a few days after the confession, I remember that the said Eulalia told me they continued to confess to the same Father.

In the city of Gerona, on the twentieth day of June, one thousand eight hundred and seven, before Dr Narciso Coll, Presbyter, Inquisitor Honorary, and Commissary, appointed for this investigation, and me Joseph Gasull, Presbyter Notary, both sworn to preserve secrecy, and perform faithfully our duties, appeared voluntarily, and made oath to declare the truth and preserve secrecy in everything which she knew, and about which she might be interrogated, a person calling herself Eulalia Forcat, of the city of Barcelona, aged about thirty years, a nun and attendant upon the foundlings in the Royal Hospicio of this city.

Questioned, if she knew or conjectured the cause of her being summoned to appear by the Holy Office.

Answered, that she did not know.

Questioned, if she knew or had heard that any person had said or done anything which was, or appeared to be, contrary to Our Holy Catholic Faith and Evangelical Law, or against the just proceedings of the Holy Office.

Answered, that about two years since, being in this city, and serving as a domestic in the house of Señor Francisco Galup, merchant, in the Calle de la Merced, she heard on many occasions, Joseph Jalbert, merchant, a young man, a native of Puigcerda, and who transacted business in this house for a year, and then removed with his parents to the Calle de San Antonio, utter various insulting and abusive words against the Priests, both secular and regular, disputing often at table with the said Señor Francisco Galup, respecting matters of religion, declaring that the Priests were a parcel of useless vagabonds, and that they ought to be set to work, with other assertions of the same kind, which were uttered repeatedly in the presence of the deponent and Augustina Buxeras, both domestics in the house, Señora Maria Galup, Cayetano Galup, and Señor Francisco Galup. He

persisted in this language, notwithstanding they all checked and rebuked him, in particular the abovementioned Señor Francisco Galup.

On another occasion the deponent being in company with the aforesaid Augustina Buxeras, in the kitchen of the house, the abovementioned Joseph Jalbert took a paper, on which was the figure of a Saint, and with approbrium to religion passed it behind him over his clothes. And when they rebuked him in a christian manner, he laughed and left them. At the same time she saw in the room in which he dwelt, three books, bound in the French manner, of a small size, and containing very indecent pictures of men and women. Neither the author of the books nor the subject were known to her, as they were in French. He kept them in his possession while he remained in the house, and on his departure took them with him.

Questioned, what was the age, personal appearance, residence, &c. of the abovementioned person.

Answered, that he was then about twentyone or twentytwo years old, of a moderate stature, fleshy, with a face somewhat long, and flaxen hair. He was unmarried, and engaged in mercantile trade. She believed that he lived at present in Barcelona.

Questioned, if she knew that any other person had said or done anything which was or appeared to be contrary to our Holy Faith or against the just proceedings of the Holy Office.

Answered, No.

The above being read to her she declared that it was faithfully recorded conformably to her own declaration, and that she had nothing to add or alter respecting it, as it was the truth. She further stated that she had not done it out of malice, or ill will against the said Joseph Jalbert, but solely to discharge her conscience. Secrecy was enjoined upon her, which she promised; and the deponent, not being able to write, I, the said Commissary, sign in her name.

NARCISO COLL, *Presbyter, and for
the said Deponent.*

Before me—

JOSEPH GASULL, *Presbyter Notary.*

In the city of Gerona, on the twentyfifth day of June, one thousand eight hundred and seven, before Dr Narciso Coll, Presbyter, Commissary commissioned for this investigation, and me, Joseph Gasull, Presbyter Notary, sworn to preserve secrecy, and perform faithfully our duties, appeared, and made oath to declare the truth and preserve secrecy, Eulalia Forcat, and being present in the quality of honest and religious persons, the Rev. Gines Torrent and the Rev. Thomas Parella, both Presbyter Beneficadores of the Holy Church, sworn to preserve secrecy. She was

Questioned, if she remembered having made a declaration before the Ministers of the Holy Office against any person for crimes within her knowledge.

Answered, by repeating, substantially, the foregoing declaration of the twentieth of June current, made before the Commissary and Notary whose names are signed below. She requested that it might be produced and read.

The deponent was then informed that the Promotor Fiscal of the Holy Office presented her as a witness *ad perpetuam rei memoriam* in a cause under his direction against the persons referred to in the said declaration. She was directed to give attention while it was read, and if she found anything to add or alter respecting the contents of it, to do it in such a manner as to declare the truth, as what she now uttered might operate to the prejudice of the aforesaid persons. The declaration made before the abovementioned Commissary and Notary, on the twentieth of June current was then read *de verbo ad verbum*, the deponent hearing and understanding the same.

She declared it was her declaration, and correctly recorded; that she had nothing to add or alter respecting it, as it was the truth, and she attested it for the same, and if necessary was ready to repeat the whole anew against the said Joseph Jalbert, not out of malice or ill will, but solely to discharge her conscience. Secrecy was enjoined upon her which she promised to observe, and the deponent not being able to write, I, the said Commissary, sign in her name, along with the honest persons.

NARCISO COLL, *Commissary,*
and for the said Witness.

GINES TORRENT, *Presbyter,*
in the same name.

THOMAS PARELLA, *Presbyter.*

Before me—

JOSEPH GASULL, *Presbyter Notary*.

In the city of Gerona, on the twentysecond day of June, one thousand eight hundred and seven, before Dr Narciso Coll, Presbyter, Inquisitor Honorary, and Commissary appointed for this investigation, and me, Joseph Gasull, Presbyter Notary, sworn to preserve secrecy and perform faithfully our duties, appeared, voluntarily, and made oath to declare the truth and preserve secrecy in everything which she knew, and about which she might be interrogated, a person calling herself Eulalia Forcat, of the city of Barcelona, aged about thirty years, a nun, and attendant upon the foundlings in the Royal Hospicio of this city.

Questioned, if she knew or suspected the cause of her being summoned to appear by the Holy Office.

Answered, that she did not know.

Questioned, if she knew or had heard that any person had said or done anything which was or appeared to be contrary to our Holy Catholic Faith and Evangelical Law, or against the just proceedings of the Holy Office. Answered, that at present she could remember nothing.

Questioned, if she knew or had heard that any Ecclesiastic had practised irregularities towards any person of the other sex in hearing them often at confession.

Answered, that all she knew was this; about two years ago she served as a domestic in this city, along with Agustina Buxeras, who afterwards lived in the family of Puigcech, a button maker, in the Plazuela de Basea in Barcelona, and being at that time in the house of Señores Francisco Galup and Cayetano, merchants, in the Calle de la Merced in Barcelona, she heard, on several occasions, the said Agustina declare that on confessing herself to the Reverend Father Fr. Antonio Puig, of Barcelona, of the order of San Francisco de Asis, he had ordered her many times at evening to go into a room at the entrance of the church of the Convent of San Francisco, on the right hand, where he disciplined her and caused her to do the same to herself, and that, he had done this also at the house of the abovementioned

Señores Galup. This the deponent learned from the mouth of the said Agustina, and furthermore by examining her person on the second occasion, when she found her posteriors were black and blue, and that she had evidently been severely handled.

The said Agustina also informed her that in one or more of these instances while she was in the room with the abovementioned Confessor, at the entrance of the Convent, he had taken off her petticoat and stays to give her the discipline; at the same time he uncovered his back, which she supposed was done for the purpose of exhibiting the effect of his flagellation. These confessions and disciplines continued, as the deponent learned, for some time, when finding that he did nothing to effect her admission as a nun into some Convent, of which she was desirous, she left him and sought another Confessor. What other things were done was not known.

The deponent was then informed that information had been received in this Holy Office that on the time above specified, while she was confined to her bed by some indisposition, her Confessor had paid her a visit, and in conversation upon penal mortifications he had uncovered a part of her body, examined it, and touched with his hands the places where she exercised her discipline, demanding if she felt any pain while he was touching them. Therefore, by virtue of the oath she had sworn, she was exhorted to bethink herself, reflect attentively upon the matter, and declare the truth.

Answered, that this was all true; that it occurred in the abovementioned house of the Señores Galup, with the aforesaid Father Fr. Antonio Puig, her Confessor, and that on this occasion she did not confess herself to him. She did not remember how long she had then gone without confessing, nor how long she deferred afterwards confessing to the same person. She however continued in company with him but without ever speaking of the matter. She knew not whether the abovementioned Father had ever solicited any person during confession or at any other time, nor had ever heard that any person has declared that there was no obligation to denounce such things to the Holy Office, but has heard the contrary from her present Confessor, Father Fr. Vicente Xaus, a monk of the same order, and now a conventual in this city of Gerona.

Questioned, what was the age and personal appearance of the said Father Fr. Antonio Puig, also his condition, residence, &c.

Answered, that she believed him to be under forty years of age, that he was of a middling height, rather thin, with a handsome face, large black eyes and eyebrows, hair and beard a little whitened, and that she believes he resides in Barcelona as one of the four ordinary Confessors of the aforesaid Convent.

The above having been read in her presence, she affirmed that it was correctly recorded conformably to her declaration; that she had nothing to add or alter respecting it, as it was the truth; and that it was not uttered by her out of malice or ill will against the abovementioned ecclesiastic, but solely to discharge her conscience. Secrecy was enjoined upon her, which she promised, and being unable to write, I, the said commissary sign in her name.

NARCISO COLL, *Commissary,
and Presbyter for the Deponent.*

Before me—

JOSEPH GASULL, *Presbyter Notary.*

* * * *

IN the Royal Palace of the Inquisition of Barcelona, on the twentieth day of August, one thousand seven hundred and eightyone, the Inquisitor Licentiate, Dr Manuel de Merra y Paniagua, ordered to appear before him according to summons, a foreigner, established in this city, who, being present, was formally sworn to declare the truth and preserve secrecy with respect to everything which he knew, and concerning which he might be interrogated, and in relation to everything which he might see or understand, and everything which might befall him.

Questioned, his name, birthplace, residence, condition, age, and occupation.

Answered, that his name was Pedro Remson; that he was born in the town of St Jean in the district of Laval, in France; that he had resided in this city four years, doing business as a linen draper; that he had no wife, and was about thirtyfive years of age.

Questioned, if he knew or conjectured the cause of his being summoned to appear by this Tribunal.

Answered, that he neither knew nor conjectured.

Questioned, if he had said or done anything which was or appeared to be a matter within the cognizance of the Holy Office, or against our Holy Catholic Faith and Evangelical Law.

Answered, that he had never said or done anything contrary to the Catholic Faith, nor anything pertaining to the cognizance of the Holy Office.

He was then told that information had been received and sworn to in this Holy Office, that he, the deponent, had uttered certain speeches containing matter which came under the jurisdiction of the Holy Office; that he was summoned to be examined respecting it, and that he would do well to confess the whole before he was compelled to it.

Answered, that he was confident he had never said or done anything of the kind unless the following could be denominated such. About a year since, conversing with Carlos Coquet with whom he resided in this city, speaking of our Lady, of Mary and her image, the deponent affirmed that the Holy Virgin Mother of God was the only one, and that there was no difference between the image of Our Lady, of Mary, and any other. On another occasion, about the same time, he told the abovementioned Coquet that in France they were not obliged to present certificates of compliance with the annual precepts of sacramental confession and communion; that he considered it a burdensome practice and exposed to great abuses, and that he had understood these certificates were often sold about to persons who did not choose to comply with the precept, which thing he had heard publicly declared in coffee houses and clubrooms, but did not recollect by what persons.

At another time, finding that at his meal the oil did not suit his taste nor agree with him, he observed to the said Coquet that he thought he should not offend by eating the fat of beef on fast days, in place of oil.

On another occasion, about the same time, being out of the city, Josefa Coquet, wife of the abovementioned Carlos Coquet, was looking over his books, among which she found one entitled *La Henriade*, by Mons. Voltaire, which book belonged to Bernardo Carles, a Frenchman, who passed through this city for Andalusia, and gave the book in keeping to the deponent. He received it knowing that it was a prohibited book. When the deponent returned to the city, the said Josefa Coquet told him, with a mysterious look, that she had seen this book, and that her Confessor had

ordered her to give information of it to the Holy Office. He replied that she had done wrong, and should have given up the book on mentioning it. He offered her the key of his writing desk that she might see whether he had any other bad or prohibited book.

Another day, talking with the aforesaid Coquet about the infallibility of the Pope, the deponent declared that inasmuch as he had never read in any book that the Pope was infallible, although he believed and held him to be the head of the church, yet he was persuaded that God alone was infallible; that the catechism which was taught him in France did not declare that the Pope was infallible, and therefore he did not believe it; but if his confessor or any other learned person were to say that he was, he should believe it; upon which Coquet was offended and went off to his own apartment. Further than this he did not remember to have said or done anything relating to matters of religion, and if he were apprised of anything, which had been denounced to the Holy Office, he would disclose all he knew with the same sincerity.

He was then told that information had been received and sworn to in this Holy Office, that he, the deponent, had said he was a freemason, and had a book containing the constitutions of that society, that he produced the book, read a portion of it, and declared that there was nothing in it contrary to the Catholic Religion; furthermore, that the person to whom he made these assertions and read the book, making some objections, and telling him to conceal the book and take care that it came not to the knowledge of the Inquisition, for they would punish him, he laughed at him.

Answered, that it was false that he had ever told any one that he was a freemason, as he was not, nor ever had been one of that order, although he had held communication with some of them in France, had dined with them, and seen them converse together by signs; also, that he never possessed, nor said that he possessed a book containing their constitutions, and although he once had a book which spake in praise of freemasons, and commended their charities and other good works, yet it was false that he ever read any part of the same to any person; that he burnt this book with some other papers in presence of the abovementioned Josefa Coquet, and that he did not remember to have made the assertions imputed to him.

He was then told that information had been also received and sworn to, that he, the deponent, on a certain occasion, gave to another person a book

whose author was Mons. Voltaire, informing him that he had possessed it for fifteen years; and that a certain ecclesiastic reprehending him for it, he replied that the book was not his, and that on the same day, in presence of the person aforesaid, he burnt some papers, saying, that he did it for fear of the Inquisition.

Answered, that the first part of this assertion was false; namely, that relating to the work of Mons. Voltaire, and that no part of it was true, except what he had already related as having passed between him and Josefa Coquet; that it was true he had burnt, in her presence, the book in praise of the freemasons, the history of the Incas of Peru, and some papers relating to the entertainments given to the Prince of Chartres, who was considered as the head of the freemasons, and also that he declared he had done the same for fear of the Inquisition.

It being late, the audience closed, and the deponent was ordered to appear again the next morning. The whole was read to him and he declared it to be true, which I certify.

PEDRO REMUSSON.

JUAN ANTONIO ALMONACID, *Sec'y.*

* * * *

To the Members of the Tribunal of the Inquisition of Catalonia, at their Royal Palace, Barcelona.

Barcelona, March 20th, 1802.

MOST ILLUSTRIOUS SIR,

I have some information to give your Excellency respecting a certain person who has uttered in my presence some words which it appears to me come within the cognizance of your Excellency. Various causes have hindered me from appearing before the respectable tribunal of your Excellency and denouncing the whole matter. I trust your Excellency will favor me so far as to take my deposition at the hands of some clerical person. I live in the Calle Ancha, in the second room of a house which forms the corner of the Callejon de la Plata, No. 1, and for more particular direction, my house is so near that of Señor Don Juan Larra, that nothing separates them but the abovementioned Callejon.

Your Excellency's most humble servant,
MARIA BERNARDA HALLEGG, *wife of*

*Don Pedro Hallegg, Captain in the
Regiment of Rutiman.*

In the city of Barcelona, on the third day of June, one thousand eight hundred and two, before Dr Andres Fernandez de la Cuesta, Presbyter and Commissary appointed for this investigation, and me, the Reverend Cayetano Tuco, Presbyter, Commissary, and Notary on this occasion, sworn to preserve secrecy and perform faithfully our duties, appeared, voluntarily, and made oath to declare the truth and preserve secrecy with respect to everything which she knew and about which she might be interrogated, a person calling herself Dona Maria Bernardo Halegg, wife of Don Pedro Hallegg, Captain in the Regiment of Rutiman, a native of the town of Estipona, in the province of Andalusia, of age, as she stated, twentyfour years, and residing in the Calle de la Plata.

Questioned, if she knew or conjectured the cause of her being summoned to appear by the Tribunal of the Holy Office.

Answered, that she supposed it to be on account of a letter which her Confessor had written in her name to the Holy Office, in which letter she had declared that she had some information to communicate. The matter in question was as follows. About six months ago, Juan Picar, a native of Lyons, in France, who visited at her house, uttered the following heretical speeches; namely, that he did not believe in the purity of the Most Holy Mary; that he did not believe Jesus Christ descended to the Host after the words of consecration were uttered by the Priest; that he did not believe in the Pope, inasmuch as he was a man like ourselves; that those who died did not go to Hell, but to Paradise; that he said 'Holy Mary' instead of 'Most Holy Mary;' that he spoke ill of the Priests, declaring that he could not endure the sight of them, and that they had ruined Spain; that the French had done well in driving them all out of their country. The deponent stated further, that she believed he did not attend mass on the days appointed, although he professed to be a Christian.

She was then shown a letter beginning with 'Barcelona, March 20th, 1802,' and ending with 'Don Pedro Halegg, Captain in the Regiment of Rutiman,' that she might examine and identify it, and declare it to have

been written by her, or by her direction in her name, and containing the truth.

Answered, that it was the identical one which she had caused to be written by her Father Confessor, and that she attested it for the truth; that she had nothing to add or alter in relation to it, and that she had not made her declarations out of malice or enmity against the abovementioned person, nor from any counsel or instigation on the part of any other person.

Questioned, why she had delayed to denounce these offences to the Holy Office, thereby failing in her obligation to give notice of all such matters immediately upon having knowledge of the same.

Answered, that she wished previously to consult her Father Confessor, and that she obeyed upon receiving his orders.

Questioned, at what time and in what place he made the abovementioned assertions; what persons were present; if he said them more than once, and how many times; whether he spoke in his own language, or quoted others who made the assertions referred to; whether he spoke in jest, in dispute, or in a passion; whether he was accustomed to utter such words; whether he was rebuked by any persons present, and by whom; whether, after being rebuked, he persisted in his assertions, and whether at the time of speaking he was in his right mind, or was insane or drunk.

Answered, that she had already specified the time, and that it happened at her house; that there were present occasionally her husband abovementioned; her brother-in-law, Don Martin Halegg, who resided there, a servant named Francisca Garriga, living in the Callejon de Santa Anna, and who went to be married at Tarragona, but her present place of residence the deponent does not know, and another servant named Antonia, who lives in a lane near La Trinidad Calzada, and is the daughter of a schoolmaster in that lane; that he repeated the above assertions many times, so often that she could not recollect the number; that he spoke affirmatively, and seriously; that she did not think he was accustomed to such talk, as he had not repeated it for more than two months; that he was rebuked several times by the abovementioned persons and the deponent, but took no heed; and that on most of these occasions he was in his right mind, although a few times he was intoxicated.

Questioned, if she knew that any other person had said or done anything which came within the cognizance of the Holy Office.

Answered, No.

Questioned, what was or appeared to be the age of the abovementioned Juan Picar, also his personal appearance and condition.

Answered, that he was about fortyfour years of age, tall, thin, with a light complexion, blue eyes, and red hair; and that he was a soldier in the aforesaid regiment.

The above being read to her, she affirmed it to be recorded conformably to her declaration; that she had nothing to add or alter respecting it, as it was the truth; and that she did not utter it out of malice or ill will against the said Juan Picar, but solely to discharge her conscience. Secrecy was enjoined upon her, which she promised to observe, and added her signature, which I certify.

After the declaration had been read, and before it was signed, the deponent recollected that the abovementioned Juan Picar observed to her husband, that a person, on dying, passed to the other world without suffering any punishment. Also she had been informed by her sister-in-law, Dona Rafaela Reymer, wife of a captain out of service, named Don Joseph Reymer, who lives in the Calle de San Pablo, No. 14, third story, that two officers of the said regiment, the one named Martin Estinause, and the other unknown, uttered blasphemies respecting a figure of Christ.

All which she denounces to the Holy Office in discharge of her conscience, and under the oath of secrecy sworn by her. She added her signature, which I certify.

MARIA BERNARDA HALLEGG.
DR ANDRES FERNANDEZ DE LA CUESTA,
Presbyter and Commissary,
CAYETANO TUCO, *Presbyter, Commissary,*
and Notary.

* * * *

MOST ILLUSTRIOUS SIR,

Francisco Prat, Subdeacon, native of Esponella, and a resident in the Seminario del Señor, in the bishopric of Gerona, by counsel and order of the Reverend Juan Salgueda his Confessor, gives information with due respect to your Excellency, of the following matter.

About six months since, in this city, he heard Narcisa Catala y Pinsach, the wife of a Frenchman, and reputed a woman of truth, and a native of Gerona, dwelling in the Mercadal Parish of that city—declare that a Frenchman who was a stocking weaver in the Hospicio of the same city, whose name was Blaqueire, and whose age was about thirty years, had been baptized since he was in Spain, but had prevaricated and embraced some heresy.

Also that a certain Frenchman, named Avi Brich, aged about sixty years, residing in the said city of Gerona, and likewise a stocking weaver in the Hospicio, was a Jew, and the writer of this letter observing that they ought to commune annually, otherwise they would be severely punished, she replied that in order to deceive the spies, he took the sacrament not merely once, but two or three times every year.

Which information I transmit to your Excellency for the necessary end.

Gerona, April 28th, 1791.

FRANCISCO PRAT, *Subdeacon*.

We herewith transmit to the Reverend Juan Salgueda, Presbyter Vicar of the church of the Mercadal of Gerona, the extrajudicial denunciation of Francisco Prat, Subdeacon, a resident in the Episcopal Seminario of that city, and we grant a commission for examining him before another Ecclesiastic as Notary, according to the formula adjoined, No. 1, in order that the denunciation may be attested, and he may affirm, under oath, that it is his, written and signed by him, and its contents true, as also whether he has anything to add or alter respecting it, and from what motive the said Narcisa Catala y Pinsach made the charges in question against the two Frenchmen.

Having taken the deposition of Francisco Prat, you will take the occasion and methods the most cautious and opportune to examine before the same Notary, and according to the formula No. 2, the said Narcisa Catala y Pinsach, respecting the matters referred to by Francisco Prat, taking care not to mention to her the name of this person, nor the names of the Frenchmen accused, inasmuch as she will state them herself should her testimony corroborate the charge, in which case she will specify the name, occupation, country, residence, age, and personal appearance of each individual. Also if she knows whether one of them has been baptized in Spain, when, in what Parish, and what heresy he embraced afterwards. Also what reason she has

for saying that one of them is a Jew, and in order to deceive the spies, takes the communion not merely once, but two or three times a year. You will also question her whether she has heard or understood anything from these two Frenchmen or others, which is, or appears to be, contrary to our Holy Catholic Faith, or within the cognisance of the Holy Office, in which case she must declare whatever she knows, with the utmost clearness and perspicuity.

These investigations being completed, you will forward the proceedings to us, returning also all the papers. Our Lord preserve you.

Royal Palace of the Inquisition of Barcelona, June 11th, 1791.

The Licentiate,
DON MANUEL DE MERRA Y PANIAGUA.
DR DON PEDRO DIAZ DE VALDES.
JUAN ANTONIO ALMONACID, *Secretary*.

In the city of Gerona, Principality of Catalonia on the thirtieth day of June, one thousand seven hundred and ninetyone, before us, Juan Salgueda, Presbyter Vicar of the Mercadal and Commissary of the Holy Office for this investigation, and Dr Marcial Llistorella, Presbyter Notary, sworn to preserve secrecy, and perform faithfully our duties, appeared according to summons, and made oath to declare the truth and preserve secrecy, a person calling himself Francisco Prat, Subdeacon of the village of Esponella in the bishopric of Gerona, aged twentyeight years.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, that he supposed it to be on account of a denunciation he had made, respecting something he had heard from Narcisa Catala y Pinsach.

He was then informed that a letter had been received in this Holy Office, which appeared to be from him, which letter began with 'Francisco Prat, Subdeacon,' and ended with 'for the necessary ends.' This letter was then produced, when he recognised it, and declared it to be the one which he wrote to the Tribunal, and that its contents were true.

Questioned, if he had anything to add thereto.

Answered, that in the conversation referred to, the abovementioned Narcisa Catala y Pinsach stated that some other Frenchmen abused the said Francisco Blaqueire on account of his prevarication respecting our religion, and that this happened in her house. Also, (but of this he is not certain) he believed she declared that the father and brother of the said Blaqueire who reside in Montagut or Tortella, in the bishopric of Gerona, refused to live with him by reason of his baptism, and that they had not been baptized; at any rate she said something respecting this.

Furthermore he had been told by Maria, the sister of the aforesaid Narcisa Pinsach, that Francisco Brich was a Jew. This she told the deponent in his own house; the like assertion he had heard from some of the common people, but did not recollect whom.

Questioned, what gave rise to the aforesaid conversation; why the charges were made; and seeing that it was his duty to oppose and denounce such matters, why he waited six months before he gave information.

Answered, that he chanced to remark, while waiting for the husband of the said Narcisa Pinsach, that the abovenamed Brich appeared to be an honest man, to which she replied that he was not, when the rest of the assertions followed; that the charges were made in compliance with the dictates of his conscience; and that he had spoken of the matter before, but had been told that it was women's tattle.

Questioned, what was the appearance of the persons in question.

Answered, that he had no knowledge of Francisco Blaqueire; and that the said Brich is a man of middling stature, corpulent, somewhat florid, and of a pacific temper; and that he knew nothing of his birthplace, except that he was a Frenchman.

The above is the truth according to the oath of the deponent, who has not made this declaration out of malice or ill will, but solely in discharge of his conscience; he declared that it was correctly recorded, and signed it in the city of Gerona, on the first day of July, one thousand seven hundred and ninetyone.

FRANCISCO PRAT, *Subdeacon*.

Before me—

DR MARCIAL LLISTORELLA, *Presbyter Notary*.

In the city of Gerona, on the second day of July, one thousand seven hundred and ninetyone, before us, Juan Salgueda, Presbyter, Vicar of the Mercadal of Gerona, and Commissary of the Holy Office, and Dr Marcial Llistorella, Presbyter Notary, sworn to preserve secrecy and perform faithfully our duties, appeared, according to summons, and made oath to declare the truth and preserve secrecy, Narcisa Catala y Pinsach, wife of Joseph Fabrega, commonly called Catala, stocking weaver, a native and inhabitant of Gerona, of age, as she stated, twentyeight years.

Questioned, if she knew the cause of her being summoned to appear.

Answered, No.

Questioned, if she knew that any person had said or done anything which was, or appeared to be contrary to our Holy Catholic Faith, and Evangelical Law.

Answered, that she had been told that Francisco Brich, *alias* Lo Avi Brich, and Francisco Blaqueire, stocking weavers, in the Hospicio of this city, were Protestants; and that the said Blaqueire had been baptized since his residence in Spain, but she knew not in what Parish. Also, that he could not live with his parents because they were Protestants. His parents live in France.

Questioned, if she knew whether the said Blaqueire had embraced any heresy.

Answered, that she only knew he was a Protestant, according as she was informed by her mother, now dead, who asserted that she was unwilling to let her other daughter marry the said Blaqueire because he was a Protestant. The same assertion she has heard from many other persons; she could not remember whom, but believed they were people of the vulgar sort.

Questioned, if she had told this to any other person.

Answered, that what had been told her, she had told to others, but to whom she could not say.

Here closed the deposition of the second of July, and on the fourth of the same month, the said Narcisa Fabra Catala y Pinsach appeared again.

Questioned, if she had anything to add to the declaration which she had made against Francisco Blaqueire.

Answered, No.

Questioned, what was the personal appearance of this man.

Answered, that he was about thirty years of age, of a moderate stature, and corpulent; that she did not know his birthplace, only that he was a Frenchman; that he was desirous of marrying, and that he was a stocking weaver, but in what factory he worked she did not know.

Questioned, why she supposed the abovenamed Brich to be a Protestant.

Answered, that she did not know it for certain, but had heard of it in the same manner in which she learned the history of Francisco Blaqueire, and that perhaps she had told it to others.

She was then informed that information had been received and sworn to in the Holy Office, that in a certain conversation a certain person observed that Avi Brich appeared to be an honest man, to which she replied, 'He is not an honest man, but a Jew.' And it being remarked that in Spain they must confess and partake of the communion once in each year, she replied, that in order to deceive the spies, they did this not merely once, but two or three times a year.

Therefore, in the name of God Our Lord and his Glorious and Blessed Mother Our Lady the Virgin, she was exhorted to bethink herself and declare the whole truth.

Answered, that she did not remember to have said so, but had heard say that if he had died in the Hospital, where he lay very sick about two years, he would not have been buried in consecrated grounds. At present she could not recollect who made this assertion, but she believed they were Frenchmen.

Questioned, what was his age and personal appearance.

Answered, she had known him about six years; that he was of a middling stature, corpulent, of a pacific temper, and above fifty years old; that she knew not his birthplace, but only that he was a Frenchman, and resided in the parish of the Mercadal of Gerona.

Questioned, if she knew anything of any other person which was contrary to our Faith.

Answered, that she had been told by Dona Manuela de Rodil, that Monsieur Daniel, a Frenchman, living in the parish of the Mercadal, possessed a mirror, which, on looking into it, exhibited the figures of devils. Also, she had heard, from the vulgar, that he and his wife were not Christians. Furthermore, she had been told by a certain Mallensa, a French woman, that a certain Luis in her house was a Protestant, but she believed

this was said from hatred, and in order to get him out of the house. Finally, she remembered to have heard that one of the sons, Francisco Brich, now in France, was a Protestant. Who made this assertion she could not tell.

The above is the truth according to the oath of the deponent, who has not uttered it out of malice or ill will, but solely to discharge her conscience; and having been read, she declared that it was correctly recorded.

Done at Gerona on the fourth day of July, one thousand seven hundred and ninetytwo.

The said Narcisa Catala Fabre y Pinsach not being able to write, I sign the above.

JUAN SALGUEDA, *Presbyter, &c.*

Before me—

DR MARCIAL LLISTORELLA, *Presbyter,*
Notary in this Investigation.

* * * *

MOST ILLUSTRIOUS SIR,

Being in company with Juan Bautista Viada, mason, on the twelfth day of the present month, and discoursing of sermons upon the state of the soul, I am very confident that he made this remark; that he had heard sundry persons declare they believed nothing about hell or purgatory, but as for himself, he believed. Which information I give your Excellency in obedience to the dictates of my conscience.

Mataro, November 17th, 1819.

Your most humble servant,
FRANCH. PLANA, Carpenter.

On the road beyond the gate of Batlleix. [\[21\]](#)

Let a commission be expedited for the examination of the above letter.

To the Reverend Father Pedro Martir de S. Vicente, Capuchin and Ex Lecturer of his order.

We hereby grant you a commission to summon before you, and another ecclesiastic to act as Notary, first swearing secrecy, Francisco de Asis Plana, carpenter, residing opposite the gate of Batlleix of this city. You will subject him to a regular examination respecting a letter of his which is herewith enclosed, and exact an oath from him that the letter is his, written by himself and its contents true. You will ascertain whether he has anything to add or alter respecting it, and after four days you will ratify the same *ad perpetuam*, in the presence of two other ecclesiastics sworn to secrecy. In the same manner you will proceed to take separately the depositions of Juan Bautista Viada, mason, and of the other persons whom he states were present when the speeches in question were uttered; these depositions to be also ratified. You will not omit to question him who these persons were, according to the regular form. You will note in the margin of the paper which shall contain the depositions, the degree of credit which they deserve; and you will also transmit, separately, an account of the lives, character, and behaviour of the persons denounced. With these you will return this commission and the other papers. God preserve you many years.

Royal Palace of the Inquisition of Barcelona, December 18th, 1819.

DR DON JOSE LLOZER.

The Licentiate,

DON SANTO DE BASARRATE.

D. D. JUAN DE CALVA Y MARTI, *Sec'y*.

In the city of Mataro, bishopric of Barcelona, on the twentyeighth day of December, one thousand eight hundred and nineteen, before Father Pedro Martir de San Vicente, Presbyter and Commissary, specially appointed in virtue of a commission to this effect, and before me, P. Bernardino de Barcelona, Presbyter Notary, having sworn to preserve secrecy and perform faithfully our duties, appeared voluntarily and made oath in the name of God our Lord, with the sign of the cross, to declare the truth and preserve secrecy, with respect to everything demanded of him which he knew, a

person calling himself Francisco de Asis Plana, carpenter, aged fiftyseven years.

Questioned, if he knew or conjectured the cause of his being summoned to appear by the Holy Office.

Answered, Yes.

Questioned, if he had written, or caused to be written at any time, a letter to the Tribunal of the Inquisition, giving an account of some crime within his knowledge, and who was the person to whom he referred.

Answered, that he had written a letter against Juan Bautista Viada, mason. The letter was then exhibited and the first clause of it read, when the deponent declared it to be his, and that its contents were true.

Questioned, if he had anything to add or alter in the said letter.

Answered, that if it were not for the apprehension of falling into an error, he should alter, 'I am confident,' to 'I am certain.'

Questioned, if there were other persons present when Juan Bautista Viada made the assertions in question.

Answered, No.

Questioned, if he knew that any other person had said or done anything which came under the cognizance of the Holy Office.

Answered, No.

Questioned, what was the age, appearance, and habitation of the person denounced.

Answered, that he was about fiftysix years old, and lived in the Calle de Argentona, in Mataro.

The above having been read to the deponent was declared by him to be correctly recorded. He stated further that he had nothing to add or alter respecting it; and that he did not make the declarations therein contained, out of malice, but solely from conscientious motives. Secrecy was enjoined upon him, which he promised, and added his signature.

FRANCISCO DE ASIS PLANA.

FR. PEDRO MARTIR DE SAN VICENTE,
Presbyter Capuchin.

Before me—

P. BERNARDINO DE BARCELONA, *Presbyter,
Notary, and Commissary, appointed for
this Purpose.*

In the city of Mataro, bishopric of Barcelona, on the sixteenth day of January, one thousand eight hundred and twenty, before Father Pedro Martir de San Vicente, Presbyter Capuchin, and Commissary, by a special commission for this purpose, and me, Father Bernardino de Barcelona, Notary, having sworn to preserve secrecy, and perform faithfully our offices, appeared and made oath in the name of God our Lord, with the sign of the cross, to declare the truth, and observe secrecy, a person calling himself Juan Bautista Viada, a native of Mataro, in the bishopric of Barcelona, by occupation a mason, aged fiftyfour years.

Questioned, if he knew or conjectured the cause of his being summoned to appear.

Answered, No.

Questioned, if he knew that any person or persons had said there was no Hell nor Purgatory, or made any other assertion which came under the cognisance of the Holy Office.

Answered, that he had heard the above assertion uttered by Magin Casanovas, or Barcelo, a person who died two years since.

Questioned, what persons were present when these words were spoken; and if the said Magin Casanovas was in his right mind; also, whether the assertion was made in a positive manner, or by referring to some other person, and whether it was made in jest, or dispute, or passion.

Answered, that he did not recollect whether it was said in the presence of others or not, but that it appeared to be said in a positive manner, and not in the heat of passion; that the abovementioned Magin Casanovas was a Marine Alguacil of this city, of which he was also a native, and that his age was about seventy years.

Questioned, if he remembered how many times the assertion had been made, and if he received any rebuke for it.

Answered, that he did not remember.

Questioned, why he had not denounced the speaker to the Holy Tribunal.

Answered, that the thought of this never occurred to him.

Questioned, if he knew that any other person had said or done anything which belonged to the cognizance of the Holy Tribunal.

Answered, No.

The above having been read to the deponent, was declared by him to be correctly recorded; and he further stated that he had nothing to add or alter respecting it, and that he did not make the declaration through malice, but solely in obedience to his conscience. Secrecy was enjoined upon him, which he promised, and added his signature.

JUAN BAUTISTA VIADA.

FRAY PEDRO MARTIR DE SAN VICENTE,
Presbyter Capuchin Commissary.

Before me—

F. BERNARDO DE BARCELONA, *Notary.*

[The following is written in the margin of the above deposition.]

I know the deponent Juan Bautista Viada to be a person worthy of credit. He supports his family by his labor; follows the precepts of the church, confesses, and partakes of the sacrament; nor have I ever heard of anything which can impeach his testimony. This is my opinion, salvo meliori.

Mataro, January 28th, 1820.

FR. PEDRO MARTIR DE SAN VICENTE,
Presbyter Capuchin Commissary.

THE END.

FOOTNOTES:

- [1] Fleury, Hist. Ecclesiast.
- [2] Sismondi, Litterature du Midi de l'Europe.
- [3] Sismondi, Hist. des Français.
- [4] Fleury, Hist. Ecclesiast.
- [5] Daru, Hist. de Venise.
- [6] Giannone, Storia di Napoli.
- [7] Llorente, Hist. de la Inquisicion de Espana.
- [8] Mariana, Hist. de Espana. Llorente.
- [9] Schiller, Abfall der Niederlande.
- [10] Llorente.
- [11] Lafitau, Conquestes des Portugais.

[12] As soon as the crime of suspicion of heresy was established in the preliminary accusation, the Inquisitors ordered the arrest of the delinquent. From that moment there were neither privileges nor shelter for him. Whatever might be his rank, he was seized in the midst of his family and friends, and no one dared to offer the least resistance. From the instant he was in the hands of the Inquisition not an individual was allowed any communication with him, he was abandoned by all the world and deprived of every species of consolation. Wo to the compassionate mind that dared to show any sympathy for a victim of the Inquisition. The accused was plunged into a frightful dungeon till the Inquisitors saw fit to interrogate him.

In the mean time the officers of the Inquisition proceeded to the dwelling of the accused, and drew up an inventory of all his goods, which were immediately seized. His creditors lost their debts; his wife and children were left in the most pitiable desertion; wives and daughters the most virtuous and accomplished, have many times been seen reduced to the horrible necessity of gaining a wretched existence by prostitution, occasioned by their destitute state and the contempt attached to them from being connected with a person apprehended by the Holy Office. After he had passed many days and even months in prison, the Inquisitors caused him to insinuate, by means of the jailor, that he demanded audience; for it was a constant practice of this Tribunal to contrive that the accused should be the person to demand. The prisoner, appearing before his judges for the first time, they questioned him as if they did not know him, and engaged him by the most crafty methods, to acknowledge his crime. *Llorente Hist. de la Inquisicion.*

[13] 'The least mixture of African, Indian, Moorish, or Jewish blood taints a whole generation. Nor does the knowledge of such a fact die away in the course of years, or become unnoticed from the obscurity and humbleness of the parties. Not a child in this populous city (Seville) is ignorant that a family, who, beyond the memory of man, have kept a confectioner's shop in a central part of the town, had one of their ancestors punished by the Inquisition for a relapse into Judaism. I well recollect how, when a boy, I often passed that way, scarcely venturing to cast a side glance on a pretty young woman, who constantly attended the shop, for fear, as I said to myself, of shaming her. A person free from tainted blood is defined by law, '*Christiano viejo, limpio de toda mala raza.*' An old Christian, free from all bad race and stain. The severity of this law, or rather of the public opinion enforcing it, shuts out its victims from every employment in church or state, and excludes them even from *fraternities*, or religious associations, which are otherwise open to persons of the lowest ranks. I verily believe that were

St Peter a Spaniard, he would either deny admittance into heaven to a people of tainted blood, or send them to a retired corner, where they might not offend the eyes of the *old Christians*.’

Doblado's Letters from Spain.

[14] Attorney General.

[15] Calificación or *qualification*, a judgment pronounced upon the character and tendency of any actions or speeches denounced before the Inquisition. This was done by officers holding a special commission for that purpose called *Calificadores*.

[16] There were three sorts of persons distinguished by the Tribunal as suspected of heresy; those who were *lightly* suspected, those who were *seriously* suspected, and those who were *violently* suspected. The lightly suspected were designated by the term *de levi*, and the seriously and violently suspected, by the term *de vehementi*.

Llorente Hist. de la Inquisicion.

[17] *Du bist ein Narr das du dies glaubst.*

[18] There were three methods of torture; the cord, fire, and water.

In the first method, they tied the hands behind the back of the patient by means of a cord which passed through a pulley attached to the roof, and the executioners drew him up as high as possible. After suspending him for some time, the cord was loosened, and he fell within six inches of the ground. This terrible shock dislocated all the joints and cut the flesh even to the sinews. The process was renewed every hour and left the patient without strength or motion. It was not until after the physician had declared that the sufferer could no longer endure the torture without dying, that the Inquisitors sent him back to prison.

The second was performed by means of water. The executioners stretched the victim over a wooden instrument like a spout, fitted to receive the body of a man, without any bottom but a stick passing across it. The body falling backwards, came to such a position that the feet were higher than the head. In this state the respiration became very painful, and the patient suffered the most dreadful agonies in all his limbs from the pressure of the cords, the knots of which cut into the flesh. In this cruel position the executioners passed into the throat a piece of fine linen, wet, a part of which covered the nostrils. They then turned water into the mouth and nose and left it to filter so slowly that one hour at least was consumed before the sufferer had swallowed a drop, although it trickled without interruption. Thus the patient found no interval for respiration. At every moment he made an effort to swallow, hoping to give passage to a little air; but the wet linen prevented this, and caused the water to enter by the nostrils. Thus it often happened that when the torture was finished, they drew the linen from the throat all stained with the blood of the vessels which had been burst by the struggles of the unfortunate victim. It should be added, that every instant, a powerful arm turned the fatal lever, and at each turn the cords which bound the arms and legs penetrated to the very bones.

If by this second torment they could obtain no confession, the Inquisitors resorted to fire. For this purpose the executioners tied the hands and feet in such a manner that the sufferer could not change his position. They then rubbed the feet with oil and lard, and other penetrating matter, and placed them before the fire, until the flesh was so roasted that the bones and sinews appeared in every part.—*Llorente, Hist. de la Inquisicion.*

[19] When the crime imputed to the accused was not certain, and he had not entangled himself in the interrogatories, he was acquitted, on the condition that he should make a formal abjuration of his heresies and be purged, after the canonical fashion, of the suspicion attached to him. After this, he was absolved *ad cautelam*, or, in other words, as having been suspected of heresy.—*Llorente, Hist. de la Inquisicion.*

[20] One who makes a voluntary confession, and takes his trial on the strength of the evidence which he gives against himself, rather than the testimony of other witnesses.

[21] As a specimen of the modern Catalan dialect, the original of the above letter is subjoined.

Mol Ille Sor

Estan en la Campana ab Juan Baptista Viada All, de Casas lo Dia 12 del corren, parlan de Sermons de Animas: meapar mol, que el digué de esta Manera; de que ell abia oyit á differens, que no creyan ab lo Infern, ó ab lo Purgatori, però que ell si, que hi creya.

lo que delate á V. S. per descarrch de la mia Consiencia.

Mataró y N^{bre} 17 de 1819.

S. M. h^l—S.

Franch. Plana Juster.

al Carrer de fora de lo Portal de Batlleix.

Typographical errors corrected by the etext transcriber:

the the cause=> the cause {pg 13}

he was dimissed=> he was dismissed {pg 40}

make arrangments=> make arrangements {pg 71}

dawn up his defence=> drawn up his defence {pg 74}

excuting them=> executing them {pg 96}

conception of of the said Juan Antonio=> conception of the said Juan Antonio {pg 136}

The excutioners=> The executioners {pg 150}

of of property=> of property {pg 175}

on the the thirtieth day=> on the thirtieth day {pg 196}

before the Revered Joseph=> before the Reverend Joseph {pg 184}

la Riera alta=> la Riera Alta {pg 217}

superstious acts=> superstitious acts {pg 236}

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